

THE
COMPANIONS OF PICKLE

BEING A SEQUEL TO 'PICKLE THE SPY'

BY
ANDREW LANG

WITH FOUR ILLUSTRATIONS

LONGMANS, GREEN, AND CO.
39 PATERNOSTER ROW, LONDON
NEW YORK AND BOMBAY

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Title: The companions of Pickle

Author: Andrew Lang

Release date: September 10, 2022 [eBook #68956]

Most recently updated: October 19, 2024

Language: English

Original publication: United Kingdom: Longmans, Green, and Co.,
1898

Other information and formats: www.gutenberg.org/ebooks/68956

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The Earl Marischal

1717.

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PREFACE



The appearance of 'Pickle the Spy' was welcomed by a good deal of clamour on the part of some Highland critics. It was said that I had brought a disgraceful charge, without proof, against a Chief of unstained honour. Scarcely any arguments were adduced in favour of Glengarry. What could be said in suspense of judgment was said in the *Scottish Review*, by Mr. A. H. Millar. That gentleman, however, was brought round to my view, as I understand, when he compared the handwriting of Pickle with that of Glengarry. Mr. Millar's letter on the subject will be found in this book ([pp. 247, 248](#)).

The doubts and opposition which my theory encountered made it desirable to examine fresh documents in the Record Office, the British Museum, and the Royal Library at Windsor Castle, while General Alastair Macdonald (whose family recently owned Lochgarry) has kindly permitted me to read Glengarry's MS. Letter Book, in his possession. The results will be found in the following pages.

Being engaged on the subject, I made a series of studies of persons connected with Prince Charles, and with the Jacobite movement. Of these the Earl Marischal was the most important, and, by reason of his long life and charming character—a compound of 'Aberdeen and Valencia'—the most interesting. As a foil to the good Earl, who finally abandoned the Jacobite party, I chose Murray of Broughton, who, though he turned informer, remained true in sentiment, I believe, to his old love. His character may, perhaps, be read otherwise, but such is the impression left on me by his 'Memorials,' documents edited recently for the Scottish History Society by Mr. Fitzroy Bell.

In Barisdale, whose treachery was perfectly well known at the time, and was punished by both parties, we have a picture of the Highlander at his worst. Culloden made such a career as that of Barisdale for ever impossible.

In the chapters on 'Cluny's Treasure' and 'The Troubles of the Camerons' I have, I hope, redeemed the characters of Cluny and Dr. Archibald Cameron from the charges of flagrant dishonesty brought against them by young Glengarry. Both gentlemen were reduced to destitution, which by itself is incompatible with the allegations of their common enemy.

'The Uprooting of Fassifern' illustrates the unscrupulous nature of judicial proceedings in Scotland after Culloden. A part of Fassifern's conduct is not easily explained in a favourable sense, but he was persecuted in a strangely unjust and intolerable manner. Incidentally it appears that public indignation against this sort of procedure, rather than distrust of 'what the soldier said' in his ghostly apparitions, procured the acquittal of the murderers of Sergeant Davies.

'The Last Days of Glengarry' is based on a study of his MS. Letter Book, while 'The Case against Glengarry' sums up the old and re-states the new evidence that identifies him with Pickle the Spy.

The last chapter is an attempt to estimate the social situation created in the Highlands by the collapse of the Clan system.

I have inserted, in 'A Gentleman of Knoydart,' an account of a foil to Barisdale, derived from the Memoirs of a young member of his clan, John Macdonell, of the Scotus family. The editor of *Macmillan's Magazine* has kindly permitted me to reprint this article from his serial for June 1898.

A note on 'Mlle. Luci' corrects an error about Montesquieu into which I had fallen when writing 'Pickle the Spy,' and throws fresh light on Mlle. Ferrand.

It is, or should be, superfluous to disclaim an enmity to the Celtic race, and rebut the charge of 'not leaving unraked a dunghill in search for a cudgel wherewith to maltreat the Highlanders, particularly those who rose in the Forty-five.' This elegant extract is from a Gaelic address by a minister to the Gaelic Society of Inverness.^[1] I have not raked dunghills in search of cudgels, nor are my sympathies hostile to the brave men, Highland or Lowland, who died on the field or scaffold in 1745-53. The perfidy of which so many proofs come to light was in no sense peculiarly Celtic. The history of Scotland, till after the Reformation, is full of examples in which Lowlanders unscrupulously used the worst weapons of

the weak. Historical conditions, not race, gave birth to the Douglasses and Brunstons whom Barisdale, Glengarry, and others imitated on a smaller scale. These men were the exceptions, the rare exceptions, in a race illustrious for loyalty. I have tried to show the historical and social sources of their demoralisation, so extraordinary when found among the countrymen of Keppoch, Clanranald, Glenaladale, Scotus, and Lochiel.

I must apologise for occasional repetitions which I have been unable to avoid in a set of separate studies of characters engaged in the same set of circumstances.

My most respectful thanks are due to Her Majesty for her gracious permission to study the collection of Cumberland Papers in her library at Windsor Castle. Only a small portion of these valuable documents has been examined for the present purpose. Mr. Richard Holmes, Her Majesty's Librarian, lent his kind advice, and Miss Violet Simpson aided me in examining and copying these and other papers referred to in their proper places. Indeed I cannot overestimate my debt to the research and acuteness of this lady.

To General Macdonald I have to repeat my thanks for the use of his papers, and the Duke of Atholl has kindly permitted me to cite his privately printed collections, where they illustrate the matter in hand.

Sir Thomas Gibson Carmichael was good enough to lend me, for reproduction, his miniature of the Duke of York and Prince Charles.

The earlier portrait of the Earl Marischal is from the Scottish National Museum, the later (of 1752?) is from the National Portrait Gallery. It gives a likeness of one of the good Earl's menagerie of young heathens. The miniature of Prince Charles ([p. 140](#)) is a copy or replica of one given by him to a Macleod of the Raasay house in September, 1746. The Royal Society of Edinburgh kindly permitted me to have copies made of several of the Earl Marischal's letters to David Hume, in their possession. In some of these (unprinted) the Earl touches on a theme for which *le bon David* frankly expresses his affection in a letter to the Lord Advocate.

CORRIGENDA

P. 12, note, *for* twenty-two in 1716, *read* twenty-three

P. 17, note, *for* 33,900 *read* 33,950

Transcriber's Note: These corrections didn't need making: presumably the printers did it, but neglected to remove this list.

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THE COMPANIONS OF PICKLE



I THE LAST EARL MARISCHAL

In a work where we must make the acquaintance of some very unfortunate characters, it is well to begin with a *preux chevalier*. If there was a conspicuously honest man in the eighteenth century, one 'whose conscience might gild the walls of a dungeon,' as an observer of his conduct declared, that man was the Earl Marischal, George Keith. The name of the last Earl Marischal of Scotland haunts the reader of the history of the eighteenth century. He appears in battles for the Stuart cause in 1715 and 1719, he figures dimly in the records of 1745, and of Charles Edward, after the ruin of Culloden. We find him in the correspondence of Voltaire, Rousseau, Hume, and Frederick the Great, and even in Casanova. He is obscurely felt in the diplomacy which ended in Pitt's resignation of office. Many travellers describe his old age at Potsdam, and d'Alembert wrote his *Éloge*. He was the last direct representative of that historical house of Keith whose laurels were first won in the decisive charge of Bruce's handful of cavalry on the English archers at Bannockburn. Though the Earl Marischal of the confused times after the death of James V. was a pensioner of Henry VIII., like so many of the Scottish *noblesse*, the House was Royalist, and national as a rule. Yet, after a long life of exile as a Jacobite, the last Earl Marischal, always at heart a Republican, reconciled himself to the House of Hanover. The biography of the Earl has never been written, though few Scottish worthies have better deserved this far from uncommon honour.

Materials for a complete life of the Earl do not exist. We are obliged to follow him by aid of slight traces in historical manuscripts, biographies,

memoirs, and letters, published or unpublished. Even in this unsatisfactory way, the Earl is worth pursuing: for if he left slight traces on history, and was never successful in action, he was a man, and a humourist, of singular merit and charm, a person almost universally honoured and beloved through three generations. This last of the Earls Marischal of Scotland was certainly one of the most original and one of the most typical characters of the eighteenth century. Losing home, lands, and rank for the cause of Legitimism, the Earl was the reverse of a fanatical Royalist; indeed he seems to have become a Jacobite from Republican principles. These were strengthened, no doubt, by his great experience of kings; but even when he was a young man his bookplate bore the motto *Manus hæc inimica tyrannis*. Then probably, as certainly in later life, he loved to praise Sidney, and others who (in his opinion) died for freedom. Yet the Earl was 'out,' for no Liberal cause, in 1715, and in 1719: while he was plotting against King George and for King James, till 1745. He was admitted to the secret of the rather Fenian Elibank Plot in 1752, and only reconciled himself with the English Government in 1759. On his death-bed he called himself 'an old Jacobite,' while, for twenty years at least, his favourite companions had been the advanced thinkers, prelusive to the Revolution, Rousseau, Hume, d'Alembert, Voltaire, Helvetius.

All this appears the reverse of consistent. The Earl gave up everything, and risked his life often, for the White Rose, while his opinions, religious and political, tended in the direction of the Red Cap of Liberty and the Rights of Man. The explanation is that the Earl, when young, a patriotic Scot, and a persecuted Episcopalian, saw 'freedom' in the emancipation of Scotland from a foreign tyrant, the Elector of Hanover; in the Repeal of the Union, and in the relief of his religious body from the tyranny of the Kirk. Till his death he was all for liberty, and could not bear to see even a caged bird. These were the unusual motives (these, and the influence of his mother, a Jacobite by family and sentiment) which converted a born Liberal into a partisan of the King over the Water. Thus this representative of traditional and romantic Scottish loyalty to the Stuarts was essentially a child of the advanced, and emancipated, and enlightened century which succeeded that into which he was born.

Original in his political conduct, the Earl was no less unusual in personal character. He was one of those who, as Plato says, are 'naturally good,'

naturally examples of righteousness in a naughty world. Nature made him temperate, contented, kind, charitable, brave, and humorous—one who, as Montaigne advises, never ‘made a marvel of his own fortunes.’ His virtue, as far as can be learned, owed nothing to religion. He was ‘born to be so,’ as another man is born to be a poet. He had a native genius for excellence.

He was ruined without rancour, and all the buffets of unhappy fortune, all the political and social vicissitudes of nearly a century, could not cloud his content, or diminish his pleasure in life and the sun. He was true to his exiled Princes, till they, or one of them at least, ceased to be true to themselves. He was perhaps the only friend whom Rousseau could not drag into a quarrel or estrange, and the only companion whom Frederick the Great loved so well that he never made experiments on him in the art of tyrannical tormenting. Familiar, rather than respectful, with Voltaire, the Earl, who remembered Swift in his prime, was fond of gossiping with Hume and of bantering d’Alembert. Kind and charitable to all men, he was especially considerate and indulgent to the young, from the little exiled Duke of York to the soured Elcho, and the still unsuspected Glengarry. One exception alone did the Earl make (unless we believe Rousseau): he could not endure, and would not be reconciled to, Prince Charles. If in this he may seem severe, no other offence is laid to his charge, though modern opinion may condemn his cool acquiescence in desperate plots which he probably never expected to be carried into action. Otherwise the Earl presents the ideal of a good and wise man of the world, saved from all excess, and all disappointment, by the gifts of humour and good-humour. When we add that ‘the violet of a legend,’ of unfortunate but life-long love, blows on the grave of the good Earl, it will be plain that, though not a hero, like his brother, Marshal Keith, he was a character of no common distinction and charm. His life, too, is almost an epitome of the Jacobite struggle from 1715 to 1757. The Earl was ever behind the scenes.

Though tenth Earl (the first of the hereditary Marischals to be ‘belted earl’ was William, in 1458), George Keith was apt to mock at hereditary *noblesse*. *Stemmata quid faciunt?* He had a story of a laird who grumbled, during a pestilence, ‘In such times a gentleman is not sure of his life.’ The date of his birth was never known. In old age he cast an agreeable mystery about this point. He was once heard to say that he was twenty-seven in 1712; if so, he died at ninety-three (1778). Others date his birth in 1693,

others in 1689; d'Alembert says (on the authority of one who had the fact from Ormonde) that he was *premier brigadier* of that general's army in 1712. An engraving from a portrait of the Earl as a young man represents him as then twenty-three years of age. If the engraving was done in Paris, as seems probable, in 1716, he would be born in 1693. Oddly enough the pseudo-Memoirs of Madame de Créquy (who is made to speak of him as her true love) throw a similar cloud over the year of her birth. Concerning the Earl's father, Lockhart of Carnwath writes that he had great vivacity of wit, an undaunted courage, and a soul capable of great things, 'but no seriousness.' His mother, of the house of Perth, was necessarily by birth a Jacobite. The song makes her say:

I'll be Lady Keith again
The day the King comes o'er the water.

The Earl's tutor was probably Meston, the Jacobite wit and poet.

The Earl succeeded his father in 1712. His own first youth had been passed in Marlborough's wars; from 1712 to the death of Queen Anne, and the overthrow of hopes of a Restoration by the Tories, he lived about town, a brilliant colonel of Horse Guards, short in stature and slight in build, but with a beautiful face, and dark, large eyes. So we see him in the portrait of about 1716.

The following letter, the earliest known letter of the Earl, displays him as a disciplinarian. Conceivably the mutinous Wingfeild was a Jacobite, but, by September 12, 1714, the chance for a rising of the Guards for King James had passed, Queen Anne was dead, and the Earl was still colonel in the army of George I.

To Lord Chief Justice Parker

Stowe MSS. 750, f. 58.

'September 12, 1714.

'My Lord,—As soon as I heard that your Lordship had granted a Habeas Corpus for Thom^{as} Wingfeild one of the private men of His Majesties Second Troop of Horse Grenadier Guards under my Command, I sent a Gentleman to wait upon your Lordship and to acquaint you with the reasons for my ordering Wingfeild to be

confin'd to the Marshall of the Horse Guards according to the practice of the Army, but your Lordship was not then at your Chambers; I now take the liberty to inform you that the Prisoner has not only been guilty of uttering menacing words & insolently refusing to comply with the establisht Regulations of the Troop, (to which Regulations he has subscribd) but has also been endeavouring to raise a mutiny therein, which crimes among Soldiers being of dangerous Consequences I did intend to have him try'd by a General Court Martial, that he might have been exemplarily punisht as far as the Law allows to deter others from the like practices: but as there is no warrant for holding a Court Martial for the Horse Guards extant, & I being unwilling to trouble their Excell^{cies} the Lords Justices on this occasion, I had ordered my officers to hold a Regimental Court Martial upon him yesterday in order to break him at the head of the Troop, which is the only punishment they can inflict, but they did not proceed then on acco^t of the Habeas Corpus; this I thought fit to acquaint your Lordship with and to assure you that I am &c.

‘MARISCHALL.’

From Lockier, Spence got the familiar anecdote of the Earl's conduct at Queen's Anne's death, before the projects for a Restoration of the Chevalier were completed. Ormonde, Atterbury, and the Earl met, when Atterbury bade Marischal go out (with the Horse Guards) and proclaim King James. Ormonde wished to consult the Council. ‘Damn it,’ says Atterbury in a great heat (for he did not value swearing), ‘you very well know that things have not been concerted enough for that yet, and that we have not a moment to lose.’ That moment they lost, and a vague anecdote represents the Earl as weeping, after the battle of Sheriffmuir, over the many dead men who might have been alive had he taken Atterbury's advice. D'Alembert, who does not mention Atterbury, attributes the idea of an instant stroke for the King to the Earl himself.^[2]

When the rising of 1715 was in preparation, the Earl, according to d'Alembert, wrote to James, telling him that ‘a sovereign deprived of his own must share the dangers of those who risked their lives for his sake,’ and so made him ‘leave his retreat’ at Bar-le-Duc. But James's natural brother, the Duke of Berwick, on July 16, 1715, had already given the same advice.

‘Your honour is at stake, your friends will give over the game if they think you backward.’ James replied that he hoped to be at Dieppe by the 30th of the month. Within five days Berwick was crying off from the task of accompanying his brother, who replied with a repressed emotion, ‘You know what you owe to me, what you owe to your own reputation and honour, what you have promised to the Scotch and to me.... I shall not, therefore, bid you adieu, for I expect that we shall soon meet.’

It was now not the King who turned laggard, but Berwick who advised delay. ‘*I find Rancourt*’ (the King), he says, ‘very much set on his *journey*.’ In brief, it was Berwick and Bolingbroke who kept James back, though with great difficulty. He needed no urging (as d’Alembert suggests) by our Earl. ‘I fear I shall scarce be able to hinder him from passing the sea,’ says Berwick (August 6).

Then Louis XIV. died, all was confusion, and the Regent Orléans detained Berwick in France, exactly at the time when Mar went to raise the Highlands. What with Bolingbroke, Berwick, the death of Louis XIV., and the intrigues of Orléans in the Hanoverian interest, James, travelling disguised through an Odyssey of perils, did not leave France for Scotland till mid-December. A month before (November 13) Mar had been practically defeated at Sheriffmuir, and Forster, Mackintosh, Derwentwater and Kenmure had surrendered at Preston. The King thus came far too late, but certainly by no lack of readiness on his part.

D’Alembert makes the Earl utter a fine constitutional speech on the duties of a king when he proclaimed James at Edinburgh. Unluckily, on this occasion James was never proclaimed at Edinburgh by anybody. The *Éloge* of d’Alembert is eloquent, but it is not history. It has been the chief source for the Earl’s biography.

The Earl had doubtless been won over by Mar to resign his English commission, and desert King George for King James. The story is told that, as he rode North from London in 1715 to join Mar in the Highlands, he met his young brother James riding South to take service with King George. He easily induced his brother to share his own fortunes, and Prussia ultimately gained the great soldier thus lost to England. The Covenanting historian, Wodrow, avers that ‘Marischal was bankrupt,’ and therefore eager for *res novæ*. But he would have been a Jacobite in any case. As to the Earl’s

conduct when Mar's ill-organised and ill-supplied rising drew fatally to a head at Sheriffmuir, his brother, the Field-Marshal of Prussia, in his fragmentary Memoir, tells all that we know. The Earl, with 'his own squadron of horse' and some Macdonalds, was sent to occupy a rising ground, the enemy being, as was thought, in Dunblane. From the height, however, the whole hostile army was seen advancing, and the Earl sent to bid Mar bring up his forces. There was much confusion, and the Earl's squadron of horse was left in the centre of the line. Mar's right with the Earl routed Argyll's left, while Argyll's left routed Mar's right. 'In the affair neither side gained much honour,' says Keith, 'but it was the entire ruin of our party.' Half of Mar's force, having thrown down their plaids,^[3] were now unclothed: many had deserted; the evil news of the Preston surrender came, the leaders were at odds among themselves, 6,000 Dutch troops were advancing from England. Seaforth and Huntly took their followers back to the North, and when King James arrived at Perth, late in December, he found a wintry welcome, soldiers few and dispirited, and dissensions among the officers. The army wasted away while Cadogan, Argyll, and the Dutch troops, greatly outnumbering the Jacobites, advanced on Perth through the snow.

James's army now beat a retreat, with no point to make for, as Inverness was in the hands of the enemy. Mar, therefore, advised James, who had not ammunition enough for one day's fight (thanks to Bolingbroke, said the Jacobites), to take ship at Montrose. If he stayed, the enemy would make their utmost efforts to come up with and capture him. If he departed, the retreating Highlanders would be less hotly pursued. James consulted Marischal, who wished to offer no opinion, alleging 'his age and want of experience,' says Keith.^[4] Finally, he privately admitted to Mar that 'he did not think it for the King's honour, nor for that of the nation, to give up the game without putting it to a tryall.' Powder enough for one day's fight could be got at Aberdeen; he hoped to gain recruits as they went North, and, at worst, James, if beaten, could escape from the West coast. 'Mar seemed to be convinced of the truth of this' (very like Bobbing John); 'however, a ship was already provided,' and James, with Mar, Melfort, and others, eloped; the King characteristically leaving all his money to recompense the peasants who had suffered by the war. James was no coward, he had charged the English lines repeatedly, at the head of the Royal Household, in

the battle of Malplaquet, where he was wounded. In his journey from Lorraine to the coast he had run the gauntlet of Stair's cut-throats. But a Scottish winter, a starveling force, no powder, and Mar's advice, had taken the heart out of the adventurer.

According to Mar, the Earl had orders to sail with the King, 'who waited on the ship above an hour and a half, but, by what accident we yet know not, they did not come, and there was no waiting longer.'^[5] 'The King and we are in no small pain to know what is become of our friends wee left behind.' D'Alembert says that the Earl refused to sail. 'Your Majesty is to protect yourself for your friends. I shall share the sorrows of those who remain true to you in Scotland, I shall gather them, and shall not leave without them.' If Mar tells truth, the Earl can have made no such speech. A modest man, he remained at his duty without rhetoric.

The dispirited and deserted Highland army moved North, and the Earl was sent to ask Huntly whether he would join them—in which case they would fight at Inverness—or not. 'He easily perceived by Huntly's answer that nothing was to be expected from him.' They, therefore, marched to Ruthven, whence they scattered, Keith and the Earl fared westwards with Clanranald's men, and made for the Islands. Hence they sailed in a French ship on May 1, and reached St. Pol de Léon on May 12. There were a hundred officers of them together, and all this destroys d'Alembert's romance, modelled on the adventures of Prince Charles, about the Earl's dangers and the noble behaviour of the crofters among whom he was wandering. An English force was, indeed, at one time within thirty miles of the fugitives, but there was nobody to whom Clanranald's men could have been betrayed, not that any one was likely to betray them, and the Earl Marischal and James Keith with them. In truth, d'Alembert confused this occasion with another, after Glenshiel fight, in 1719.

Many of the fugitives went to James at Avignon, but Keith stayed in Paris, where Mary of Modena received him well. 'Had I conquered a kingdom for her she could not have said more.' She gave him 1,000 livres, while James granted what he could, 200 crowns yearly. Keith does not say that the Earl was in Paris, where his portrait was probably painted at this date. There, however (as is known from an unpublished MS.), he certainly was, and he might even, by Stair's mediation, have obtained his pardon. But he supposed that the cause would presently triumph, and declined to make

any advances to George I. He was now in correspondence with General Dillon, James's military representative in Paris. In August, 1717, Dillon writes to him about one 'Prescot,' who is suspected of intending to murder James in Italy; he refers to Lord Peterborough, who was arrested on this impossible charge at Bologna in September 1717.^[6] In 1719 the Earl and his brother went to Spain. There was then war between Spain and England, Ormonde was with Alberoni, and was to be employed. Keith would have gone thither earlier, but 'I was then too much in love to think of quitting Paris.'

Here, in Paris, 1717-18, if ever, would have to be fixed the Earl's legendary romance with Mademoiselle de Froullay (Madame de Créquy). The story, a very pretty one, is given in this lady's *Mémoires*, an ingenious but fraudulent compilation.

An author best known for his plagiarisms seized on Madame de Créquy as a likely old person to have left memoirs behind her. By aid of gossip and books he patched up the amusing but mythical records which he attributed to the lady. Why he selected the Earl as the lover of her girlhood we can only guess; but dates and facts make the pretty tale incredible, though it has found its way into Chambers's account of the Earl's career. Thus, for example, it is averred by Sainte-Beuve, on the authority of her man of business, M. Percheron, that Madame de Créquy was born in 1714. The love story of 1717, told in her *Memoirs*, beginning in the Earl's attempt to teach her Spanish and English, and interrupted by the fact that he was a 'Calvinist,' is therefore improbable. The lady was but three years old when her affections, according to her apocryphal *Memoirs*, were blighted. The lovers met again, when the Earl was Prussian Ambassador at Versailles in 1753. 'We had not had the time to discover each other's faults, we had not suffered each by the other's imperfections, both remained under that illusion which experience destroyed not: we were happy in the sweet thought of ineffable excellence, and when we met in the wane of life, and either saw the other's white hair, we felt an emotion so pure, so tender, and so solemn, that no other sentiment, no other impression known to mortals, can be compared to it.' All this is charming, but it cannot conceivably be true! The Earl composed his one madrigal under the influence of this elderly emotion (say the pseudo-Memoirs), a tear stole down his withered cheek, and he assured Madame de Créquy that they would meet in Heaven.

‘I loved you too much not to embrace your religion.’ So runs the romance of the pseudo-Madame Créquy.

In fact, the Earl remained a member of the persecuted Episcopal Church in Scotland. In Rome a priest tried to convert him, beginning with the Trinity. ‘Your Lordship believes in the Trinity?’ ‘I do,’ said the Earl; ‘but that just fills up my measure. A drop more and I spill all.’

Madame de Créquy’s *Mémoires* are obviously a daring forgery, but the ‘violet of a legend’ has a fragrance of its own. The Earl was in 1716, as his portrait shows, a singularly handsome young man, with large hazel eyes and an eager face, with a complexion like a girl’s beneath his brown curls. Madame de Créquy is made to say, by way of giving local colour, that he greatly resembled a portrait of *le beau Caylus*, a favourite of Henri III. The portrait was in her family.

In 1719, to return to facts, the two Keiths were received in Spain by the Duc de Liria, son of the Duke of Berwick, who had heard of an intended expedition to England. In Barcelona the splendour of their welcome, they travelling incognito, amazed them. They had been, in fact, mistaken for their rightful King and one of his officers, who were expected. From Barcelona they went to Madrid, whence Alberoni sent the Earl posting all about the country after Ormonde, who was to command the invading forces. Ormonde was a kind of figure-head of Jacobite respectability. He was presumed to be the idol of the British army at the time of Queen Anne’s death; he had added his mess to the general chaos of Tory imbecility in 1714, and, in place of playing Monk’s part in a new Restoration, had fled abroad. A few of his letters of 1719 to the Earl survive: he hopes for ‘the justice which the Cause deserves,’ and when his fleet is scattered in the usual way, reports the uneasiness of James about the Earl.^[7]

The Earl in Spain arranged what he could with the Cardinal, while Keith passed through France, then hostile to Spain, and met the exiled Tullibardine in Paris. Here all was confusion, the Jacobites—Seaforth, Glendarule, and Tullibardine—being deep in the accustomed jealousies. They sailed, however, and reached the Lewes, where Keith met his brother, the Earl; but here divided counsels and squabbles about rank and commissions arose. The Earl succeeded in bringing the Spanish auxiliary forces to the mainland, and was for marching at once against Inverness. The

other faction, that of Seaforth and Tullibardine, dallied: the ammunition, stored in a ruinous old castle on an island, was mostly seized by English vessels. News arrived that Ormonde's fleet, sailing from Spain, had been dispersed on the seas, and the Highlanders came in very reluctantly. The Jacobites landed at the head of Loch Duich, and were posted on a hillside in Glenshiel, commanding the road to Inverness. Hence the English forces drove them to the summit of the mountain, and night fell. They had neither food, powder, nor any confidence in their men, so the Spaniards surrendered, the Highlanders dispersed, and Keith thus began his glorious military career in a style somewhat discouraging.

Lord George Murray, later the general in the Rising of 1745, was also in this rather squalid engagement. Keith was suffering from a fever, and he with his brother 'lurked in the mountains.' On this occasion, no doubt, the Earl profited by the loyalty of his countrymen, among whom (says an anonymous informant of d'Alembert's) he moved without disguise. He is even said to have been present when a proclamation was read aloud offering a reward for his apprehension. His adventures increased his love for his own people: indeed, he certainly espoused the Jacobite cause as a national Scottish patriot, not for dynastic reasons.

Keith and his brother, after 'lurking' for months in the Northern wilds, escaped from Aberdeen to Holland, in September 1719. Thence they made for Spain, intending to enter France by Sedan. But as they had no passports they were stopped in France and imprisoned. Keith hit on an ingenious way of getting rid of their Spanish commissions, which would have been compromising, and a letter to the Earl from the Princesse de Conti served as a voucher for their respectability, and procured their release. They reached Paris when the fever of the Mississippi Scheme was at its height. Jacobites as needy as they, the Oglethorpe girls and George Kelly, probably got hints from Law, the great financial adventurer, and founder of the Mississippi Scheme. The young Jacobite ladies bought in at par and sold at a huge premium. They thus won their own *dots*, and married great French nobles. Even poor George Kelly had a success in speculation. He was, at this time, Atterbury's secretary, and being involved in his fall, passed fourteen years in the Tower. In 1745 he was one of the famed Seven Men of Moidart, but none the dearer on that account to the Earl, who never trusted him, and, in 1750, caused him to be banished from the service of the Prince. All these

adventurers, Law, the Oglethorpes, Olive Trant, Kelly, and the Keiths, may have met in Paris, after Glenshiel. But the Earl and his brother did not make their fortunes in the Mississippi Scheme. They had no money, and Keith frankly expresses his contempt for the speculations after which all the world was running mad. The brothers passed to Montpellier, Keith attempted to enter Spain by Toulouse, the Earl by the Pyrenees. Months later Keith tried the Pyrenees passes, and there, at an inn, met his brother, who had been arrested and imprisoned for six weeks. The King of France had just set him free, with orders to leave the kingdom, and the wandering pair of exiles went to Genoa, then a focus of Jacobite intrigue, whence they sailed to Rome, to see 'the King, our Master.'

Jacobites lived in an eternal hurry-scurry. James had been driven from France to Lorraine; then to Avignon, where Stair planned his assassination; [8] then to Urbino, Bologna, and Rome. Sailing for Spain, in 1719, he had been obliged to put in near Hyères, and there to dance all night—the melancholy monarch—at a ball in a rural inn. Spain could do nothing for him, and he returned to Rome, whither Charles Wogan brought him a bride, fair, unhappy Clementina Sobieska, just rescued from an Austrian prison. Keith says nothing of her, but tells how, at Cestri de Levanti, his brother called on Cardinal Alberoni, now fallen from power and in exile. The Earl, with some lack of humour, wanted to tell the Cardinal all about the Glenshiel fiasco, but was informed that the statesman had no longer the faintest concern with the affairs of Spain or interest in the gloomy theme.

From Leghorn the brothers went by land through Pisa, Florence, and Siena to Rome. The King, 'who knew we were in want of money,' sent Hay to borrow 1,000 crowns from the Pope, 'which was refused on pretence of poverty; this I mention only to shew the genius of Clement XI., and how little regard Churchmen has for those who has abandoned all for religion.' His Majesty, therefore, raised the money from a banker. The exiled King's chief occupation was providing for his destitute subjects: most of his letters were begging letters.

The point for which the Keiths had been making ever since their escape from Scotland was Spain. Baffled in attempting to cross the Pyrenees, and penniless, they reached Spain by taking Rome on their way, James providing the funds with the difficulty which has been described. From Civita Vecchia they sailed back to Genoa. Now, Jacobite privateers, under

Morgan, Nick Wogan, and other wandering knights, were rendering Genoa unluckily conspicuous by making the harbour their head-quarters. The tiny squadron for years hung about all coasts to aid in a new rising.

The English Minister, D'Avenant, threatened to bombard the town if the Keiths were not expelled, while, if they *were*, the Spanish Minister said that he would insist on the banishment of all the Catalan refugees in Genoa. To oblige the Senate of Genoa in their awkward position, Keith and the Earl departed, and coasted from the town to Valentia in a felucca, sleeping on shore every night.

It is probable that the brothers were suspected of a part in that form of the Jacobite plot which chanced to exist at the moment. From 1688 to 1760, or later, there had been really but one plot, handed on from scheming sire to son, and adapting itself to new conditions as they happened to arise. The study of the plot is, indeed, a pretty exercise in evolution. The object being a Restoration, the most obvious plan is a landing of foreign troops in England, with a simultaneous rising of the faithful. First France is to send the foreign troops; and she did actually despatch them, or try to despatch them, at various times—witness La Hogue, Dunkirk, and Quiberon Bay. When France will not stir, other Powers are approached. Sweden would have played this part, in 1718, but for the death of Charles XII. Then Spain made her effort, in 1719, with the usual results. There were hopes, again, from Russia, as from Sweden, and from Prussia in 1753.

After each failure in this kind, the Jacobites tried 'to do the thing themselves,' as Prince Charles said, either by assassination schemes (which Charles Edward invariably set his foot on), or by a simultaneous rising in London and the Highlands, or by such a rising aided by Scots or Irish troops in foreign service landed on the coast. From the failure at Glenshiel to 1722 this was the aspect of the plot. Atterbury, Oxford, Orrery, and North and Grey were managers in England, Mar and Dillon in Paris, while Morgan and Nick Wogan commanded the poor little fleet.^[9] Ormonde, in Spain, was to carry over Irish regiments in Spanish service. The Jacobites had the ship prepared years before for the expedition of Charles XII., with two or three other vessels. The gallant Nick Wogan, who, as a mere boy, had been pardoned, after Preston, for rescuing a wounded Hanoverian officer under fire, was hovering on the seas from Genoa to the Groin. George Kelly was

going to and fro between Paris and London, ‘a man of far more temper, discretion, and real art’ than Atterbury, says Speaker Onslow.

When the scheme for Ormonde’s amateur invasion failed, a mob-plot of Laver’s followed it; but all was revealed. Kelly and Atterbury were seized; Atterbury was exiled, Kelly lay in the Tower, and Laver was hanged.

Keith says nothing of any part borne by his brother or himself in these feeble conspiracies. One Neynho, arrested in London, averred that the Earl Marischal had been in town on this business, in disguise, and had shared his room. Neynho merely guessed that his companion was the Earl, who certainly was on friendly terms with Atterbury. Long afterwards he wrote (1737): ‘I was told in Italy that Pope had thought of publishing a collection of familiar letters, particularly of ye Bishop; as I was honoured with Many, I sent copys of a part and parts (*sic*) to Pope.’ These, however, could not have been political epistles. The originals must have perished when the Earl burned all his papers, as d’Alembert’s authorities report, in 1745. ^[10]

On the whole, it seems certain that Keith, at least, was not in the plots of 1720-22; Keith, indeed, lay ill in Paris in 1723-24, suffering from a tumour. The Earl now held a commission from Spain, which secured for him a pension, irregularly paid; but, being a Protestant, he never received an active command, except once, in an affair with the Moors. There was no harm, it seemed, in sending a heretic to fight against infidels. His great friend in Spain was the Duchess of Medina Sidonia, who was anxious to convert him.

‘She spoke to him of a certain miracle, of daily occurrence in her country. There is a family, or caste, which, from father to son, have the power of going into the flames without being burned, and who by dint of charms permitted by the Inquisition can extinguish fires. The Earl promised to surrender to a proof so evident, if he might be present and light the fire himself. The lady agreed, but the *questadore*, as these people are called, would never try the experiment, though he had done so on a former occasion; he said that fire had been made by a heretic, who mingled charms with it, and that he felt them from afar.’

This was unlucky, as these families whom fire does not take hold on exist to-day in Fiji, as of old among the Hiripi of Mount Soracte.

The Earl had no trouble with the Inquisition, being allowed to have what books he pleased, as long as he did not lend them to Spanish subjects. 'His religious ideas were far from strict ... but he could not endure to hear these questions touched on when women were present, or the poor in spirit: it was a kind of talk which in general he carefully avoided,'—except among *philosophes*.^[11] Hume tells us that the Earl Marischal and Helvetius thought they were ascribing an excellent quality to Prince Charles when they said that he 'had learned from the philosophers at Paris to affect a contempt of all religion.' It seems improbable that the Earl was more 'emancipated' than Hume, but his wandering life had made him acquainted with the extremes of Scottish Presbyterianism, with the Inquisition in Spain, the devotions of his King in Rome, the levities of Voltaire and Frederick, and all the contemptuous certainties of the Encyclopédistes. The Earl rather loved a bold jest or two, in philosophic company, and his *mots* were not always in good taste. As a Norseman's religion was mainly that of his sword, the Earl's appears to have been that of his character, which was instinctively affectionate, indulgent, and charitable. If he had neither Faith nor Hope, which we cannot assume, he was rich in Charity.

It is, perhaps, no longer possible to trace all the wanderings of the Earl after his brother entered the Russian service in 1728. In those years the exiles were mainly concerned about the quarrels between James and his wife, which had an ill effect on their Royal reputation in Europe. The Courts chiefly solicited for aid at this period were those of Moscow and Vienna. Spain did not pay her pension to James with regularity, and the Earl Marischal, then as later, may have suffered from the same inconvenience. This may account for his return to Rome, where he resided in James's palace, about 1730-34. 'He has the esteem of all that has the honour to be known to him, and may be justly styled the honour of our Cause,' writes William Hay to Admiral Gordon, who represented Jacobite interests in Russia (Feb. 2, 1732). The little Court at Rome was as full of jealousies as if it had been at St. James's. Murray, brother of Lord Mansfield, was Minister, under the title of Lord Dunbar, while James's other 'favourite' Hay (Lord Inverness) was at Avignon out of favour, and had turned Catholic. The pair were generally detested by the other mock-courtiers. These gentlemen had formed themselves into an Order of Chivalry, 'The Order of Toboso,' alluding to their Quixotry. Prince Charles (aged twelve) and the Duke of York (a hero of seven) were the patrons. 'They are the most

lively and engaging two boys this day on earth,' writes William Hay. The Knights of the Order sent to Gordon in Russia their cheerful salutations, signed by 'Don Ezekiel del Toboso' (Zeky Hamilton), 'Don George Keith' (the Earl), and so on. They declined to elect Murray, because he had 'the insolence to fail in his respect to a right honourable lady who is the ever honoured protectress of the most illustrious Order of Toboso,' Lady Elizabeth Caryl. A number of insults to Murray follow in the epistle.^[12]

All this was rather dull, distasteful work for the Earl. He received from James the Order of the Thistle ('the green ribbon'); but, except perhaps at Rome, he would not wear a decoration not more imposing than that of the Toboso Order. Writing to his brother, he drew a pretty picture of the little Duke of York, who was fond of the Earl, and used to bring his weekly Report on Conduct to be criticised and sent on to Keith, far away in Russia. Keith was asked to comment on it, or, if he did not, the Earl was diplomatist enough to do so in his name. Prince Charles the Earl seems to have disliked from the first. He had already, at the age of thirteen, 'got out of the hands of his governors,' the Earl writes, and indeed the Prince's spelling alone proves the success with which he evaded instruction. But, to please the little Duke, the Earl sent for a sword from Russia. The Duke was a pretty child, and wept from disappointment when his elder brother, in 1734, went off to the siege of Gaeta, while he, a warrior of nine, remained in Rome.

The Earl disliked the tiny jealous Court; the impotent cabals, the priests who tried to convert him. Writing to David Hume long afterwards, in 1762, he said, 'I wish I could see you, to answer honestly all your [historical] questions: for, though I had my share of folly with others, yet, as my intentions were at bottom honest, I should open to you my whole budget.' When he wrote thus he had made his peace with England. Why he did so we shall try to point out later.

Always scrupulously honest (except when diplomatic duties forbade, and even then he hated lying), the Earl told his brother that he found the Jacobite Court at Rome no place for an honest man. He does not give details, but he seems to hint at some enterprise which, in his opinion, was not honourable. James, moreover, was sunk in devotion, weeping and praying at the tomb of Clementina. From this uncongenial society the Earl departed, and took up his abode at the Papal city of Avignon, where Ormonde now resided. He liked the charming old place, and thought it

especially rich in original characters. By 1736, however, he had returned to Spain, where, as he said, he was always sure to find 'his old friend, the Sun.' News of the Earl comes through some very harmless correspondence, intercepted at Leyden, in 1736, by an unidentified spy.^[13] Don Ezekiel del Toboso (Hamilton) was now out of favour with James, which, judging by his very foolish letters, is no marvel. He resided at Leyden, corresponding with Ormonde and George Kelly. George, after fourteen years of the Tower, since Atterbury's Plot, had escaped in a manner at once ingenious, romantic, and strictly honourable. Carte, the historian, was another correspondent; but gossip was the staple of their budgets—gossip and abuse of James's favourites, Dunbar and Inverness. In Spain the Earl officially represented James, but his chief employments were shooting and reading. His Spanish pension was unpaid (he had a small allowance from the Duke of Hamilton), and he was minded 'to live contentedly upon a small matter,' he says, rather than to 'pay court in anti-chambers to under Ministers whom I despise.' 'I wo na gie an inch o' my will for an ell o' my wealth,' he remarks, in the Scots proverbial phrase. A Protestant canton in Switzerland would suit him best, where a little money will furnish all that he requires. 'I am naturally sober enough, as to my eating, more as to my drinking, I do not game, and am a Knight Errant *sin amor*, so that I need not great sums for my maintenance.' A Knight *sin amor* the Earl seems usually to have been. He must have been over forty at this time, and he had not yet acquired his celebrated fair Turkish captive. The Earl, however, had not given up all hope of active Jacobite service. 'I propose to try if I can still do anything, or have even the hopes of doing something.' He had a 'project,' and, as far as the hints in his letters can now be deciphered, it was to remove James, or, at all events, Prince Charles, from Rome (a place distrusted by Protestant England), and to settle one or both of them—in Corsica!

The Earl was interested, as a patriotic Scot, in the hanging of Porteous by the Edinburgh mob. 'It's certain that Porteous was a most brutal fellow; his last works at the head of his Guard was not the first time he had ordered his men to fire on the people. I will not call them Mobb, who made so orderly an Execution.'

To this extent may Radical principles carry a good Jacobite! The Earl should have written the work contemplated by Swift, 'A Modest Defence of the Proceedings of the Rabble, in All Ages.'

A quarrel with the Spanish Treasurer, who was short of treasure, ended in somebody assuring the official that the Earl was a man of honour, 'who would go afoot eating bread and water from this to Tartary *con un doblon*.' To Tartary, or near it, the Earl was to go, though he had been invited by Ormonde to Avignon. Till the end of the year 1737, Kelly and others hoped to settle Prince Charles in Corsica, with the Earl for his Minister. Marischal was expected by Ormonde at Avignon, in the last week of December, and thither he went for a month or two, leaving for St. Petersburg in March, to visit his brother. Keith had been severely wounded at the assault on Oczakow, and the Earl found him insisting that he would not have his leg amputated. The Earl took his part, and brought Keith to Paris, where the surgeons saved his leg, but where he had to suffer another serious operation. Thence the devoted brothers went to Barège, where Keith recovered health. He returned to Russia, leaving in the Earl's care Mademoiselle Emetté, a pretty Turkish captive child, rescued by him at the sack of Oczakow, and Ibrahim, another True Believer. These slaves, says a friend who gave information to d'Alembert, were treated by the Earl as his children. He educated them, he invested money in their names (probably when he was in the service of Frederick the Great), and he cherished a menagerie of young heathens, whom his brother had rescued in sieges and storms of towns. One, Stepan, was a Tartar: another is declared to have been a Thibetan, and related to the Grand Lama. The Earl was no proselytiser, and did not convert his Pagans and Turks. It is said that he was not insensible to the charms of pretty Emetté.

'Can I never inspire you with what I feel?' he asked.

'*Non!*' replied the girl, and there it ended.

The Earl made a will in her favour, in 1741, and she later—much later—married M. de Fromont. The love story is not very plausible, before 1741, as Emetté was still a girl when she accompanied the Earl to Paris, during his Embassy, in 1751.

The movements of the Earl are obscure at this period, but in 1742-43 he was certainly engaged for the Jacobite interest in France, residing now at Paris, now at Boulogne. The unhappy 'Association' of Scottish Jacobites had been founded in 1741. Its promoters were the inveterate traitor, Lovat, and William Macgregor, of Balhaldie, who, since 1715, had lived chiefly in

France, and was a trusted agent of James. Balhaldie's character has been much assailed by Murray of Broughton, who was himself connected with the Association. As far as can be discovered Balhaldie was sanguine, and even of a visionary enthusiasm, when enterprises concocted by himself were in question. The adventures of other leaders, especially adventures not supported by France, he distrusted and thwarted. The loyal Lochiel and the timid Traquair were also of the Association, which Balhaldie amused in 1742 with hopes of a French descent under the Earl Marischal. Balhaldie had promised to the French Court 'mountains and marvels' in the way of Scottish assistance, and the Earl 'treated his assertion with the contempt and ridicule it deserved,' says Murray of Broughton. The Earl's own letters show impatience with Balhaldie and Lord Sempil, James's other agent in Paris. Thus, on February 12, 1743, the Earl writes from Boulogne to Lord John Drummond, whose chief business was to get Highland clothes wherein the Duke of York might dance at the Carnival. The Earl protests, in answer to a remark of Sempil's, that he 'has more than bare curiosity in a subject where the interest of my King and native country is so nearly concerned (not to speak of my own), where I see a noble spirit, and where I am sensible a great deal of honour is done me, and I add, that I still hope these gentlemen will do me the honour and justice to believe that I shall never fail either in my duty to my King and country, my gratitude to them for their good opinion, or in my best endeavours to serve.' All this was in reply to Sempil's insinuation that the Scottish Jacobites thought the Earl lukewarm. Murray confirms the Earl by telling how Balhaldie tried to stir strife between the Earl and the Scots, who revered him, though Balhaldie styled him 'an honourable fool.'^[14]

Lord John Drummond suggested to James's secretary, Edgar, that the Earl should supersede Balhaldie, 'who had been obliged to fly the country in danger of being taken up for a Fifty pound note.' Lord John's advice was excellent. The Earl, and he alone, was the right man to deal with the party in Scotland, who could trust his sense, zeal, and honour. But James, far away in Rome, could never settle these distant and embroiled affairs. He went on trusting Balhaldie, who was also accepted by the party in England. Had James cashiered Balhaldie and instated the Earl, matters would have been managed with discretion and confidence. The Earl was determined not to beguile France into an endeavour based on the phantom hosts of Balhaldie's imagination. Had he been minister, it is highly probable that nothing would

have been done at all, and that Prince Charles would never have left Italy. For Balhaldie continued to represent James in France, and Balhaldie it was, with Sempil, who induced Louis XV. to adopt the Jacobite cause, and brought the Prince to France in 1744. While his father lived, Charles never returned to Rome.

On December 23, 1743, James sent to the Duke of Ormonde, an elderly amorist at Avignon,^[15] his commissions as General of an expedition to England and as Regent till the Prince should join. The Earl received a similar commission as General of a diversion, 'with some small assistance,' to be made in Scotland. The Earl was at Dunkirk, eager to sail for Scotland, by March 7, 1744, and Charles was somewhere, *incognito*, in the neighbourhood. But the Earl, as he wrote to d'Argenson, had neither definite orders nor money enough; in short, as usual, everything was rendered futile by French shilly-shallying and by the accustomed tempest. D'Alembert and others assert that Charles asked the Earl to set forth with him alone in a sailing-boat, to which the Earl replied that, if he went, it would be to dissuade the Scottish from joining a Prince so brave but so ill-supported. It is certain that d'Argenson told Marshal Saxe that the Prince ought to retire to a villa of the Bishop of Soissons, with the Earl for his *chaperon*. The Earl was still anxious for an expedition in force, but d'Argenson distrusted his information on all points. Charles declined to go and skulk at the Bishop's, and wrote that 'if he knew his presence unaided would be useful in England he would cross in an open boat.'^[16]

On this authentic evidence the Earl was anxious to make an effort, and Charles's remark about going alone in an open boat was conditional—*s'il savait que sa présence seule fut utile en Angleterre*. But no energy, no hopes, no courage, could conquer the irresolution of France. By April Prince Charles was living, *très caché*, in Paris. Thus his long habit of hiding arose in the *incognito* forced on him by the Ministers of Louis XV. The Prince, as he writes to his father (April 3, 1744), was 'goin about with a single servant bying fish and other things, and squabbling for a peney more or less.' He was anxious to make the campaign in Flanders with the French army, 'and it will certainly be so if Lord Marschal dose not hinder it.... He tels them that serving in the Army in flanders, it would disgust entirely the English,' in which opinion the Earl may have been wrong. Charles accuses the Earl of stopping the Dunkirk expedition (and here d'Alembert

confirms), 'by saying things that discouraged them to the last degree: I was plagued with his letters, which were rather Books, and had the patience to answer them, article by article, striving to make him act reasonably, but all to no purpose.'^[17]

It was not easy to 'act reasonably,' where all was a chaos of futile counsels and half-hearted French schemes. They would and they would not, in the affair of the expedition of March 1744. We find the Earl now urging despatch, now discouraging the French, and, on September 5, 1744, he writes to James, from Avignon, 'there was not only no design to employ me, but there was none to any assistance in Scotland.'^[18] The Earl believed that the Prince's incognito was really imposed on him by the devices of Balhaldie and Sempil, 'to keep him from seeing such as from honour and duty would tell him truth.'

Through such tortuous misunderstandings and suspicions on every side, matters dragged on till Charles forced the game by embarking for Scotland secretly in June 1745. The Earl Marischal was the man whom he sent to report this step to Louis XV. 'I hope,' Charles writes to d'Argenson, 'you will receive the Earl as a person of the first quality, in whom I have full confidence.' The Earl undertook the commission.^[19] On August 20, 1745, he sent in a *Mémoire* to the French Court. Lord Clancarty had arrived, authorised (says the Earl) to speak for the English Jacobite leaders, the Duke of Beaufort, the Earl of Lichfield, Lord Orrery, Lord Barrymore, Sir Watkin Williams Wynne, and Sir John Hinde Cotton. They offered to raise the standard as soon as French troops landed in England. When they made the offer, the English Jacobites (who asked for 10,000 infantry, arms for 30,000, guns, and pay) did not know that Charles had landed in Scotland. D'Argenson naturally asked for the seals and signatures of the English leaders, as warrants of their sincerity. He could not send a *corps d'armée* across the Channel on the word of one individual, and such an individual as the profane, drunken, slovenly, one-eyed Clancarty. The Earl, on October 23, 1745, tried to overcome the scruples of d'Argenson, but in vain.^[20] Clancarty, it is pretty clear, came over as a result of the persuasions of Carte, the historian, in whom the leading English Jacobites had no confidence. 'The wise men among them would neither trust Lord Clancarty's nor Mr. Carte's discretion in any scheme of business,' says Sempil to James (September 13, 1745).

Sempil was ever at odds with the Earl, who, says Sempil, 'insists on great matters.' French policy was to keep sending small supplies of money and men to support agitation in Scotland. The Earl did not want mere agitation and a feeble futile rising; he wanted strong measures, which might have a chance of success. 'He can trust nobody,' says Sempil, 'and is persuaded that the French Court will sacrifice our country, if his firmness does not prevent it.' The Earl was right; what he foresaw occurred. Sempil, however, was not far wrong, when he observed that the Prince was already engaged, and a little help was better than none. 'I am sorry to see my old friend so very unfit for great affairs,' writes Sempil. The Earl had ever been adverse to a wild attempt by the Prince, as a mere cause of misery and useless bloodshed. He probably thought that no French support and a speedy collapse of the rising were better than trivial aid, which kept up the hearts of the Highlanders, and urged them to extremes.

By October 19 the Duke of York was flattered with hopes of sailing at the head of a large French force. The force hung about Dunkirk for six months, doing nothing, and then came Culloden. The Duke was prejudiced against Sempil and his friend Balhaldie, and already there was a split in the party, Sempil on one side, the Earl Marischal on the other. George Kelly returned from Scotland, as an envoy to France, but Sempil would not trust him even with the names of the leading English Jacobites. The secrecy insisted on by Sir Watkin Williams Wynne, Lord Barrymore, the Duke of Beaufort, and the others was kept up by Sempil even against Prince Charles himself. This naturally irritated the Earl, and, what with Jacobite divisions in France, and French irresolution, Marischal had to play a tedious and ungrateful part. James expected him to join the Prince, but he, for his part, gave James very little hope of the success of the adventure.^[21] James himself, with surprising mental detachment, admitted that the best plan for the English Jacobites was 'to lie still,' and make no attempt without the assistance from France which never came.

The Earl disappears from the diplomatic scene, on which he had done no good, in the end of 1745. He obviously attempted to settle quietly in Russia with his brother. But the Empress 'would not so much as allow Lord Marischal to stay in her country,' wrote James to Charles, in April 1747. Ejected from the North, he sought 'his old friend, the sun,' in the South, at Treviso, and at Venice. The Prince, in August 1747, wrote from Paris

implored the Earl to join him, for the need of a trustworthy adviser was bitterly felt. The Earl replied with respect, but with Republican brevity, pleading his 'broken health,' and adding, 'I did not retire from all affairs without a certainty how useless I was, and always must be.'

At Venice the Earl entertained a moody young exile, who tells a story illustrating at once his host's knowledge of life, the strictness of his morality, and his freedom from a tendency to censure the young and enterprising.^[22]

From Venice the much-wandering Earl retired to his most sure and hospitable retreat. He joined his brother, who had now entered the service of Frederick the Great. He reached Berlin in January 1748. Frederick, asking first whether his estates had been confiscated, made him a pension of 2,000 crowns. Frederick loved, esteemed, sheltered, and employed the veteran, 'unfit for affairs' as he thought himself. No doubt Frederick's first aim was to attach to himself so valuable an officer as Keith, by showing kindness to his brother. But the Earl presently became personally dear to him, as a friend without subservience, and a philosopher without vanity or pretence. In his new retreat the Earl was not likely to listen to the prayers of Prince Charles, who, being now a homeless exile, implored the old Jacobite to meet him at Venice. Henry Goring carried the letters, in April 1749, and probably took counsel with the veteran. Nothing came of it, except the expulsion from the Prince's household at Avignon of poor George Kelly, a staunch and astute friend, who was obnoxious to the English Jacobites. Since 1717 Kelly had served the Cause, first under Atterbury, then—after fourteen years' imprisonment—in France, Scotland, and as the Prince's secretary. He had been Lord Marischal's ally in 1745, but Rousseau says that the Earl's failing was to be easily prejudiced against a man, and never to return from his prejudice. Kelly's letter to Charles might have disarmed him. 'Nobody ever had less reason or worse authority than Lord Marischal for such an accusation; for your Royal Highness knows well I always acted the contrary part, and never failed representing the advantage and even necessity of having him at the head of your affairs.... His Lordship may think of me what he pleases, but my opinion of him is still the same.' There seems to be no doubt that the Earl had written to Floyd (whom he commends to Hume as an honest witness) to say that 'from a good hand' he learned that Kelly 'opposed his coming near the Prince,' and had spoken of

him as ‘a Republican, a man incapable of cultivating princes.’ The Earl was ‘incapable of cultivating princes,’ and Rousseau esteemed him for the same. But it was under Kelly’s influence that Charles, in 1747, tried to secure the society and services of the Earl. He had been prejudiced (as Rousseau says he was capable of being), probably by Carte the historian. Years afterwards, when the Earl had disowned Charles, Kelly returned to the Prince’s household. He never had a stauncher adherent than this Irish clergyman of exactly the same age as his father. History, like the Earl Marischal, has been unduly prejudiced against honest George Kelly.^[23]

II

THE EARL IN PRUSSIAN SERVICE

About the Earl's first years in the company of the great Frederick little is known or likely to be known. *Deus nobis hæc otia fecit*, he may have murmured to himself while he refused the Prince's insistent prayers for his service, and put his Royal Highness off in a truly Royal way, with his miniature in a snuff-box of mother-of-pearl. The old humourist may have reflected that men had given lands and gear for the cause, and now, like the representative of Lochgarry, have nothing material to show for their loyalty, save an inexpensive snuff-box of agate and gold. No, the Earl would not travel from Venice in 1749 to meet the Prince.

His name occurs in brief notes of Voltaire, then residing with Frederick, and quarrelling with his Royal host. Voltaire kept borrowing books from the Scottish exile, books chiefly on historical subjects. If we may believe Sir Charles Hanbury Williams, then at Berlin, the celebrated Livonian mistress of Keith caused quarrels between him and his brother, and even obliged them to live separately.^[24] The Earl gave much good advice to Henry Goring, the Prince's envoy at that time, and if he was indeed on bad terms with his brother (these bad terms cannot have lasted long), he may have been all the better pleased to go as Frederick's ambassador to Versailles in August 1751. Thither he took his pretty Turkish captive, and all his household of Pagans, Mussulmans, Buddhists, and so forth. I have elsewhere described the Earl's relations with Prince Charles, then lurking in or near Paris; his furtive meetings with Goring at lace shops and in gardens, his familiarity with Young Glengarry, who easily outwitted the Earl, and his unprejudiced tolerance of a perfectly Fenian plot—the Elibank Plot—for kidnapping George II., Prince Fecky, and the rest of the Royal Family. The Earl merely looked on. He gave no advice. His ancient memories could not enlighten him as to how the Guards were now posted. 'What opinion, Mr. Pickle,' he said to Glengarry, 'can I entertain of people that proposed I should abandon my Embassy and embark headlong with them?' The Earl had found a haven at last in Frederick's favour. He was willing to help the

cause diplomatically, to send Jemmy Dawkins to Berlin, to sound Frederick, and suggest that, in a quarrel with England, the Jacobites might be useful. He was ready enough to dine with the exiles on St. Andrew's Day, but not to go further. When Charles broke with the faithful Goring in the spring of 1754, the Earl broke with *him*, rebuked him severely, and never forgave him. He had never loved Charles; he now regarded him as impossible, even treacherous, and ceased to be a Jacobite.

The nature of his charges against the Prince will appear later. Meanwhile, as the Prince had behaved ill to Goring, who fell under his new mania of suspicion, as he declined to cashier his mistress, Miss Walkinshaw, in deference to English and Scottish requests, as he was a battered, broken wanderer, *sans feu ni lieu*, the Earl abandoned him to his fate, and even, it seems, officially 'warned the party against being concerned with him.' After forty years of faithful though perfectly fruitless service, the Earl apparently made up his mind to be reconciled, if possible, to the English Government. Though his appointment as ambassador had been a direct insult to Frederick's uncle, George II., the great diplomatic revolution which brought Prussia and England into alliance was favourable to the Earl's prospects of pardon.

He probably accepted the Embassy not without hopes of being able to do something for the Cause. James certainly took this view of the appointment. But the end had come. The retreat of Charles in Flanders had been detected at last by the English. The English dread of Miss Walkinshaw, and the quarrel over that poor lady, made themselves heard of in the end of 1753. By January 17, 1754, we find Frederick writing to the Earl that he 'will secretly be delighted to see him again.' Frederick bade Marshal Keith send an itinerary of the route which the Earl 'will do well to follow' on his return to Prussia. On the same day Keith wrote to his brother the following letter, which shows that their affection, if really it had been impaired, was now revived:—[\[25\]](#)

'17 January, 1754.

'I'm glad my dearest brother says nothing of his health in the letter ... 27th Dec., for Count Podewils had alarmed me a good deal by telling me that you had been obliged more than once to send Mr. Knyphausen in your place to Versailles, on occasion of

incommodities; and tho' I hope you would not disguise to me the state of your health ... yet a conversation I had some days ago with the King gives me still reason to suspect that it is not so good as I ought to wish it. He told me that for some time past you had solicited him to allow you to retire ... and at your earnest desire he had granted your request, but at the same time had acquainted you how absolutely necessary it was for his interest that you should continue in the same post till the end of harvest, by which time he must think of some other to replace you; he asked me at the same time if your intention was to return here; to which I answer'd ... it was, tho' I said this without any authority from you ... he told me that in that case he thought you should keep the time of your journey and route as private as possible, and that after taking leave of the Court of France you should give it out that your health required your going for some time to the S. of France, that it was easy on the way to take a cross road to Strasbourg and Francfort, and after passing the Hessian dominions to turn into Saxony, by which you would evite all the Hanoverian Territories and arrive safely here. Everything he said was more like a friend than a sovereign, and showed a real tenderness for your preservation....'

Frederick did not wish his friend to run any risk of being kidnapped in Hanoverian territory, by the minions of the Elector. The Earl could not be allowed to return at once, for the clouds over Anglo-Prussian relations were clearing, while England was at odds with France, both about the secret fortifying of Dunkirk, contrary to treaty, about the East Indies, and about North America. So Frederick philosophised, in letters to the Earl, concerning the disagreeable yoke he had still to bear, and about the inevitable hardships of mortal life in general. He also asked the Earl to find him a truly excellent French cook. On March 31, Frederick offered the Earl the choice of any place of residence he liked, and expressed a wish that he could retire from politics. He foresaw the crucial struggle of his life, the Seven Years' War. 'But every machine is made for its special end: the clock to mark time, the spit to roast meat, the mill to grind. Let us grind then, since such is my fate, but believe that while I turn and turn by no will of my own, nobody is more interested in your philosophical repose than your friend to all time and in all situations where you may find yourself.'

Frederick is never so amiable as in his correspondence with the old Jacobite exile.

At this period, Frederick gave the Earl information of Austrian war preparations, for the service of the French Ministry. Saxony and Vienna excited his suspicions. He did not yet know that he was to be opposed also to France. He was occupied with dramatists and actors, 'more amusing than all the clergy in Europe, with the Pope and the Cardinals at their head.' He has to diplomatised between Signor Crica and Signora Paganini, but hopes to succeed before King George has had time to corrupt his new Parliament. Happier letters were these to receive than the heart-broken appeals which rained in from Prince Charles, letters which the Earl had hoped to escape by retiring from his Embassy. Here his negotiations 'had embroiled him with the cooks of Paris,' but he had acquired the friendship of d'Alembert, whom he introduced to Frederick. The King thought d'Alembert 'an honest man,' and agreed with the Earl's preference for heart above wit. 'They who play with monkeys will get bitten,' which refers to Frederick's quarrel with Voltaire. The Earl warned the wit that some big Prussian officer would probably box his ears if he persisted in satirising his late host. 'Rare it is,' says Frederick, 'to find, as in you, the combination of wit, character, and knowledge, and it is natural that I should value you all the more highly.'

In May 1754, the Earl, while still pressing to be relieved from duty, was eager to undertake any negotiations as to an *entente* between Prussia and Spain, a country which he loved. There was an opportunity—General Wall, of an Irish Jacobite house, being now minister in the Peninsula.

The Earl left Paris in the end of June (carrying with him to Berlin poor Henry Goring, who was near death), and accepted the Government of Neufchâtel. While (February 8, 1756) Frederick's throne was 'threatened by Voltaire, an earthquake, a comet, and Madame Denis,' the Earl was trying to soothe Protestant fanaticism, then raging in his little realm.

'They will tell you, my dear Lord,' writes Frederick, 'that I am rather less Jacobite than of old. Don't detest me on that account.' It is known, from a letter of Arthur Villettes, at Berne (May 28, 1756), to the English Government, that the Earl was making no secret of his desire to be pardoned.^[26] The Earl spoke of the Prince, now, with 'the utmost horror and detestation,' declaring that since 1744 'his life had been one continued

scene of falsehood, ingratitude and villainy, and his father's was little better.'

Such, alas! are the possibilities of prejudice. The Earl accused Charles of telling the Scots, previous to his expedition in 1745, that the Earl approved of it. There is no evidence in Murray of Broughton that Charles ever hinted at anything of the kind. Charles's life, from 1744 till he returned to France, is minutely known. He had not been false and villainous. He had been deceived on many hands, by Balhaldie (as the Earl strenuously asserted), by France, by Macleod, Traquair, Nithsdale, Kenmure, by Murray of Broughton, and he inevitably acquired a habit of suspicion. Lonely exile, bitter solitude, then corrupted and depraved him; but the Earl's remarks are much too sweeping to be accurate, where we can test them. In the case of James we can test them by his copious correspondence. His letters are not, indeed, those of a hero, but of a kind and loving father, who continually impresses on Charles the absolute necessity of the strictest justice and honour, especially in matters of money, 'for in these matters both justice and honour is concerned' ('Memorials,' p. 372, Aug. 14, 1744). As to politics, James was absolutely opposed to any desperate adventure, any hazarding, on a slender chance, of the lives and fortunes of his subjects. His temper, schooled by long adversity, made him even applaud the reserve of his English adherents, and excuse, wherever it could be excused, the conduct of France, and attempt, by a mild tolerance, to soothe the fatal jealousies of his agents. No Prince has been more ruthlessly and ignorantly calumniated than he whose 'ails' and sorrows had converted him into a philosopher no longer eager for a crown too weighty for him, into a devout Christian devoid of intolerance, and disinclined to preach.

The Earl was justified in forsaking a Cause which Charles had made morally impossible. But he believed, in spite of Charles's contradiction, that he had threatened to betray his adherents. This prejudice is the single blot on a character which, once animated against a man, never forgave.

The correspondence of Frederick with his Governor of Neufchâtel is scanty: he had other business in hand—the struggle for existence. On July 8, 1757, he writes from Leitmentz, thanking the Earl for a present of peas and chocolate. On October 19, 1758, he sends the bitter news of the glorious death of Marshal Keith, and on November 23 offers his condolences, and speaks of his unfortunate campaign.

Probus vixit, fortis obiit, was the Earl's brief epitaph on his brother. His one close tie to life was broken. That younger brother, who had fished and shot with him, had fought at his side at Sheriffmuir, had shared the dangers of Glenshiel and the outlaw life, who had voyaged with him in so many desperate wanderings, to save whom he had crossed Europe—the brother who had secured for him his 'philosophic repose'—was gone, leaving how many dear memories of boyhood in Scotland, of common perils, and common labours for a fallen Cause!

And there followed—oh philosophy!—a squabble with Keith's mistress about the frugal inheritance of one who scorned to enrich himself! 'My brother had just held Bohemia to ransom, and he leaves me sixty ducats,' wrote the Earl to Madame Geoffrin. In December 1758, Frederick determined to send the Earl to Spain, where 'nobody is so capable as you of making himself beloved.' He wanted peace, but peace with honour. The Earl was merely to watch over Frederick's interests, and to sound Spain as to her mediation. The King feared a separate Anglo-French peace, with Prussia left out.

By January 6, 1759, Frederick was trying to secure the Earl's pardon in England, and wrote to Knyphausen and Michell in London. The death of Lord Kintore, the Earl's cousin, devolved an estate upon him. This Marischal wished to obtain, but he had not changed sides in hope of gaining these lands. Andrew Mitchell wrote to Lord Holderness, on January 8, 1759, from Breslau, saying that Frederick had remarked, 'I know Lord Marischal to be so thorough an honest man that I am willing to be surety for his future conduct.' He enclosed a letter to be discreetly submitted to George II., submitting Frederick's desire for the Earl's pardon. By February 5, news reached Prussia that George had graciously consented.

There must have been a delay caused by formalities, for the Earl did not send his letter of thanks from Madrid to Sir Andrew Mitchell 'gratefully acknowledging the goodness of the King' till August 24, 1759.

So there was 'the end of an auld sang.' Charles was hanging about the French coast, for the expedition under Conflans was preparing to carry him, as he hoped, to England: James, in Rome, was receiving his sanguine letters. It was 1744 over again; but the Earl was now of the other party, and James must have felt the loss severely. The bell which was regularly rung at

home for the Earl's birthday, cracked when the news came to Aberdeenshire. 'I'll never say "cheep" for *you* again, Earl Marischal!'—so some local Jacobite translated the broken voice of the old bell. But the Earl manifestly did not win his pardon by discovering and betraying the secret of the family compact between France and Spain, as historians have conjectured. Dates render this, happily, impossible.^[27]

The Earl took a humorous view of Jacobite French adventures. 'The conquest of Ireland by M. Thurot has miscarried,' he writes to Mitchell (April 2, 1760).^[28] Thurot had but two small ships.

The Earl now desired to visit England on his private affairs, and Frederick granted permission. He went in peace, where he had gone in war, but Scotland no longer pleased him. True, his Bill was carried through Parliament, admitting him to the Kintore estates, and, from the Edinburgh newspapers, he heard of a new honour—he was elected Provost of Kintore!

'I had for me all the blew bonnets to a man, and a Lady whose good heart I respect still more than her birth, tho it be the very highest, she made press me (*sic*) to ask a pension, assuring me it would cost but one word. I excused myself as having no pretention to merit it. She bid me not name her, in leaving you to guess I do not injure her. She said the same also to Baron Kniphausen.'

Years later, from Neufchâtel, he wrote to Andrew Mitchell, 'The Provost of Kintore presents his compliments,' adding some congratulations on Mitchell's pension.

Not even the Provostship of Kintore reconciled the Earl, a changed man, to a changed Scotland. Conceivably he was not welcomed by the Jacobite remnant around the cracked bell. Bigotry, hypocrisy, and intolerable sabbatarianism were what the Earl disliked in his own country. He was also resolute against marrying, declined *faire l'étalon*, as Frederick delicately put it. Early in 1761, he made up his mind to return to Neufchâtel, and to compose the quarrels of Protestants and heretics. At Neufchâtel the Earl made an acquaintance rather disagreeable to most English tastes, the moral and sensible Jean-Jacques Rousseau. The philosopher's account of the Earl is in his 'Confessions.' According to him, Marischal, beginning life as a Jacobite, 'se dégoûta bientôt,' which is not historically accurate. 'La grande âme de ce digne homme toute républicaine' could not endure 'l'esprit

injuste et tyrannique' of King James! The wicked people of Neufchâtel, whom the Earl 'tried to make happy,' 'kicked against his benevolent cares.' A preacher 'was expelled for not wanting many persons to be eternally damned.'

Rousseau went to Neufchâtel to escape the persecution which never ceased to attack this virtuous man. Frederick allowed him to hide his virtues in this hermitage, and made some rather slender offers of provision (twelve *louis*, says Rousseau), which exasperated the sage. On seeing the Earl his first idea was to weep (Jean-Jacques perhaps followed Richardson in his tearfulness), so extremely emaciated was the worthy peer. Conquering his 'great inclinations to cry,' with an effort, Rousseau admired the Earl's 'open, animated, and noble physiognomy.' Without ceremony, and acting as a Child of Nature, Jean-Jacques went and sat down beside the Earl on his sofa. In his noble eye Rousseau detected 'something fine, piercing, yet in a way caressing.' He became quite fond of the Earl. Wordsworth has justly remarked that you seldom see a grown-up male weeping freely on the public highway. But, had you been on the road between Rousseau's house and the Earl's you might have seen the author of the 'Nouvelle Héloïse' blubbering as he walked, shedding *larmes d'attendrissement*, as he contemplated the 'paternal kindnesses, amiable virtues, and mild philosophy of the respectable old man.'

I know not whether I express a common British sentiment, but the tears of Jean-Jacques over our Scottish stoic awaken in me a considerable impatience. The Earl was incapable, for his part, of lamentations. Jean-Jacques was too 'independent' to be the Earl's guest. Later, he conceived in that bosom tingling with sensibility that the Earl had been 'set against him' by Hume—'Ils vous ont trompé, ces barbares; mais ils ne vous ont pas changé.' It was true, the Earl could break Prince Charles's heart, but he always made allowances for Jean-Jacques. Rousseau, not knowing that the Earl's heart was true to him, writes: 'Il se laisse abuser, quelquefois, et n'en revient jamais.... Il a l'humeur singulière, quelque chose de bizarre et étrange dans son tour d'esprit. Ses cadeaux sont de fantaisie, et non de convenance. Il donne ou envoie à l'instant ce qui lui passe par tête, de grand prix, ou de nulle valeur indifféremment.' Nevertheless the Earl was the cause of Rousseau's 'last happy memories.'

The Earl left Neufchâtel; he arranged for Rousseau's refuge in England. David Hume, who was dear to the Earl, arranged the reception of Rousseau in England, and every one has heard of Rousseau's insane behaviour, and of the quarrel with Hume. Rousseau wanted to write the History of the Keiths, and asked the Earl for documents. Jean-Jacques was hardly the man to write Scottish family history, and the documents were never entrusted to him.

Here follows the letter on the topic of Rousseau, which the Earl wrote to Hume:—

‘Jean Jaques Rousseau persecuted for having writ what he thinks good, or rather, as some folks think, for having displeased persons in great power who attributed to him what he never meant, came here to seek retreat, which I readily granted, and the King of Prussia not only approved of my so doing, but gave me orders to furnish him his small necessaries, if he would accept them; and tho that King's philosophy be very different from that of Jean Jaques, yet he does not think that a man of an irreproachable life is to be persecuted because his sentiments are singular, he designs to build him a hermitage with a little garden, which I find he will not accept, nor perhaps the rest which I have not yet offered to him. He is gay in company, polite, and what the French call *aimable*, and gains ground dayly in the opinion of even the clergy here; his enemys else where continue to persecute him, he is pelted with anonymous letters, this is not a country for him, his attachment and love to his native Tounes is a strong tye to its neighbourhood, the liberty of England, and the character of my good and honored friend D. Hume F i D r^[29] (perhaps more singular than that of Jean Jaques, for I take him to be the only historian impartial) draws his inclinations to be near to the F i D r, for my part, tho it be to me a very great pleasure to converse with the honest savage, yet I advise him to go to England, where he will enjoy *Placidam sub libertate quietem*. He wishes to know, if he can print all his works, and make some profit, merely to live, from such an edition. I entreat you will let me know your thoughts on this, and if you can be of use to him in finding him a bookseller to undertake the work, you know he is not interested, and little will content him. If he goes to Brittain, he will be a

treasure to you, and you to him, and perhaps both to me (if I were not so old).

‘I have offered him lodging in Keith Hall. I am ever with the greatest regard your most obedient servant

M. [\[30\]](#)

‘Oct. 2, 1762.’

Rousseau never went so far north, never took Keith Hall for a hermitage, nor scandalised the Kirk Session. After his quarrel with Hume, the Earl did not write freely to him, saying that he wrote little to anyone. He thought, he tells another correspondent, of ‘turning bankrupt in letters.’ ‘My heart is not the dupe of these pretences,’ sighs Rousseau. He took money from the Earl, he took money at many hands. He sent a long deplorable lamentation to Marischal: the Earl has been deceived, a phantom has been exhibited to him as his fond J.-J. R. Probably there was no answer, but the Earl bequeathed to him his watch as a *souvenir*. ‘Jean Jacques est trop honête homme pour ce monde, qui tâche a tourner en ridicule sa delicatesse,’ so the Earl had written from London to Hume in Paris.

He appears, when in England, to have met Hume at Mitcham, and he was devoted to the stout, smiling sceptic, whom he called ‘*Defensor Fidei*.’

In 1764 the Earl left Neufchâtel for Potsdam, where Frederick built him a house. This he describes in a letter to Hume. The following note (1765) clearly refers to Hume’s report of Helvetius’s absurd anecdote, that Prince Charles showed the white feather on starting for Scotland, and had to be carried on board, tied hands and feet, by Sheridan, George Kelly, and others of the Seven Men of Moidart. Hume repeated this incredible nonsense in a letter to Sir John Pringle, who clearly distrusted the evidence. [\[31\]](#) This appears to be the ‘certain history’ which the Earl asks Hume to get from Helvetius, who had been ‘assured of the fact.’ By whom?

To disseminate this fourth-hand scandal of his former master—scandal which, if true, he himself was in a better position to have heard than Helvetius—was perhaps the least worthy act of the Earl.

The David Floyd of whom he writes occurs often in the Stuart Correspondence. He was of the old St. Germain set, being the son of that

Captain Floyd, so much disliked by Lord Ailesbury, who came and went from England to James II., after 1688.

In another letter the Earl advises Hume to consult Floyd on events ‘of which you took a confused note from me at Mitcham.’ Among these facts may be the story, given by Hume on the Earl’s authority, of Charles’s presence at the coronation of George III. No other evidence of this adventure exists.

Here follows the letter:—

‘29 Aprile.

‘In answer to your question, the Don quixotisme you mention never entered into my head. I wish I could see you to answer honestly all your questions, for tho I had my share of follies with others, yet as my intentions were at bottom honest, I should open to you my whole budget, and lett you know many things which are perhaps not all represented, I mean not truly. I remember to have recommended to your acquaintance Mr. Floyd, son to old David Floyd, at St. Germaines, as a man of good sense, honor, and honesty: I fear he is dead, he would have been of great service to you in a part of your history since 1688. *A propos of history when you see Helvetius, tell I desired you to enquire of him concerning a certain history.* I fancy he will answer you with his usuall Frankness.’

This, then, must refer to Helvetius’s lie about the Prince’s cowardice.



Walker & Boutall, ph. sc.

The Earl Marischal

circ. 1750.

The following letters to Hume illustrate the rather blasphemous *bonhomie* of the Earl, who, because of Hume's genius and fatness, was

wont to speak of him as ‘*verbum caro factum.*’ He writes of his new hermitage at Potsdam, of his garden, his favourite books (just what we might expect them to be—Montaigne, Swift, Ariosto), of Voltaire, d’Argens, and d’Alembert. He incidentally shows, *à propos* of a fabled discovery, that Mr. Darwin’s theory would not have astonished him much:

‘Potsdam, ce 11 Sep. 1764.

‘Le plaisir de votre lettre, et l’assurance d’amitié de Madame Geaufrin et de Monsieur d’Alembert, a été bien rabattu par ce que vous me dites de l’état de la santé de M. d’Alembert; sobre comme il est a table, comment peut il avoir des meaux d’estomac: il faut qu’il travaille trop de la tête à des calculs, ou qu’il allume sa chandelle par les deux bouts, c’est cela sans doute. Renvoyez-le ici a mon hermitage, je le rendray à sa, ou ses, belles fraies, reposé, se portant a merveille.

‘A propos de mon hermitage dont M^r de Malsan vous a fait la description, il a voyagé avec Panurge, et a été chez *Oui-dire tenant école de temoignerie*, primo, ma petite maison ne subsiste pas, par consequence mon grand hôte ne pouvoit m’y honorer de sa presence.

‘2^o. Elle ne sera pas si petite, ayant 89. pieds de façade, avec deux ailes de 45. pieds de long; le jardin est petit, assez grand cependant pour moy, et j’ay une clef pour entrer aux jardins de Sans-Soucy. Il y aura une belle salle avec une vestibule, et un cabinet assez grand pour y mettre un lit, tout a part des autres appartements, si d’Alembert venoit il pouvoit y loger et prendre les eaux, mais il est plus que probable que le Grand Hôte me disputerait et emporterait cet avantage. En attendant son arrivee, j’y logerais mon ancien ami Michel de Montagne, Arioste, Voltaire, Swift, et quelques autres.

‘Saul et David y seront aussi, quoyque j’aimerais mieux David F i D r—m, surtout en persone, car le Verbum j’ay, la Caro me manque. Je regrette bien de n’avoir pas sçu que M^e de Boufflers étoit en hollande quand j’y ay passé, j’aurois été heureux de la

connoître, par tout le bien que tout le monde dit d'elle. Son ami et le mien Jean Jaques à été en chemin pour les eaux en Savoye.

'Voltaire est un antichretien enthousiaste, j'en ay connu plus d'un et qui plus est sans être poète: je ne sais rien de son dictionnaire que j'ay cherché ici inutilement, il viendra, toutes les choses nous viennent, un peu plus tard a la vérité par ou vous êtes; mais la Société dont vous avez le bonheur de jouir ne nous viendra pas: comme je suis tres vieux, lourd, pesant, bon a rien, il ne faut que Placidam sub libertate Quietem; mon hôte, pour me la donner plus entierement, me batit ma maison; elle sera achevée en trois mois; meublée au printems: et j'y pourray loger Octobre 1765.

'Faites moy envisager comme pas impossible que vous pourriez y venir, que je serois bien content, bon soir.

'Mes respects a Madame Geaufrin.

'Dites a d'Alembert que j'ay une vache pour lui donner de bon lait, cela le tentera plus que le cent mil roubles qu'on lui à offert. N'a pas bon lait qui veut, et vir sapiens non abhorrebit eam, come disoit Maitre Janotus de ses chausses....

'd'Argens est parti hier chercher le soleil de Provence, avant que de se mettre en voyage, il se fit tâter le poux par son medecin a plusieurs reprises, le priant toujours bien fort de le dire de bon foye s'il etoit en etat de faire le voyage, les chevaux étoient deja au carosse. Il dit qu'il reviendra, et n'en sait rien; le soleil ne le guerira pas de sa hipocondrie, il reviendra chercher le froid, s'il ne creve pas, ce qui est a craindre, son corps est trop delabré. Son frere, grand Jesuite, sa vieille mere, et les Jansenistes Provençaux tout cela le genera, il soupirera après la liberté de philosopher a Sans-Soucy, quoiqu'il se plaint quand il y est; si on lui dit qu'il se porte bien surtout il se fache. Il seroit fort a souhaiter que votre plume fusse employée a nous instruire de la verité, au lieu des disputes sur l'I(l)e de la Tortuga, que je crois l'occupe un pen a présent, mais si vous ne vous mettez pas a écrire de votre proprement mouvement, et non pas par complaisance pour un autre, ne faites rien; il faut y être tout entier.

‘Le Chevalier Stuart m’a parlé des decouvertes par le Microscope, par un certain Needham, prêtre, j’ay cherché inutilement cette brochure. Voici le fait come le chevalier Stuart me l’a dit. Il prit un gigot de mouton, le fit rotir presque a brûler, pour detruire les animalcules ou leur œufs qui pouvoient y être: il en pris le jus, le mit dans une bouteille bien bouchée, le fit cuire des heures dans l’eau bouillante, pour detruire toute animalcule ou œuf que pouvoit si être introduite par l’air en mettant le jus dans la bouteille: au bout de quelque tems le jus fermenta, et produisit des animalcules.

‘Needham pretend que toute generation ne vient qu de fermentation. Je vous dis mon autheur, vous le connoissez; il ne parle legerment.

‘Cette decouverte me paroît valoir la peine a examiner; ce pourroit être du gibier, come dit Montagne, de M. Diderot. Si la fermentation dans une petite bouteille produit un tres petit animal: celle de tous les éléments de notre globe, ne pourroit elle produire, un chêne, un éléphant. Je proteste que je parle avec toute soumission à David Hume F—i D i, et à la sainte Inquisition, s’il trouve que quelque chose cloche dans ce sistême, que je ne fais que rapporter. bon soir.’

Other letters to Hume occur in 1765, and are preserved in the Library of the Royal Society of Edinburgh. ‘I am going down hill very fast, but easily, as one that descends the Mont Cenis *ramassé*, without pain or trouble.’ He mentions the frost and snow at Berlin as severe to *un pobre viejo Cristiano Español*. He sends turnip seed, a bucolic gift, to Helvetius, and to Madame de Vassé, the lady who concealed Prince Charles in the Convent of St. Joseph. ^[32]

He mentions that he sups every night with the King, and wishes Hume to share these festivals.

The Earl was infinitely happier with Frederick and the gay freethinkers at Potsdam than in Scotland, where so many friendly heads had fallen, where every sight recalled unhappy things; where the lairds drank too much, and the ministers preached too long, and wits were scarce, and people wanted

him to marry and beget heirs (here he had Frederick's sympathy), and still the cracked old bell kept up its peevish lament, *Disloyal, Loyal, Loyal, Disloyal!*

Such was the Earl's correspondence with Hume; they are the letters of a kind, good, humorous old pagan. To d'Alembert also he wrote freely. 'I have read with much pleasure four volumes of your works, and was really pleased with myself when I found that I could understand them. I want to use my rights as an old fellow, and tell anecdotes.' Then he gives a Scotch story, which would be more amusing in Scots than in his French. Of Frederick, he says that (unlike Carlyle) he is 'gey easy to live wi', *l'homme du monde le plus aisé à vivre*. He announces 'David Hume is elevated to the sublime dignity of a Saint, by public acclamation: the street where he dwells is entitled *La rue de St. David*. Vox populi, vox Dei. Amen.' Again,—the old sinner!—

'I have received an inestimable treasure, plenary indulgences *in articulo mortis*, with power to bestow some of them on twelve elect souls. One I send to good David Hume; as I wish you all good things in both worlds, I offer you a place among my chosen.'

The philosopher took a simple pleasure in drolleries which no longer tempt us—we have now been so long emancipated.

The Earl said that in Spain he would have felt obliged to denounce Frederick to the Inquisition. Frederick has given the old exile medicines to make him love him, as Prince Hal did to Falstaff. 'If he had not bewitched me, would I stay here, where I only see a spectre of the sun, when I might live and die in the happy climate of Valencia?'

So he slipped down the hill in a happy, kind old age. In summer he rose at five, read for an hour, wrote his letters, and burned most of those which he received. Then he had his head shaved, and washed in cold water, dressed, took a drive, or pottered in his garden. Heaven made gardens, surely, for the pottering peace of virtuous eld. At twelve he dined, chiefly on vegetables, taking but one glass of sherry. He had always four or five guests, and, after dinner, left them 'to make the coffee'—that is, to enjoy a *siesta*. He never remembered to have remained awake a moment when once his head touched the pillow. Then he took coffee, played piquet, pottered again in the garden, supped on chocolate, and so to bed early. He read

much, and thanked a slight loss of memory for the pleasure of being able to read all his favourite authors over again. Rabelais, Montaigne, and Molière were his favourites in French, in English, Shakspeare and the old dramatists. Terence and Plautus he studied in Latin, the Greek writers 'in cribs.' Tragedy he could not abide; mirth he loved, and d'Alembert's informant had come on him laughing aloud when alone. He was full of anecdote, and, having known everybody of note for some seventy years, his talk was delightful. For music, he preferred the pibroch in a strange land, as did Charles, alone and old in Italy. One touch of nature!

He was kindness itself, and loved giving; from Rousseau he met, we are told, the usual amount of gratitude after the quarrel with Hume. But, judging from what Rousseau himself says, on this occasion he was not ungrateful. If he heard, in conversation, a tale of misery, he made no remark, but sought out and succoured the person in distress. To every one who visited him he insisted on making some little present. He maintained a poor woman in comfort; nay, 'down to spiders and frogs, he was the friend of all created things.' Being a piquet player of the first force, he would only stake halfpence, and, when his winnings accumulated, laid them out in a feast of fat things for Snell, his big dog. Like Lionardo da Vinci, he could not bear to see a caged bird.

In his last years he was drawn about in a garden chair, his legs failing him. His mortal agony was long and patiently borne: never before had he been ill. 'Can your physic take fifty years off my life?' he asked the doctor. He died merely of long life, on May 25, 1778. In 1770 he had described himself to his kinsman, Sir Robert Murray Keith, as 'nearly eighty.' In 1778, then, he cannot have been ninety-two, as Mr. Carlyle supposed—probably he was about eighty-five. Years of trouble and sorrow these years would have been to another, but 'a merry heart goes all the way.' Physically, and mentally, and morally, the Earl had ever been an example of soundness. In his latest illness he was never peevish. Once 'he wished he were among the Eskimo, for they knock old men on the head.'

The Earl was not a great man. In conspiracy, in war, in government, in diplomacy, he was a rather oddly ineffectual man. He had, in short, a genius for goodness, and an independence of spirit, a perfect disinterestedness, an inability to blind himself to disagreeable facts, and to the merits of the opposite side—a balance, in fact, of temperament and of humour—which

are inconsistent with political success. We may wish that his taste in jokes had been less that of the *philosophes*. We may wish that, if the Cause was indeed hopeless, he had deserted it without reproaching his old master. He might have abstained from disseminating the tattle of Helvetius. There is very little else which mortal judgment can find to reprehend in brave, honest, generous, humorous, kind George Keith, who was, without Christian faith, the pattern of all the Christian virtues. He was of two worlds—the old Royalist world, and the Age of Revolution—yet undisturbed in heart he lived and died,

Vetustæ vitæ imago,
Et specimen venientis ævi. [\[33\]](#)

III

MURRAY OF BROUGHTON

In black contrast to the name, the character, the happy life and peaceful, kindly end of the good Earl Marischal stand the infamy, the ruined soul, the wretched existence and miserable death of John Murray of Broughton. 'No lip of me or mine comes after Broughton's!' said the Whig father of Sir Walter Scott, as he threw out of window the teacup from which the traitor had drunk. Murray was poisonous; was shunned like a sick, venomous beast. His name was blotted out of the books of the Masons' lodge to which he belonged; even the records of baptisms in his Episcopal chapel attest the horror in which he was held for thirty years, for half his life. Yet this informer remained, through that moiety of his degraded existence, true in heart to the Cause which the Earl Marischal forsook and disdained, true to his affection for his Prince; and it is even extremely probable that, after he became titular King, Charles, on a secret expedition to England, visited Murray in his London house.

The vacant, contemned years, when his beautiful wife had ceased to share his infamy, were partly beguiled in the composition of the 'Memorials,' which Mr. Fitzroy Bell has edited, with reinforcements from the Stuart MSS., the papers in the Record Office, and the archives of the Quai d'Orsay. In these we find a spectacle which is rare: a traitor convicted, exposed, detested, yet still clinging to the Cause which he wrought for and sold, still striving to batter himself into his own self-respect, and to extenuate or bluster out his own dishonour. The Earl Marischal has left us no memoirs; a manuscript which he gave to Sir Robert Murray Keith has been lost. But Murray's papers are still in the possession of his great-grandson by a second marriage, Mr. George Siddons Murray, who has generously sanctioned their publication.

John Murray, of Broughton, in Peeblesshire, was born in 1715, being descended from a cadet of the house of Murray of Philiphaugh. His father, Sir David Murray, was out in the Fifteen, but afterwards lived peacefully, developed the lead mines of Strontian, and died before the Forty-five. His

son, educated at Edinburgh and Leyden Universities, visited Rome in 1737-8, carried thither his ancestral politics, and inflamed them at the light of Prince Charles's eyes, 'the finest I ever saw.'^[34] He found Charles 'the most surprizingly handsome person of the age,' a description not borne out by the miniature in enamel which he gave to his admirer in a diamond snuff-box.^[35] Here we see 'the complection that has in it somewhat of an uncommon delicacy;' we see large brown eyes, an oval face, and the bright hair hanging down below the perruque, that hair which is treasured in a hundred rings, sleeve-links, and lockets. But genuine portraits of the Prince do not account for his epithet of 'bonnie,' and for his almost involuntary successes with women. He had 'an air,' and was, indeed, a good-looking boy enough; but he was no Adonis, the lower part of his face tending early to overfulness. However, he won Murray's heart, and he never lost it.

Returning, in 1738, to Broughton, on the Tweed, Murray found himself a near neighbour of Lord Traquair, then residing in his ancient château, which lent its bears to Tully Veolan. The house has a legend of an avenue gate never to be opened till the King comes again; but Lord Traquair, a Jacobite from vanity, did nothing to promote a Restoration. He feebly caballed, and at Traquair Murray may have drunk loyal healths enough to float a ship. Inclined for more active measures, he succeeded old Colonel Urquhart as Scottish correspondent of Edgar, the King's secretary in Rome. The appointment was approved of by the Duke of Hamilton, who, dying in 1743, left the Garter, the gift of King George, and the Thistle, the gift of King James! The new Duke was Jacobite enough to subscribe 1,500*l.* to the Cause and to accept James's commission just before the Prince landed, but he held aloof from the Rising.

Murray went into his business as Jacobite organiser with a cool and clear head. He knew the value of documentary evidence, and when he could he secured the signatures of adherents. In 1741 the 'Association' was formed, by Traquair, Lovat, Macgregor or Drummond of Balhaldie (described in the essay on the Earl Marischal), the bankrupt Campbell of Auchenbreck, father-in-law of Lochiel, and Lochiel himself, the only honest man of the cabal. In March 1741, Murray was introduced to Balhaldie. That chief promised mountains and marvels, including 20,000 stand of arms already stocked. Visionary weapons were these, as the swords which fell from heaven into Clydesdale in 1684. Murray was invited to trust Lovat, which

he was disinclined to do, having heard from Lochiel and from general rumour of that rogue's unfathomable and capricious treachery. Murray yielded, however, and the Association was launched. First came the question of supplies. The Scots were loyal, but, as a rule, would not part with a bawbee. Hay of Drumelzier kept a good grip of the gear; Lockhart of Carnwath had no money by him; the Duke of Hamilton evaded the question; and Lovat and Balhaldie opposed the recruiting of new associates, who, if brought in, would have rebelled against such incompetent or treacherous managers.

Nothing occurred till, in December 1742, Balhaldie sent some of his Ossianic prophecies of a French invasion to Traquair. Murray did not believe in the predictions, and only the feeblest attempts at organising the country into districts were made. Auchenbreck was to manage Argyllshire, Traquair was responsible for Scotland south of Forth. Neither brought in an adherent. Weapons were lacking, and Balhaldie gave no information about a plan of campaign. It was absolutely necessary to know what France really intended, and, at the end of 1712, Murray himself set out for Paris. In London he heard of the death of Cardinal Fleury—a great blow to the cause. He found in Paris that Balhaldie was beguiling France with exaggerated accounts of what the stingy and disorganised Scots were prepared to do. Murray was merely mocked by Cardinal Tencin, and from Amelot got only vague expressions of goodwill, and the warning that 'such enterprizes were dangerous and precarious.' Yet Balhaldie seemed much elated, and returned to England with Murray to put heart into the English adherents. In England Murray found Colonel Cecil as little satisfied with Balhaldie as himself, but the Celt hurried about with a great air of business, and sent for Traquair to come to town.

Traquair did go to town, carrying a letter of Murray's, to be forwarded to the Earl Marischal. By the advice of Balhaldie (who was the last man that ought to have seen the letter) Traquair burned it. This was a new offence, and, in brief, the feud between Murray and Balhaldie became inveterate.

In London Traquair did nothing. He never wrote to the party in Scotland, and he brought back nothing but the names of the English leaders, the Duke of Beaufort, Lord Orrery, Lord Barrymore, Sir John Hinde Cotton, and Sir Watkin Williams Wynne. When Murray, in turning informer, divulged these names, except that of Beaufort, he told Government nothing which every

man who cared did not know. But the English were thrown ‘into a mortal fright,’ as Balhaldie found so late as 1749. They were always in a mortal fright, always insisted that their Scottish allies should not even know who they were. Thus concerted movements were made impossible. Murray was dashed by the discovery that the English party was a mere set of five or six *nominum umbræ*. Doubtless there were plenty of Squire Westerns, who were ready to drink healths.

Were our glasses turned into swords,
Or our actions half as great as our words,
Were our enemies turned to quarts,
How nobly we should play our parts.
The least that we would do, each man should kill his two,
Without the help of France or Spain,
The Whigs should run a tilt, and their dearest blood be spilt,
And the King should enjoy his own again!^[36]

There may have been more serious intentions. In a Devonshire house I saw, once, a fine portrait of James III., and learned that the great-grandfather of the owner had burned compromising papers. Such papers of English Jacobites, if any existed, seem always to have been destroyed.

Traquair had done nothing; from Barrymore he got a promise of 10,000*l.*, from the rich Welsh baronet he got only excuses. Lovat, according to Murray, said, in the Tower, that Beaufort had promised to raise 12,000 men, ‘whereby he exposed before the warders a nobleman to the resentment of Government whom I had been at great pains to represent ... as no ways privy to or concerned in our scheme.’

The year 1743 ended, and at its close (December 23) James announced to Ormonde and to the Earl Marischal the French King’s resolution to help him. Balhaldie brought the Prince to France, early in 1744. Nothing was done, nothing was concerted. An attempt to engage the Cameronians, through Kenmure and Sir Thomas Gordon of Earlstoun, was a predestined failure. After Midsummer, 1744, Murray determined to visit France, watch Balhaldie, and see the Prince. He casually discovered that a Mr. Cockburn left the Jacobite cypher lying loose on his window seat, or under a dictionary! These were pretty characters to manage a conspiracy; but we have seen equal stupidity in ‘Jameson’s Raid.’ In London Murray saw Dr. Barry, whom he later betrayed, as far as in him lay. He crossed to Flanders, and met Balhaldie gambling in the Sun tavern at Rotterdam. Balhaldie

vapoured about buying arms, though 'he had not credit for a *louis d'or*,' and bragged about the travelling chaise (the Prince's famous *chese*) which he had designed for his Royal Highness. Not to pursue these chicaneries, Murray exposed Balhaldie and Sempil to Charles, whom he met secretly behind the stables of the Tuileries. The Prince took it very coolly, without loss of temper or excitement, but announced his intention to visit Scotland next summer (1745) if he came with a single servant. Murray replied that his arrival would ever be welcome, 'but I hoped it would not be without a body of troops.' Murray then pointed out that, in such an adventure, 'he could not positively depend on more than 4,000 Highlanders, *if so many*,' and that even these would infinitely regret the measure.

Murray has been accused, by Maxwell of Kirkconnell, of putting Charles upon this enterprise. In fact, his error lay in not formally and explicitly warning the Prince from the first. Later he did send warning letters, but Traquair did not try to deliver them, and Young Glengarry failed in the attempt.

The result of Murray's disclosures, and of a written Memorial which he sent in, was to undeceive Charles as to Sempil and Balhaldie. His letters to James are proofs of this, and now the split in the party was incurable. Murray went to and fro, undermining Balhaldie. Balhaldie, at the end of 1744, sent Young Glengarry from France, to work against Murray on the mind of Lochiel. That chief brought the two future traitors, Glengarry and Murray, together, and the Celt came into the Lowlander's bad opinion of Balhaldie. This was early in 1745. Murray now made the mistake of trying to pin men to a declaration, in writing, that they would join Charles, even if he came alone. His duty was to discourage any such enterprise, which, unaided by France, could only mean ruin. On the other hand, he actually engaged Macleod, the chief of the Skye men. With Stewart of Appin, Macleod chanced to be in Edinburgh. Murray gave him a letter from Charles, and described the character of that Prince. 'Macleod declared, in a kind of rapture, that he would make it his business to advance his interest as much as was in his power, and would join him, let him come when he would.' This occurred at a meeting in a tavern attended by the persons already mentioned, with Traquair, Glengarry, and Lochiel. Of these men, Appin did not come out, Traquair skulked, Macleod turned his coat, Glengarry became a spy, Murray was Murray, and only Lochiel saved his

honour. Next day, by Murray's desire, Lochiel extracted from Macleod a written promise to raise his clan, even if Charles came unaided and alone.

How Macleod kept his promise we know. He sent his forces to join Loudon's detachment in Hanoverian service; the whole array was frightened back in an attempt to surprise and capture Charles. They all ran like hares from the blacksmith of Moy, with one or two gardeners and other retainers of Lady Mackintosh, and the only man slain was Macrimmon, Macleod's piper, the composer of the prophetic lament, 'Macleod shall return, but Macrimmon shall never!' Murray comments with great severity on Macleod's treason, and, in his promise, and that of others, finds justification for Charles's adventure, and an answer to the question, 'Why he made an attempt of such consequence with so small a force?' All this leaves Murray in a quandary.... To send such promises (as he did) was to encourage Charles in a desperate project. To be sure Murray, later, did attempt to stop Charles; but he should never have sent him these signed encouragements, both from Macleod and Stewart of Appin. But Murray, he says, now changed his mind; he made out a journal of all his proceedings, showing Charles (most inconsistently) that all the party, except the Duke of Perth, 'were unanimous against his coming without a force.' These papers Murray entrusted, for Charles, to Traquair, who was going to England, and meant to proceed to France, using this very singular expression, 'that he would see the Prince, *though in a bawdy house*. The present Earl of Weymss and Laird of Glengarry [Pickle] can vouch this. The latter has since repeated it to me in my house in London.'

Traquair now went to London, but he never went to France, nor did he transmit the warning to Charles. Meanwhile Murray extracted 1,500*l.* from the new Duke of Hamilton (a new fact), and the Duke of Perth paid an equal sum, and even offered to mortgage his estate. Hamilton also gave a verbal promise to join Charles 'with all the forces he could raise.' Murray again wrote to Charles, saying that he must bring at least 6,000 men. Perth, Elcho, and Lochiel signed this letter. This letter was sent by one John Macnaughten. Did it ever arrive? In the Stuart Papers is a letter signed 'J. Barclay,' and undated. It is clearly from Murray to Charles, and announces the journal entrusted to Traquair, but contains no warning.^[37]

In a letter of March 14, 1745, to James, Charles refers to this letter announcing the journal and other despatches, which had not arrived—as

Traquair never sent them. On April 9, Charles appears to refer to Macnaughten's budget of letters as not yet deciphered.^[38]

From London Traquair sent only a note of doubtful and, at best, of insignificant meaning. Nothing whatever was settled or arranged. Then came Sir Hector, chief of the Macleans, to Scotland, where he was arrested. Now, Murray reflected that the epistle sent by Macnaughten 'contained rather a wish than an advice, and might not be sufficient to prevent the Prince's coming.' Murray therefore sent, as a final warning, that set of papers which Traquair had not forwarded, entrusting it to Young Glengarry, at the end of May 1745. But Glengarry did not succeed in seeing Charles, who was thus left without warning not to come. Perhaps no warning would have stopped him; at all events he received none, and the die was cast. The Prince embarked on June 22.

Murray's whole book is one of self-justification. He may clear himself of having suggested the unaided enterprise to Charles. But, partly through the frivolity of Traquair, partly through the zeal of Murray, Charles was left without decisive admonition. He saw his party distracted: for a year and a half France had treated him 'scandalously' (as even the patient James averred), and he determined to force the hands both of France and the Jacobites. He pawned the Sobieski rubies—'the Prince would wear them with a very sore heart on this side of the water'—he put his life to the hazard. If ever an attempt was to be made at all, Charles did well. England was empty of troops. A success or two, the Prince reckoned, must unite the distracted party on the one hand, and tempt or compel France to action on the other. His motto was *de l'audace!* If all men had been Lochiels, if the Duke of Hamilton, Macleod, Traquair, Lovat, Beaufort, Barrymore, Orrery, and the rest, had honour and truth, if France had such a thing as a policy, and could seize an opportunity, Charles would have won the Crown. But many men are not Lochiels, and, if France had a policy, it was not to restore the Stuarts, but to use them as a mere diversion.

By the end of May Macnaughten returned, with news that Charles would be in Scotland by July. This caused Murray much chagrin, but he at once warned Perth, Lochiel, and Macleod. To the Duke of Hamilton he gave the Prince's commission, 'which he accepted with great cheerfulness.' Murray then went to Lochiel, who remarked that every man of honour was bound to rise, and who quite trusted Lovat and Macleod. He leaned on broken reeds.

Lovat temporised, Macleod turned his coat. Here Murray's MS. breaks off, and he continues the history of the Rising 'from Moidart to Derby.'

The military part of Murray's 'Memorials' is full of reflections on Charles's 'unparalleled good nature and humanity,' and his strategic skill. Murray had desired to be an aide-de-camp: he clearly thinks himself a good judge of warfare. He was obliged to be Secretary, but did not covet that office. He, alone, had any previous personal knowledge of Charles, with whom he was such a favourite as to excite the jealousy of Lord George Murray and of Maxwell of Kirkconnell. These jealousies were of perilous consequence. Maxwell, writing after Murray was the most detested man on earth, charges heavily against him: 'He began by representing Lord George as a traitor to the Prince; he assured him that he had joined on purpose to have an opportunity of delivering him up to Government.' Lord George heard of this, and was deeply affected. Prestonpans nearly opened Charles's eyes, but Lord George's 'haughty and overbearing manner prevented a thorough reconciliation, and seconded the malicious insinuations of his rival.... He now and then broke into such violent sallies as the Prince could not digest....'

Now the loyalty of Lord George is beyond all shadow of suspicion. Till his death, in 1760, he was the faithful and devoted subject of King James. Even Murray, in his MSS., does not breathe a word against him. But, if Murray did, at first, conceive suspicions, and suggest precautions, it is impossible to blame him. What was Lord George's position? He had been out, at Glenshiel, in 1719, with his brother, Tullibardine. He was pardoned, and was residing in Scotland. He never appears as a Jacobite in the negotiations of 1740-45. His brother William, who, but for his steady Jacobitism, would have been Duke of Atholl, came over with Charles. The actual Duke, *de facto*, Lord George's brother James, deserted Blair Atholl on the approach of the Highlanders, and went to London. Tullibardine (William) assumed the title of Duke, and occupied Blair. Lord George also joined the Prince. But Murray had to ask himself, was Lord George in earnest? Murray knew the treachery of the times, and had employed James Mohr Macgregor, known to be a Hanoverian spy, to beguile Cope and the Lord Chief Justice. Was Lord George, Murray would think, playing James Mohr's part on the other side?

Murray had reason for suspicion. As late as August 20, 1745, after the standard was raised at Glenfinnan, Lord George wrote to the Lord Advocate from Dunkeld. He announced that, on the following day, he and Old Glengarry would wait on Cope at Crieff. Cope was marching North to fight the Prince. Lord George talked of 'the Pretender,' and sent information. He *did* wait on Cope. As late as September 1, he was corresponding with his Hanoverian brother, Duke James, but, on September 3, he announced to his brother that he was about to join the Prince. 'Duty to King and Country overweighs everything.'^[39]

As a matter of fact, Lord George simply, if rather suddenly, changed his mind, engaging, like Lord Pitsligo, 'without enthusiasm,' and it seems without hope. He thought that honour called him. But to Murray Lord George's conduct in first colloquing with Cope, and then rallying to Charles, must have seemed suspicious. It was suspicious: to Cope it must have appeared the blackest treason. 'Lord George,' Murray would say, 'is betraying somebody; now, whom is he betraying?'

A curious piece of gossip has lately come to light. It was said that one of the Highland army, in England, had a squabble with a wayfaring man, and broke his staff, in which was found a letter from the Whig brother Duke James, to Lord George, suggesting that, in a battle, he should desert, carrying over the Atholl men. Probably the story is false, and based on the sending to Duke James of letters, by one of his servants, concealed in the shank of a whip. In any case, Lord George was never really reconciled to Murray, and Charles (after Lord George counselled retreat at Derby, retreat at Stirling, and the abandonment of the surprise at Nairn) never trusted, never forgave him, wished to imprison him in France, and shut his door against him. James in vain remonstrated, Charles was implacable.

At Carlisle, on the march southwards, there was a great quarrel. Lord George resigned his commission, offering to serve as a volunteer. Charles accepted the resignation. The Duke of Perth was acting as commander-in-chief. He was a Catholic, and Lord George deemed that this would have an ill effect, besides he himself was a much senior and infinitely more experienced officer. Lord George also urged that Murray 'took everything upon him, both as to civil and military.' The Duke of Perth then resigned his command, apparently on the advice of Maxwell of Kirkconnell, who praises his magnanimity. Murray also, he himself tells us, withdrew from the

councils of war, 'which seemed to quiet Lord George a good deal.' Lord George became general in chief, and distinguished himself by skill and personal bravery. But the quarrel was never reconciled. Unluckily Murray gives no account of the decision to retreat from Derby. Then no more councils were held, and 'little people' (that is, Murray) were allowed to advise: till Lord George and the chiefs sent in a remonstrance.

Murray breaks off in his narrative at Derby, and does not resume it till after Culloden. He had fallen ill at Elgin, in March 1746, where Charles also had a severe attack of pneumonia.^[40]

Murray was carried across country to Mrs. Grant's house in Glenmoriston. Everything fell into worse confusion after his departure, his successor, John Hay of Restalrig, being incompetent. At Glenmoriston Murray heard from Archibald Cameron of the defeat at Culloden. In the shape of a letter from a friend of Mr. Murray of Broughton, he describes and justifies his own conduct after 'the wicked day of destiny.'

It is, perhaps, less easy to justify the conduct of his master. The irredeemable point in Charles's behaviour in Scotland was his withdrawal from the remnant of his army, which met at Ruthven. There is much obscurity as to the details, as to whether a place of rendezvous had been fixed upon or not. But Charles knew where the army and officers were; he received a scolding letter from Lord George, and he declined to return to the forces. His distrust of Lord George had revived; he knew that there were men who would not scruple to win their pardon by betraying him, and, with Sheridan, O'Sullivan, O'Niel, and others, he made for the islands.

Murray, after news came of the defeat, was carried to Fort Augustus, and thence to Lochgarry's house. Hoping even yet to rally a force, he met the wounded and outworn Duke of Perth at Invergarry, to no result. He then was carried to Lochiel's country, and Lochiel determined to wage a guerilla war in the hills, expecting French assistance. Murray sent Archy Cameron to Arisaig to get news of Charles, but Archy learned from Hay of Restalrig that the Prince had already taken boat for the Isles. Archy disbelieved Hay, but Charles had really gone, or was on the very point of going (April 26). Certain news reached Murray and Lochiel; the chief determined to remain with his clan, on a point of honour, and Murray stood by Lochiel, as also did Major Kennedy. They could have fled in the French vessels which

landed the gold of the fatal treasure, but they were resolute to stand by each other.^[41] Those who departed were the dying Duke of Perth, a sacrifice to his own chivalrous devotion: Lord Elcho, who presently tried to gain his pardon; old Sir Thomas Sheridan, who soon afterwards died, heart-broken, at Rome; Lord John Drummond, Lockhart of Carnwath, and Hay of Restalrig.

Murray now arranged for the burial of the French gold, and then Glenbucket, with the poet-soldier John Roy Stewart, Clanranald, Lochgarry, Barisdale, Young Scotus, and Lovat, held a council. Lovat proposed holding out in the hills, and promised the aid of his son, Simon, and 400 Frazers. Murray suspected the old fox, and proposed that all should sign a 'band' of mutual fidelity. Lovat would not sign!

The allies were to rendezvous in ten days at Loch Arkaig, and, later, the meeting was deferred for another week. But the Master of Lovat 'was never so much as heard of' at the tryst; Lochgarry brought but 100 men, and Murray accuses him of treacherous intentions, this on the suggestion of Barisdale. Now Lochgarry left, and did not return, nor did his sentinels bring in news of an approaching English force. Of all this Lochgarry says nothing in his report to Young Glengarry, published by Mr. Blaikie. But, as we know with absolute certainty that Barisdale was an infamous coward, liar, and traitor, while Lochgarry was loyal to his death, we need not accept Barisdale's evidence against a cousin whom he detested. However it happened, no news came from Lochgarry, and, if Murray himself had not sent out scouts, the whole party, with Lochiel, would have been taken near Loch Arkaig.^[42]

The game being now up, Murray made his way South, in exceedingly bad health, aggravated by exposure and fatigue. His idea was to get a ship on the East Coast, where Lochiel would join him, and to escape. But Murray was captured, through information given by a herd-boy, at the house of his sister, Mrs. Hunter of Polmood. He certainly did not intend to be captured, and he says that, even after he was taken, he tried to arrange about a ship for Lochiel. He also vindicates the conduct of his wife, who was about to bear a child, and he justifies his honesty in money matters. Now in money matters Murray's hands were clean, and there is no real ground for the charges against poor Mrs. Murray. But what Murray does not say, is that, as soon as he was approached, after his capture, by the Lord

Justice Clerk, he promised ‘to discover all he knew.’^[43] He did not tell *all* he knew, but on August 13, being examined in the Tower, he told a great deal. About Traquair he spoke out: he named the English Jacobite leaders, he told his tale about Macleod in the tavern meeting, he sheltered Macdonald of Sleat, and even screened Lovat as far as he dared: in fact, he took revenge on half-hearted Jacobites, and, for some reason, did his best to hang Sir John Douglas. He sent in an account of the Clans, in substance much like that in the MS. of 1750.^[44] He betrayed the secret of the Loch Arkaig treasure, and asked to be allowed to go to the spot, and point it out to the agents of Government. In reply to Murray, Traquair and Dr. Barry lied firmly, under examination, and Sir John Douglas refused to answer any questions. They suffered imprisonment, but escaped with life for lack of corroboration. Some legal jugglery was needed before Murray could be accepted as King’s Evidence, but the trick was played, and the Laird of Broughton publicly ‘peached’ at Lovat’s trial. He declares that he peached with economy. ‘The utmost care was taken to conceal everything that was not known by his own letters, of which he was so sensible that he sent me thanks by Mr. Fowler (Gentleman Gaoler of the Tower), for my forbearance, and said he was not the least hurt or offended by anything I had said.’

Such are Murray’s excuses. He could have told more, and Lovat might have died without his testimony, on the evidence of various Frazers. Murray was pardoned in June 1748. He tried to provoke Traquair to a duel and vapoured with cloak and sword behind Montague House. He associated with Young Glengarry, whom he very probably thought an honest man, and his visits a privilege. Glengarry doubtless got from Murray information about the Loch Arkaig treasure, and, perhaps, picked up a few crumbs of intelligence for his employers. His wife had not left Murray, in 1749, when he reconciled his lady to the loss of her repeater, pawned by a priest named Leslie for the relief of Young Glengarry, who was starving.^[45] When Mrs. Murray left her intolerable lord is not exactly known, nor is anything certain about her later fortunes. In May 1749, Stonor tells Edgar that Murray’s ‘late actions have not only the appearance of a knave but a madman, and it is the opinion of most people he is really also the latter, several of his family having been disordered in their senses, and his present situation sufficient to cause it in him, as he can’t but feel the sting of such a conscience, finds

himself the outcast of mankind, and *is in circumstances extremely indigent.*' It follows that he did not keep the money buried in the garden of Menzies of Culdares, some 4,000l. ^[46] Traquair had Murray arrested by a warrant of the Lord Chief Justice, for provoking a breach of the peace. ^[47]

In 1764, Murray sold Broughton. His agent was Sir Walter Scott's father, and, as we all know, Mr. Scott threw the cup from which Murray had drunk out of the window. The younger Dumas, probably by a chance coincidence, uses this in his play, 'L'Étrangère.' After selling Broughton, Murray is said to have lived in London, and family tradition avers that he was visited by Charles, whom he introduced to his little boy as 'your *King.*' This ought, then, to be dated 1766, or later. Murray is said to have justified Stonor's letter, already cited, by dying in a madhouse, on December 6, 1777. He was sane enough, certainly, when he wrote his 'Memorials.' Such was Murray of Broughton, in spite of his treachery a devoted believer in the Cause; till his capture, a brave, loyal, and constant supporter of the Cause; a man by nature honourable, and a lover of honour in others, as in Lochiel and the Duke of Perth. He sinned, when he did sin, in violation of every tradition of education, and, in turning Informer, wrenched every fibre of his moral nature. His servant, a poet of the time remarks, set his master an example.

Behold, the menial hand that broke your bread,
That wiped your shoes, and with your crumbs was fed,
When life and riches, proffered to his view,
Before his eyes the strong temptation threw,
Rather than quit integrity of heart,
Or act, like you, th'unmanly traitor's part,
Disdains the purchase of a worthless life,
And bares his bosom to the butcher's knife.

But Murray renounced honour and lingered on the scene.

And whither, whither, can the guilty fly
From the devouring worms that never die?

'Lead us not into temptation.' The view of death brought Murray face to face with a self in his breast, which, it is probable, he had never known to exist: that awful contradictory self to which each of us has yielded, though few in such extremity of surrender.

IV

MADEMOISELLE LUCI

In ‘Pickle the Spy’ mention was frequently made of ‘Mademoiselle Luci,’ the mysterious young lady who, from 1749 to her death in 1752, was the French Egeria of Prince Charles. An exile, without a roof to cover his head in any land but the States of the Pope, to which he declined to go, the Prince was sheltered in the Parisian convent of St. Joseph by Mlle. Luci and the lady styled *La Grande Main* in the cypher of the Prince’s correspondence. By dint of some research, I discovered that Mlle. Luci was Mlle. Ferrand, while *La Grande Main* was her devoted friend, Madame de Vassé. Both were very intimate with a person always alluded to in the Prince’s correspondence as *le philosophe*. As Montesquieu lived in the same street (the Rue Dominique) as these ladies (who directed the Prince’s philosophical studies), as he was on friendly terms with Charles, Lord Elibank, Bulkeley, and other Jacobites, I concluded that the *philosophe* of the correspondence was probably the author of ‘L’Esprit des Lois.’ This was a blunder which criticism should have detected. The *philosophe* was not Montesquieu, but the Abbé Condillac. The proof is in the preliminary chapter of his ‘Traité des Sensations;’ he there dedicates that important psychological work to Madame de Vassé, and deploras the death of their beloved Mlle. Ferrand. Condillac, clearly, was their friend, *le philosophe*. Mlle. Ferrand, it seems, was the instructor of Condillac, as well as the protector and literary adviser of Prince Charles.

‘You know, Madame,’ says Condillac to Madame de Vassé, ‘to whom I owe the light which at length scattered my prejudices. You know what part she had in this book, that lady so justly dear to you, so worthy of your friendship and esteem. I consecrate my work to her memory, and I address you that I may share the pleasure of speaking about her and the pain of our common sorrow. May this book be the monument of your friendship, and preserve it unforgotten.’

A volume on the relations of sense and thought, like Condillac’s, is not the place to which one naturally turns in search of information about a girl

who loyally served a proscribed Prince and a forsaken Cause. Yet it is Condillac who attests for us ‘the keenness, the just balance, of Mlle. Ferrand’s intellect, and the vivacity of her imagination, qualities apparently incompatible, when carried to the pitch at which she displayed them.’

The scheme of Condillac’s psychology cannot be discussed in this place, but he says that he owed everything to Prince Charles’s friend. ‘She enlightened me as to the principles, the plan, and the most minute details, and I ought to be the more grateful, as she had no idea of instructing me, or of making a book. She did not remark that she was becoming an author, having no design beyond that of conversing with me on the topics in which I was interested.... Had she taken up the pen, this work would be a better proof of her genius. But there was in her a delicacy which forbade her even to contemplate authorship.... This treatise is, unhappily, but the result of conversations with her, and I fear that I may have sometimes failed to place her ideas in their true light.’

Had Mlle. Ferrand survived, Condillac thinks that she would not have allowed him to acknowledge her influence on his work. ‘But how can I, to-day, deny myself the pleasure of this act of justice? Nothing but this remains to me, in our loss of a wise adviser, an enlightened critic, and a true friend. You, Madame, will share the pleasure with me, you who will not cease to regret her while you live.’ The philosopher speaks of ‘the intellect, the loyalty, the courage, which formed these ladies for each other.’ Loyalty, courage, wit, these women laid them at the feet of a Prince not their own, and solely recommended to their tenderness by his misfortunes.

‘Your friend, in dying, had this one consolation, Madame, that she was not to survive you. I have seen her happy in this reflection. “Speak sometimes of me with Madame de Vassé,” she said to me, “and let it be with a kind of pleasure.”’ Such was the girl, so brilliantly endowed, so brave, so affectionate, who did Prince Charles’s marketing, bought him novels and razors, directed his choice of books, was the channel through which his secret correspondence passed, was jealously regarded by his mistress, Madame de Talmond, and died before the end of all hope had come, before the Prince was renounced even by his own. To the angry Madame de Talmond she wrote, ‘I am strongly attached to your friend [the Prince] and for him would do and suffer anything short of stooping to an act of baseness.’

There must have been something in Charles, beyond his misfortunes, to win so much devotion from a woman of the highest intellect.

Mlle. Ferrand died, after a long illness, in October 1752. Her memory is preserved only by a note in Grimm's correspondence, by the touching tribute of Condillac, and by the discovery of her kindness to a proscribed Prince. While she protected and advised him, she was inspiring a renowned philosopher, and keeping a secret which every diplomatist in Europe was eager to learn. We naturally desire to know whether Mlle. Ferrand was beautiful as well as talented and kind. But researches in France have not brought to light any portrait either of Mlle. Ferrand, or of Madame de Vassé, who long survived her friend, and was in correspondence, about 1760, with the Earl Marischal. [\[48\]](#)

V

THE ROMANCE OF BARISDALE

While the Lowlanders, for nearly fifteen hundred years, had cast on Highland robbers the eyes of hatred and contempt, Sir Walter Scott suddenly taught men to think a cateran a very fine fellow. The unanimity of a non-Highland testimony had previously been wonderful. 'The Highlanders are great thieves,' says Dio Cassius, speaking for civilisation as early as A.D. 200-230. Gildas, in the sixth century, calls the Highlanders (Picti) 'a set of bloody free booters, with more hair on their thieves' faces than clothes to cover their nakedness.' Early mediæval writers talk of the *bestiales Picts* ('the beastly Picts'), and later Lowland opinions to a similar effect are too familiar for quotation. To Scott was left the discovery of the virtues of the honest cateran, who looked on cattle-stealing as an ennobling occupation in the intervals of war.

Sir Walter's opinion ran through Europe like the Fiery Cross. His grandson, Hugh Littlejohn, stirred up by the 'Tales of a Grandfather,' dirked his small brother slightly with a pair of scissors in a childish enthusiasm! Even the moral Wordsworth, moved by Scott, had a good word for Rob Roy. Yet about that hero Sir Walter cherished no illusions. He knew Rob's Letter of Submission to General Wade, after 1715. Rob, of course, had been out for King James, but he coolly says to Wade: 'I not only avoided acting offensively against his Majesty's' (King George's) 'forces, but, on the contrary, sent His Grace the Duke of Argyle all the intelligence I could from time to time of the strength and situation of the Rebels; which I hope his Grace will do me the justice to acknowledge.'

'All the *demerits* ascribed to him by his enemies are less to his discredit than this one *merit* which he assumes to himself,' says Jamieson.^[49] The double-faced traitor, Rob's son, James Mohr, one of the bravest of men, *chassa de race*. The truth is that a life of plunder, however romantic and however little regarded as immoral or degrading by Highland opinion, really did foster, in educated men, the most astonishing perfidy. This is the last vice we look for in the generous cateran; and, indeed, the outlaws of

Glen Moriston were as loyal to their Prince as Lochiel. But the prevalent opinion that robbery, sanctioned by tradition, does not degrade the general character, can be proved to be an error. We read about Cluny that, in 1742-5, he held the usual belief. 'He was certain it' (the habit of robbery) 'proceeded only from the remains of barbarism, for he had many convincing proofs that in other respects the dispositions of the people in these parts were generally as benevolent, humane, and even generous, as those of any country whatever.'^[50]

Cluny was right about the untutored mass of the people, but he was wrong about a few educated chiefs, who encouraged and lived on an unfortunate tradition. Thus Sir Walter Scott writes about the thief whose history we are to narrate, Macdonnell of Barisdale: 'He was a scholar and well-bred gentleman. He engraved on his broadswords the well-known lines:

Hae tibi erunt artes, pacisque imponere morem,
Parcere subjectis, et debellare superbos.'^[51]

Barisdale knew what was right; his following knew only his will. He was the blackest of traitors; they were true as steel.

The specially robber tribes in 1715-45 were those of the dispossessed Macgregors, whose hand was, necessarily, against every man's hand; of the Macdonnells in Knoydart; and of some of the Camerons in Lochaber and Rannoch. Old Lovat, too, discouraging schools, kept up sedulously the ancient clan ideas. No other sections of the Highlanders are accused, even by Whigs, of robbery. Mackays, Mackenzies, Grants, Mackintoshes, Macphersons, Macleans are not blamed, and such gentlemen of the Camerons and Macdonnells as Lochiel, Scothouse, and Keppoch are specially exculpated. Lochiel was a reformer within his clan. The gallant Keppoch had forsworn the predatory habits which, in 1689, made his people threaten Inverness. Of Scothouse we shall hear the most excellent report. Now, it cannot be by a mere fortuitous coincidence that all the Highland traitors, James Mohr, Old Lovat, Glengarry, Barisdale, and some others, come precisely from the homes of cattle thieves, and from a factitious hothouse of old clan ideas; from the Macgregor country, Knoydart, the worst part of Lochaber, and Rannoch. Yet, so strange was the condition of the North, that we find Barisdale, the meanest wretch of all,

recognised as an acquaintance by so high a Lowland dame as the 'Great Lady of the Cat,' the Countess of Sutherland.

We now proceed to the story of the chief who loved a Virgilian quotation.

In the army of Charles Edward there was no man more detested and feared than Col Macdonell of Barisdale. According to a curious tract, 'The Life of Archibald Macdonell of Barisdale, who is to Suffer for High Treason on the Twenty Second of May, at Edinburgh, By an Impartial Hand,'^[52] Col of Barisdale was son (? grandson) of the second brother of Alastair Dubh Macdonnell of Glengarry, the hero of Sheriffmuir, being thus a cousin of Glengarry. He was a man of prodigious muscular force, six feet four inches in height. He is said to have caught and held a roedeer; and, on one occasion, to have heaved a recalcitrant cow, probably stolen property, into a boat. There lay, in the present century, on the gravel-drive before Invergarry House, a large boulder, and beside it a short pin of iron was fixed into the ground. Only a very powerful man could lift the boulder on to the pin, a few inches in height, but Barisdale could heave it up to his knees. So write, from tradition, the two 'Stuarts d'Albanie,' in 'Tales of the Century' (1847). They add that Barisdale's courage did not match his strength, and that he yielded in single combat to Cluny.

Returning to our 'Impartial Hand' (by his minute local knowledge a native of Ross or Moray), we find him nowise partial to Barisdale. 'Colonel Ban,' as he calls him, married a Miss Mackenzie of Fairburn, and, having a small estate in Ross-shire, could raise two hundred of the clan. He thus, says Murray of Broughton, declared himself independent of Glengarry, his chief, an indolent drunkard. Being acquainted with the Mackenzie estates, he used his knowledge in the surreptitious acquisition of cattle. He would then throw the blame on the Camerons; and that, says our author, is precisely the cause of the bad name for cattle-stealing which the Camerons have unhappily acquired. One day Barisdale, with his Tail, met Cameron of Taask, with *his* Tail, and was charged by Cameron with his misdeeds. Words grew high, claymores were drawn, and a finger of Cameron's left hand was nearly lopped off. The intrepid chieftain, acting on the Scotch proverb, 'Better a finger off than aye wagging,' tore the injured limb from his hand, bound the wound with a handkerchief, 'and so fell to work on Barisdale,' whom he sliced on the pate. 'The skin and a lock of his hair hung down,' and their devoted tenants, anxious observers of the fray,

separated the infuriated chieftains. Barisdale was presently arrested on a charge of theft, but his Tail perjured themselves manfully, and he got off on an alibi.

The neighbours, finding the hero so stubborn, paid him 'black meal' (*sic*), in return for which he promised to protect their herds. But his genius pointed out to him a more excellent way, and Barisdale became the Jonathan Wild (as Waverley says) of Lochaber and Knoydart. He was a thief-catcher, and also an accomplice of thieves, as interest directed or passion prompted.^[53] He kept his tenantry, or gang, in rare order, and 'had machines for putting them to different sorts of punishment.' One machine was merely the stocks, where, outside of the chieftain's drawing-room windows (which commanded a fine view of the sea), many a poor thief sat for twenty-four hours, with food temptingly placed just out of his reach. Thus Barisdale struck terror, inspired respect, and accumulated wealth.

A more cruel engine than the stocks had Barisdale, a triumph of his own invention. In 'The Lyon in Mourning,' Mackinnon, who helped Prince Charles to escape from Skye, says that Captain Fergusson (noted for his ferocity) threatened him with torture. 'The cat or *Barisdale* shall make you speak,' said the Captain. The engine is described as one in which no man could live for an hour. The Impartial Hand' gives this account of it: 'The supposed criminal' (that is, any man who would not give Barisdale a share of his booty) 'was tied to an iron machine, where a ring grasped his feet, and another closed upon his neck, and his hands were received into eyes of iron contrived for that purpose. He had a great weight upon the back of his neck, to which, if he yielded in the least, by shrinking downwards, a sharp spike would infallibly run into his chin, which was kept bare for that very purpose.' Barisdale was also apt to waylay herring-fishers, and make them pay, as toll, a fifth of what they had captured, alleging certain seignorial rights.

'It is well known,' says the author of 1754, 'that, from the month of March to the middle of August, some poor upon the coast have nothing but shell-fish, such as mussels, cockles, and the like, to support them. Poverty reigns so much among the lower class that scarce a smile is to be seen upon their faces.' Barisdale also reigned upon the coast.

Such was life in the Highlands in the golden days of the Clans, before sheep, Lowlanders, evictions, emigration, and deer forests brought, as we are told, discontent and destitution. The poor lived on mussels and cockles, some tenants eked out a scanty livelihood by stealing their neighbours' cows, and the genial Barisdale kept all in good order. For Barisdale's prowess we are not obliged to rely on the 'Impartial Hand' and the Gartmore MS. alone. In 'The Highlands of Scotland: a Letter from a Gentleman at Edinburgh to a Friend in London,' we meet our Col again. This manuscript^[54] is in the King's Collection, 104, in the British Museum. The author is an *enragé* Whig and Protestant, but a close observer. From him we learn how cattle-stealing paid; for at first blush it looks like the practice of those fabled islanders 'who eke out a livelihood by taking in each other's washing.' The business was extended over a wide area; the Macdonells did not merely harry the Mackenzies and Rosses.

Speaking of Knoydart, our author says: 'Coll. Macdonell of Barisdale, cousin-german of Glengarry, took up his residence here, as a place of undoubted security from all legal prosecution. He entered into a confederacy with Lochgarry and the Camerons of Loch Arkaig, with some others as great villains in Rannoch. This famous Company had the honour to introduce theft into a regular trade; they kept a number of savages dependent on them for the purpose, whom they out-hounded' on predatory expeditions.

They robbed from Sutherlandshire to Perthshire, Stirlingshire, and Argyle. When the thieves were successful these gentlemen had a dividend of the spoil. When unsuccessful, the thieves lived on the country which they traversed. To denounce them was ill work. A gentleman, known to our author, was nearly ruined by Barisdale & Co. He caught two of the Macdonalds, who were hanged. Fifteen years later his son, going to Fort William, vanished. The tribe, says our author, demanded 'blood for blood.'

By these devices Barisdale compelled his neighbours to pay, in blackmail, 'above double their proportion of the land-tax in Seaforth's, Lovat's, and Chisholme's country.' He captained a kind of 'Watch.' But Barisdale's 'Watch' was expensive and unsatisfactory to his subscribers. As early as 1742 we have found Cluny setting up an opposition in business. Cluny's Watch is described at great length by the author of a kind of memoir of the chief, written in France in 1755-1760. The writer's object is

to show how much Cluny lost by his loyalty to the Stuarts, and how much he deserves the encouragement of Louis XV. He established, for the discouragement of theft, 'a watch or safeguard of his own trusted followers.' The nobility and gentry 'were surpris'd at Cluny's success, and enveyed so much his happiness, that they applyed to him with one accord, to take them under his protection, and cheerfully offered to join in a voluntary subscription....' Among the subscribers are the Duke of Gordon, the Earl of Airlie, the Earl of Aberdeen, Forbes of Culloden, the Mackintosh, Grant of Grant, and even the Duke of Argyll. These facts attest the extent of Barisdale's raids.

Cluny was highly successful, rescuing 'even those who had never applyed to him.' The subscriptions amounted to 20,000 livres, and the Dukes of Atholl and Perth, with Seaforth, were about to join. It was now that a preacher, thundering against theft, was interrupted by a listener who 'desired him to save his labour upon that point, for Mons. de Cluny alone would gain more souls to heaven in one year, than all the priests in the highlands could ever do in fifty.'

The English Ministry, hearing of Cluny's fame, now sent him, unasked, a captain's commission in Loudon's regiment, worth 6,000 livres yearly. But he threw up his new commission when he joined Prince Charles. Cluny's spirited behaviour, says MS. 104, 'took the bread out of their mouths,' the mouths of Barisdale & Co. But 'Barisdale, by the former trade (theft) and the latter expedient (blackmail), lived at a very high rate, and mortgaged a large sum of money on Glengarry's estate,' where he was a wadsetter.

Cluny's opposition may have led to his duel with Barisdale, as reported by the Stuarts d'Albanie. Barisdale was, as we have seen, like Lochgarry, a wadsetter of Glengarry's; that is, he received from Glengarry certain lands, redeemable after a specified interval of time, in exchange for money paid, or bills, or perhaps for cattle, which he was skilled in procuring. We do not find that the chief, Glengarry, could or did exercise any authority in controlling the excesses and depredations of his independent cousin Col. For this he is blamed by the author of the Gartmore MS., but his Mackenzie following made Col too strong for his chief.

Ignorant, perhaps, of the character of Barisdale, unwilling, at least, to dispense with his aid, Prince Charles visited him in August 1745, made him

a colonel, and gave a major's commission to his son, young Archibald Macdonnell of Barisdale, a lad of twenty in 1745. Our 'Impartial Hand'^[55] declares that Coll, though at Prestonpans, was not under fire, which seems improbable. Barisdale may have been with the Prince in the second line (fifty yards behind the first, says the Chevalier Johnstone), or, in the oblique advance of the first line, Lochiel and James Mohr may have routed the English before Barisdale could engage. But, in a letter of Thomas Wedderburn to the Earl of Sutherland, we read (September 26, 1745), 'Three troops that were making their way for Berwick were pursued by Barisdale, and 150 men, who all stript to their shirts, on foot, who overtook the dragoons, I suppose by turning a hill and gaining ground that way, and made them prisoners, for which Barisdale was made a knight bannarett'^[56]—knighthed, that is, like Dalgetty, on the field.

After Prestonpans, according to the Impartial one, confirmed by the 'Culloden Papers,' and by Broughton's 'Memorials,' Barisdale, by Sheridan's advice, was sent north, to work on Old Lovat. Sheridan reckoned that no man was likely to have so much influence with that subtle schemer as the bluff Barisdale, with 'his devouring looks, his bulky strides, his awful voice, his long and tremendous sword, which he generally wore in his hand, with a target and bonnet edged broad upon the forehead.' Barisdale, thus accredited, worked both on Lovat and Lord Cromarty, who raised his peaceful tenants by threats of burning their cottages and cattle.^[57] Cromarty might have reported, like a Highland recruiting officer in later days, 'The volunteers are ready; they are all lying bound hand and foot in the barn.' Many of the Highlanders did not want to fight, though they fought so well. Barisdale also sent 'the bloody cross,' we are told, through the Frazers, who marched reluctantly under the Master of Lovat, a St. Andrews student, himself as reluctant as he was brave. At Falkirk, Barisdale is said to have been with the second line, and later 'he set out to collect the public money, the greater part of which he kept to himself.'

Just before Culloden, Barisdale was engaged in the not uncongenial duty of reducing the shires of Ross and Sutherland. In the latter county Lord Reay, with the Mackays and the Earl of Sutherland, were for King George; Lord Loudon also was quartered with his force in Ross-shire. Lord Cromarty, with the Mackenzies, Mackintoshes, Mackinnons, Macgregors, and Barisdale's Macdonnells, did little, retiring to his own house. Barisdale

was anxious to burn the house of Ross of Balnagoun, but Lochiel, who had arrived with Lord George Murray, intervened. At Dornoch, Barisdale went to church, where the Rev. Mr. Kirk, a gentleman connected with the Duke of Argyll, had the courage to pray for King George. Barisdale leaped up, swaggered, fumed, and, it is rather absurdly said, threatened to put Mr. Kirk in his famous engine of torture. The chivalrous Duke of Perth protected Mr. Kirk, saying that all brave men were his friends, and asked the clergyman to dinner.^[58] Lord George Murray, finding Cromarty incompetent, and Barisdale mainly occupied in burning granaries, now took the command, and Loudon crossed the Firth into Sutherland. Perth then led the Prince's forces across the Firth, and Loudon hastened to withdraw into central Sutherland.

Neither side was anxious to come to blows. Macdonnell of Scotus, a man 'brave, polite, obliging, of fine spirit and sound judgment,' says the Chevalier Johnstone, had a son with Lord Loudon, and was reluctant to engage. Later, to his intense joy, he took this son a not unwilling prisoner. Meanwhile Barisdale, on March 20, captured the Castle of Dunrobin. The Earl of Sutherland fled, under cover of a fog, and escaped to an English ship. The Countess stayed at home; she was a daughter of the Earl of Wemyss by his third wife, was a young lady, of twenty-eight, and had a young nephew, Lord Elcho, with the Prince. According to the 'Sutherland Book' (i. 420), one of Barisdale's officers threatened her with a dirk, and, some one jogging his elbow, she was actually scratched. To this the Countess, as we shall see, herself bears witness. But it is by no means certain that the lady, coming of a Jacobite family, was an unwilling prisoner of the Prince's men. It was irksome to her, no doubt, to see her rooms littered with hay on which the Highlanders slept, and to observe the robbery of her plate. But the two following intercepted letters, from the Cumberland Papers, display the Countess as an adorer of Prince Charles, and Barisdale as a *preux chevalier*.

*Letter from The Countess of Sutherland to the Young Pretender,
written with MacDonell of Barisdale's own Hand.*

'March 26, 1746.

'The treatment I mett with Friday Last oblidges me to presume to
oCoast your Royall Hyness For a protection to prevent the Lyke

Usadge in the Future. However my Lord Sutherland Acted, It's known over the most of this Kingdome my particular attachment to your Royall Hyness' Family, and were itt ordinaire in one of my sex to go to the Field to Fight For my Prince and Country, I would make as aerly ane appearance as anie, and hade not my Coch horses and saddle horses being caryed away I woud presume the Honnaire to waith of your Royall Hyness. Least my letter be too tedious I will only give one Instance of my usadge, a man holding a drawn durk to my brest gave a scrach of a wound which merk itt well beare: but this day Barisdale coming here, being my acquaintance, in his presence I sent a gentleman to all the men of my Lord Sutherland's that were in arms desiring them to disperse and return to their homes in order a proper Draught be made of them For your royall Hyness service. My success I can not determine as I can not Depend upon much assistance, but if matters were further att my Disposall all the Fensable men in Sutherland woud be on your Royall Hyness armie as I am quite affrighted. From the Hylanders I beg to petition your Royall Hyness protection how Soone pasable and I always am and ever will,' &c.

On March 27, 1746, from Tarbat House Lord Cromarty writes in answer to the Countess of Sutherland, acknowledging her letter, and promising protection to all her people who submit.

Then we have Barisdale's *billet* to the lady:

Col McDonell to Lady Sutherlande

'Ardmore: March 27, 1746.

'My Faire Prisoner,—I presume these with the offer of my most Respectfull humble Duty to my Lady Sutherland, my Regiment is ordered back againe to Sutherland For which I am verrie sorrie, if anie hardships must be used, itt shoud in the Least Fall to my Shaire. I will have one Certaine pleasure in Itt that it well give the oportunity of being For once more my Lady Sutherland's Saife guard. I Forwarded your Ladyship's letter by one Captt Lewlessnent, and sent itt Inclosed to his Grace, and held Forth my

Lady Sutherland's zeall For our Cause, and the Friendship she particullarlie expected From him, and represented the Horses taken away, and pleaded For her Interest to have them, att Least my Ladys Favourites, returned. I go this Day to Inverness myself and shall talk to His Royall Hyness in regard to what my Lady Sutherland woud Exspect off Favours From our side, and what is Actuallie Deue to her. After my return, shall have the pleasure of waitting off your Ladyship att Dunrobine, and allways will be Nott onlie your Lady's prisoner in the strictest Confinement, but your Ladyships most obdtt. and most humble sertt. while

‘COL. MCDONELL.’^[59]

An odious tale is told by the ‘Impartial Hand,’ about Barisdale’s conduct to his wife’s young sister. We do not trust the Impartial one where we have not corroboration, and, to his fair prisoner, Lady Sutherland, Barisdale certainly displays a tender gallantry. But she may not have regretted that her Barisdale was occasionally absent. Cumberland was approaching, and, on the eve of Culloden, Lord Cromarty was captured in ‘The Battle of Golspie,’ while dallying over his *adieux* to ‘his favourite Amazon,’ the Countess of Sutherland, as the Impartial one invidiously declares.

The Countess must have managed her diplomacy adroitly, for the Whig author previously cited says, ‘It is a pity the present Earl of Sutherland should be such a weak man, but his lady behaved very honourably, though her brother (nephew) the Lord Elcho, was engaged in the Rebellion.’^[60] The lady’s letter to Prince Charles was not known to our author.

Barisdale, leaving his fair prisoner, marched south, and halted at Beaulieu, on the night before Culloden. ‘He might easily have reached the field, had he been any way resolute or brave.’ But like the Master of Lovat and Cluny, Barisdale came up too late. The fugitives passed through Inverness, under his eyes, and Barisdale also made off.

He was at the Meeting of the Chiefs at Murlagan, on May 8, when it was determined to rally in a week, and a treaty was made, that all should hold together, in spite of the Prince’s defection.^[61] When the week ended, nobody came to the tryst but Lochgarry, who retired at once, Lochiel, and Barisdale, with three or four hundred of their clans. But the Rev. John

Cameron, in 'The Lyon in Mourning' (i. 88) accuses Barisdale of promising to return next day, as a blind, and of sending instead two companies of infantry in English service, to capture Lochiel. They were recognised by their red crosses, and Lochiel escaped, 'which was owing to its not being in Barisdale's power'—to catch him, 'rather than to want of inclination,' says Mr. Cameron. Murray of Broughton represents Barisdale as accusing his cousin and enemy, Lochgarry, of treachery, and believes that both were equally guilty, but Lochiel was as incapable of suspecting as of being guilty of treason. In his Letter to the Chiefs, of May 26, he says that Clanranald's men refuse to leave their own country, that Glengarry's men have yielded up their arms (induced thereto, we shall see, by Old Glengarry), that Lochgarry promised to return, but did not, and that, 'trusting to Lochgarry's information, we had almost been surprized.' But he never hints at a suspicion of Barisdale.^[62]

On June 10, says the 'Impartial Hand,' Barisdale and Young Barisdale both surrendered to Ensign Small, in a cave. But Barisdale, it is known, got a protection, on his promise to deliver up Prince Charles. He laid several schemes to this end, and had two companies to seize the Prince at Strathfillan. Sheridan, however, 'who had a talent for reading men with as great freedom and judgement as others do books,' warned the Prince, who kept out of Barisdale's clutches.^[63] So says the Impartial Hand.

His story of the protection for Barisdale was true, as witness the following letters from the Cumberland Papers, at Windsor Castle.

From G. Howard to Col. Napier, A.D.C. to D. of C.

'July 5th....

'A person passed me here yesterday morning whom I took to be lawful Prey, but, to my great concern, he produced a Pass-port for himself and 4 servants with their arms &c., syned by Sir E. Faulkner: it was dated only the day before yesterday. The person was McDonald of Barisdale, who is so particularly zealous for hanging our officers. I asked him if he had seen H.R.H. (Cumberland). He said no, but that a friend got him his Protection.'

Lord Albemarle to Duke of Cumberland

‘July 26th.

‘The Complaint is universal against Barisdale, therefore I shall not renew his protection, but drive and burn his country to punish him for having made such a bad use of your goodness. Glengarry is much commended for his behaviour.’

Finally, Barisdale had already induced several Macdonnells to lay a written information against Old Glengarry, their chief.

How did Barisdale, who had played a part so conspicuous, manage to obtain a protection from Sir Everard Faulkner? That is the point which we shall later find him explaining with singular candour. Protected he was, and, in pursuit of information, he had the singular impudence to venture, with his son, in September 1746, on board the ship which was to carry the Prince, Lochiel, Lochgarry, and other gentlemen to France. They could not but be aware that Barisdale had made his submission, and was come on no good errand. Lochgarry was his bitter enemy. They therefore put Barisdale and his son in irons, shut them down under hatches, carried them to France, and there imprisoned these gentlemen of Knoydart on a charge of treason. Mr. Fraser Mackintosh, a very innocent writer, thus describes the high-handed outrage: ‘Barisdale was so unpopular with the Camerons, that, without the slightest warrant, they took it on themselves to deport Coll Macdonnell, and his son Alexander [Archibald?] to France.’ Mr. Fraser Mackintosh attributes this unwarrantable action to ‘the Camerons,’ with whom Barisdale was generally ‘unpopular.’ But, of course, the seizure was warranted by Charles, Prince Regent, who is said to have knighted Barisdale on a stricken field. The seizure was more than justified, and was not due to poor Col’s ‘unpopularity.’

Col languished in a French prison till 1749. In March he ventured back to Scotland, finding himself, after his release, very ‘unpopular’ in Flanders. He was promptly culled like a flower by his old captor, Ensign Small, and was brought before Erskine for examination. Erskine writes that he found the tall bully ‘under visible terror.’ France had imprisoned him. England was likely to give him what ‘he wad be nane the waur o’—a hanging. His house was left unto him desolate; he would flirt no more with fair captive Countesses: no one trembled at his frowning brows: it was Barisdale’s turn to tremble, as he did. He was locked up in Edinburgh Castle, where, at least,

he was safe from avenging dirks. He there penned the following explicit confession, in hopes of a pardon, and pay as a spy. Perhaps Cumberland refers to Barisdale's earlier services in this capacity, in a letter of August 2, 1749. Cumberland speaks of 'the goodness of the intelligence' now offered to Government. 'On my part I bear it witness, for I never knew it fail me in the least trifle, and have had very material and early notices from it.'^[64]

Here, then, follows Barisdale's confession to the Justice Clerk in Edinburgh. It entirely disposes of Mr. Fraser Mackintosh's suggestion that the Camerons seized Barisdale because he was 'unpopular.'

Narrative given in by Barrisdale to the Justice Clerk

(H. O. Scotland. Bundle 41. No. 13. State Papers. Domestic)

April 10th, 1749.

'His Royal Highness, the Duke of Cumberland, sent a protection by Sir Alexr. Macdonald to Barisdale, upon delivering to him of which, he told him, in Consequence of the Favours the Duke intended for him, he should cause all such as he would have any Influence with, surrender their arms directly, which Barisdale did at the Barracks of Glenelg immediately thereafter; by which the Concert of those that imagined to make any further resistance was broke, and he gave all the Assurances Sir Alexr. desired of him, to be a good faithful subject, yt would give all obedience to the Government, which Since he has perform'd. *But from that time the Jacobite party design'd to ruine Barisdale*, and endeavoured, with all Calumny's, to make him odious to all partys and all Persons. The Pretender's Son having returned from the Isles to the Continent (mainland), Sir Alexr. Macdonald wrote to Barisdale, desiring to inform him of some particulars, which he did very distinctly, and soon after his R. Highness [Cumberland] left Fort Augustus, my Lord Albemarle, then Commander in Chief, desired Sir Alexr. McDonald to send for Barisdale to Fort Augustus. Sir Alexr. Macdonald wrote to him, and accordingly Barisdale waited of my Lord Albemarle at Fort Augustus, at Sir Alex. McDonald's Lodgings, where before Sir Alex. McDonald, his Lordship told Barisdale, as the Pretender's Son was now returned from the Isles to the Continent (mainland), if he hop'd for the Continuance of his R.

Highness's Favours, he must lay himself out in giving Assistance to have the Person of ye Pretender's Son sez'd.

'Barisdale answered, in Sir Alexander's Presence, that Sir Alexr. never made any such Proposal to him from his R. Highness (Cumberland); and if he was a Man supposed formerly in the Jacobite Interest, and *upon getting a better Light*, to forsake them it would be very inconsistent wth. Honour, for a Man so supposed, to go such Lengths. But for his share, were he to do his utmost to comply with his Lordship's desire, he could expect little success in it, since all the Jacobite Party were upon their Guard, even the meanest Highlander, to give no Intelligence to any he had Influence with.

'His Lordship and he parted that Day: my Lord Loudoun, Sir Alexr. McDonald, and Barisdale, being at a Bottle that night, resumed all that past at that Communing—Loudoun said, "I own what his Lordship desires of you, may not be easy for you to perform, but such Information as you can best receive, you can transmit to his Lordship and you can make an Observe upon each, according to the Credite you give yourself to the Information."

'My Lord Albemarle, the next day, at Sir Alexander's Lodgings, insisted as the Day before; and Barisdale agreed, such Informations as he could learn, he would transmit them, wt. Remarks upon them of the Credite he thought they deserved—My Lord Albemarle gave a Continuance upon the Protection for ten Days more, which was a short time for Barisdale to go to his country, and find Informations and then transmit them to Fort Augustus.

'However he sent two different Informations wt. Remarks upon them: is not certain which of the two, my Lord Albemarle or my Lord Loudoun's Hands they came to, as the Bearer of them brought back no Answer in writing: But at the End of the Ten Days of my Lord Albemarle's Protection, B. was rather more distress than any who were not before protected.

'Some few days thereafter, being at Sir Alexr. McDonald at Slaite, hearing two French ships coming to Ariseg, Sir Ar. McDonald desired Barisdale to go to these Ships, in order to learn

some things he wanted to be inform'd of, and Barisdale coming to the shore before the Ships, under Pretension of great Friendship was invited aboard, there being at the Ships severals he was acquainted with; But soon after he was aboard, found his Mistake, would not be allow'd afterwards to come ashore, was carried to St. Malos, seated upon the River La Luare where he was prisoned about 2 years and four months. The 7th. of February last, with a Sentence of Banishment to leave France in a few Days, was liberated: which Sentence is now in the hands of the Governor of Fort Augustus.

'The Accusations laid against him by the Pretender's son and likewise laid before the Court of France were sent to Barisdale enclosed in a Letter, wrote and signed by George Kelly, the Pretender's Son's Secretary, of which there is a Copy herewith.'

He now offers services unconditionally^[65]—'but is sorry to be prevented in his Design of going to London as he entended to throw himself in his R. Highness the Duke of Cumberland's Hands, hoping, as he still does, for his Highness' Protection and Friendship, as promised to him by Sir Alexander MacDonald in his R.H's. Name at their first Conference, when he delivered to him the protection, in the obtaining of which Barisdale will be capable, as he is most willing, of doing essential Services to his R. Highness and the Government in the North of Scotland:—and says 'it may appear most reasonable, however, for the Family he is descended from, or the Clan he is of, have been attach'd to the Pretender's Family, that his cruel, uncommon, and severe usage from that Family will not only make him most faithfull to the Government, but as stiff an Enemy as that Family have upon Earth. For it is well known the Pretender's Son exprest at Paris to some of the Scots, who were sorry for Barisdale's treatment, that while it was in his power, Barisdale woud never recover his Liberty, at least while he was in France, for that he was well assured, if ever he return'd to Scotland, being well assured B. being both resolute and Revengefull, he woud prove a very destructible Instrument to his Interest.'

Here are the Jacobite charges against Barisdale:—

Copy of George Kelly, the P.'son's Secretary's Letter

'Paris, May 3rd, 1747.

'... Did you not own publickly, that upon his R.H's. Approach to Inverness, you advertised the Lord President and the Lord Loudoun of the same, and advised them for their further Safety to retire from thence?... Did you not, without asking their Advice or Approbation, Surrender yourself to the Enemy, and enter into certain Articles with them?...

'Whether, after receiving a Protection from the Enemy, you did not engage and promise to apprehend the Person of H.R.H. and deliver him up to them within a limited time?...

'Whether or not you did not impose on several Gentlemen of Glengary's Family, by asserting that he had promised to deliver them up to the Enemy, and that he was to receive 30*l.* sterling Premium for Each Gentleman he should put into their Hands? Did these gentlemen sign an information against Glengary? And were his letters ordering them to take up arms delivered up to Lord Albemarle, upon which your Cousine, Glengary, was apprehended?'

And now the whole truth is out, as concerns Col, third of Barisdale. His cruelties, his thefts, his swaggerings, have ended in deliberate treachery, and this worthy chieftain is found endeavouring to do what the humblest peasant disdained even to contemplate, to deliver up the fugitive Prince.

Barisdale took no profit by his iniquity. The Ross people, whom he had harried, burned his famous stocks, and his house, with its 'eighteen fire-rooms, and many others without fires, beautifully covered' (roofed) 'with blue slates.'

He himself died in 1750, in Edinburgh Castle; six soldiers, with no mourners, carried his bulky and corpulent carcase to a grave 'at the foot of the *talus* of the Castle.'

So says the Impartial Hand. Of Barisdale's classical lore, and of his courtesy to a fair captive, we have seen proof. For the rest, a more worthless miscreant has seldom stained the page of history. It was time that such a career as his should be made impossible.

Young Barisdale skulked for years in the Highlands, a kind of Hereward, pursued by the English troops. He was usually accompanied by five or six of his Clan, armed, and in the prohibited Highland dress. He supported life in his father's fashion, mainly by robbing the herring fishers of a fifth of their takes, under some pretence of a legal claim. His tenants, spoiled by the English troops, probably could contribute little to his maintenance. He is often mentioned in the Cumberland Papers, and, after he had been the guest of young Glengarry's uncle, Dr. Macdonnell, that physician talked indiscreetly as follows.

On Sept. 30, 1751, Captain Izard, of the Fusiliers, writes: 'Dr. Macdonald, brother of Glengarry, living at Cailles on Loch Nevis, told that young Barisdale lay at his house the Monday before, and took boat thence to carry his sister home, and he proposed going to the Isle of Skey' (Skye).
[\[66\]](#)

He was taken at last on July 18, 1753, in a wood near Lochourn in Morar, and was tried in Edinburgh on a charge of High Treason, on March 11, 1754. With him was Macdonald of Morar, five or six other Macdonalds, and Mackinnons, a MacEachan, and others. He disputed the indictment, which described him as 'of Barisdale,' on the score that his grandfather had only been 'a moveable tenant of Glengarry's, without any right in writing whatsoever.' This plea was disregarded, and he was condemned to be hanged on May 22, bearing his sentence 'with great composure and decency.' Being respited, he lay in the Castle till 1762, when he took the oaths, and was released.

By a curious freak of fortune, young Barisdale's son Col, in 1788, 'held a Commission to regulate the Fisheries. This, in the height of the fishing season, was no easy task, and required a firm hand. Not only were there disputes among the fishermen themselves, but, apparently, thieves made it a regular trade to attend, and pick up what they could.... The poor fishermen now suffer from piracy in another form. If there were officials like Barisdale armed with sufficient powers, trawling within the limits would soon be extirpated,' writes Mr. Fraser Mackintosh.
[\[67\]](#) The fishermen have never been fortunate. Before trawling came in they had to do with the portentous Col of Barisdale. Perhaps, of the two, they may prefer the trawlers.

Thus, in a generation, the son of Archibald and grandson of Col, the former a brigand and thief alike of cattle and herrings, became a peaceful subject, and protector of the very class of fishermen whom his grandsire had plundered. We may drop a tear over old romance, but reality has its alleviating features. There is absolutely no kind of villainy of which Col of Barisdale was not eminently guilty. Oppression, cruelty, cowardice, theft, and treachery were all among his qualities, were all notorious, yet, till after Culloden, Col could laugh at the law, and was not shunned by society.

We have seen that Col accuses Sir Alexander Macdonald of Sleat of corrupting his honour, and advising him to sell himself. This may, or may not, be true. The sympathies of Sir Alexander had been Jacobite, before 1745, but Murray of Broughton states that in 1741 he was very angry when Balhaldie put his name on a list of adherents presented to the French Court. 'He declared he had never given him any authority to do so.' A statement to the contrary effect will be found in Mr. Mackenzie's 'History of the Macdonalds,' page 234. In 1744, Murray represents him as ready to rise if French troops were landed. Murray repeats, in justice, that Sir Alexander's promises were purely contingent; they depended on the existence of a 'well-concerted scheme,' and there was none. But Sir Alexander not only did not come out, he was won over by Forbes of Culloden to the Hanoverian Cause. 'I should be sorry,' says Murray, 'to have so bad an opinion of mankind as to think any of them capable of attempting an apology for him.' Murray, in his examination, lied in Sir Alexander's interests, saying 'he always absolutely refused to have anything to do with the Pretender.' But, after Preston Pans, Sir Alexander, moved by that victory, said, in the hearing of Malcolm Macleod of Raasay, that he would now raise 900 of his clan and march south to fight for King James. Next morning, however, he received a letter from Forbes of Culloden, and instantly 'was quite upon the grave and thoughtful, and dropt the declared resolution of his own mind.'^[68] In fact, he turned Hanoverian.

Later, in the crisis of the Prince's wanderings, Sir Alexander was not at home when his wife, Lady Margaret, connived with Flora Macdonald to secure Charles's escape from Skye. Lady Margaret wrote to Forbes of Culloden that Flora was 'a foolish girl,' and thanked God that *she* knew nothing of the Prince's being in hiding near her house. Sir Alexander, on the other hand, confessed to Forbes that Flora put his wife 'in the utmost

distress by telling her of the cargo she had brought from Uist.’^[69] It was fortunate for everybody, himself included, that Sir Alexander was away from home. He wrote the following letter to Cumberland, confessing nothing:—

*From Sir Alexander McDonald to H.R.H. giving intelligence of
Pretender’s movements*

‘Sconsar, Isle of Sky, 1746.

‘Sir,—This morning Capt. Hodgson remitted to your R. Highness all the intelligence I had then got; in rideing a few miles I was informed of the Pretender’s whole progress since he landed in this island. By the letter remitted to your R.H. he was left at Portree, 14 miles from my house near which he landed; at Portree he met one Donald McDonald, who was in the Rebellion, and who put him into a boat belonging to the Isle of Rasay, which feryd him into that island; after staying there 2 nights he returned in the same small boat to the neighbourhood of Portree, attended by one Malcolm McLeod. That night he and his companion lay in a byre; next day (the Pretender in shabby man’s apparel since he left Portree) they found their way into a part of MacKinnon’s estate, and having found MacKinnon, though disguised and lurking himself, he found a boat which next day convey’d the Pretender, MacKinnon, and one John MacKinnon, into Moror. They sail’d from this island on Saturday last. MacKinnon was taken in Moror by a party from Sky, and John McK. was this day seized ... they are both on board the Furnace and confirm to a trifle the above relation.

‘ALEX. MACDONALD.’^[70]

The Baronet tells as little as may be; he does not implicate Flora, and, of course, shields his wife. His own position was awkward.

Sir Alexander died in November 1746, when about to visit Cumberland in England. It is to his credit that he did his best to protect the loyal Kingsburgh. But his vacillations were extreme, and if he really helped to corrupt Barisdale, his behaviour is without excuse. ‘Were I to enumerate the villains and villainies this country abounds in I should never have done,’

wrote Cumberland to the Duke of Newcastle. 'Some allowance must be made for Sir Alexander's behaviour in the Forty Five,' says Mr. Fraser Mackintosh. It was not precisely handsome. The epigram on his death, which has variants, ran thus:

If Heaven be glad when sinners cease to sin,
If Hell be glad when traitors enter in,
If Earth be glad when ridded of a knave,
Then all rejoice! Macdonald's in his grave.

VI

CLUNY'S TREASURE

The bayonets of Cumberland scarcely dealt a deadlier blow at Jacobitism than the spades which, in gentle and unaccustomed hands, buried the treasure of French gold at Loch Arkaig. About this fatal hoard, which set clan against clan, and, literally, brother against brother, something has been elsewhere said. But the unpublished reports given by spies and informers in the Cumberland Papers and the Record Office throw a great deal of unexpected light on the subject.

Our purpose is, first to offer what may be called official statements as to the original amount and hiding places of the treasure. Next we shall examine the stories as to the disposition and diffusion of the money. These will indicate that the charges of 'embezzlement' and 'villainy' brought by Young Glengarry against men so noted for their loyalty as Dr. Cameron and Cluny Macpherson are false. In our evidence will occur the testimony of informers, whose names, as they were persons of no historical importance, it seems needless to reveal. But their revelations were employed by Government in securing the condemnation and banishment of Lochiel's brother, Cameron of Fassifern.

On the whole subject of the hoard we have several statements by Murray of Broughton. The least copious is contained in a tract which professes to be written by a friend of Murray; really it is from his own pen.^[71]

Murray, who had been in very bad health since the Prince was in Elgin before Culloden, found himself skulking with Lochiel in a wood near Loch Arkaig. He heard at the same moment of Charles's flight to the isles, which he condemned, and of the arrival of French ships with money. Most of the party resolved to scatter, but Lochiel declared 'that to desert his Clan was inconsistent with his honour and their interest,' and, by his desire, Murray remained with him, 'unable to refuse the desire of a person for whom he had such a regard, and with whom he had lived so many years in the strictest intimacy.' Major Kennedy, too, though, like other officers in French

service, he might have surrendered safely, most generously gave to Lochiel. In later years Kennedy recovered for the Prince a remnant of the French *louis d'or*.

Murray was next carried to the bay opposite Keppoch, where the French ships were lying. They had been attacked by British vessels of war, but had previously landed 35,000 *louis d'or* in six (seven?) casks. One cask, however, was already missing. The five casks were conveyed to Murray, and of the stolen cask all but one bag of gold was recovered. Next day the Duke of Perth, who was dying, with his brother, Lord John Drummond, Elcho, old Sir Thomas Sheridan, the Prince's tutor, the younger Lockhart of Carnwath, and others sailed for France in the ships. Murray paid Clanranald, Barisdale, and others their arrears, with allowances for widows and wounded men, out of the French gold. He then sent off the remainder of the hoard under Archy Cameron's care, and returned to Loch Arkaig. Fifteen thousand *louis* were buried 'in three several parcels in the wood,' and the empty casks were filled with stones, and carried about with Murray, 'so as to give no jealousy to the other Clans of his having more confidence in the Camerons' than in them. Near the foot of Loch Arkaig, Murray caused Dr. Cameron to bury 12,000 *louis*, reserving about 5,000 for expenses.

Murray travelled south and was captured in Tweeddale. On August 27, 1746, when in the Tower, he wrote to an English official, 'last time I had the honour to see you, I offered to lay my hand upon the 15,000 *louis d'or*, and am still certain I can do so, but as the season is now advancing, and the parties will probably soon be called in, it is not in that event impossible but the money may be raised.' (It was 'raised' by Dr. Cameron.) In his Examination (August 13, 1746) Murray had already betrayed the secret of the casks of gold. But the English could never discover the treasure.

Elsewhere, in a paper of accounts, Murray tells, in defence of his pecuniary honesty, all about the disposition of the *louis d'or*.

He accounts for various sums, including 40*l.* to Lochiel, who, like the gallant gentleman he was, had given every penny in his possession 'to his own people about.' Mr. Murray 'chided him for being too easy to give money to whoever asked it.' A sum of 3,868*l.* was buried in the garden of Mrs. Menzies of Culdairs. This, we presume, was the bulk of the 5,000

louis reserved. Murray corroborates (as in his tract) an anonymous informant's story, presently to be given, about the stealing of a cask of money, and restitution made after confession to Father Harrison. The penitent however, an Irishman, kept 700*l.*, as stated in the anonymous information. Murray reckons at 15,000*l.* a sum buried near Loch Arkaig, by Dr. Archibald Cameron, Young Macleod of Neuck, Sir Stewart Threipland, and Major Kennedy. There were fifteen bags containing 1,000*l.* each; one parcel was put under a rock, in a burn, and two in holes, near at hand, dug by the four gentlemen. Another sum of 12,000*l.*, in two parcels, was carried by Dr. Cameron and Mr. Macleod, from Lochiel's house of Achnacarry, and buried near the *lower* end of Loch Arkaig. Lochiel received 1,520*l.* for the Prince's immediate needs, and the rest is scrupulously accounted for the unhappy Secretary. His stories are consistent throughout.^[72]

Another description of the arrival and burial of the gold has never been published. It is from the Cumberland Papers, and must have been written about 1749-1750. This is proved by the writer's mention of Barisdale as still alive, and in prison. Now young Barisdale (Archibald) is not meant, for he was not taken till 1753.^[73] His father, Coll Macdonnell of Barisdale, on the other hand, was taken in March 1749, and died in Edinburgh Castle on June 1, 1750.^[74]

We now offer this anonymous intelligence of 1749-1750, as to the arrival, burial, and later fortunes of the French gold.

*'Intelligence sent to Col. Napier from Scotland about Seven Casks
of Money for the Rebels*

Cumberland Papers. Memoir for Col. Napier.

'Soon after the Battle of Culloden a french privateer anchored in Loch Nonha in Arisaig, where Doctor Cameron, Brother to Lochiel, Cameron of Dungallen, prisoner in Edr. Castle, and many other Rebels were then sculking. One of his Majesties' 20 gun Ships and 2 Sloops were cruising on the West Coast, immediately got intelligence of the privateers, and came up and attacked them, but before the action began they had landed 7 Casks of money and committed it to the Charge of Doctor Cameron, who was upon the shore wth. a great many others of the Camerons and Mc.Donalds,

who flocked from all Corners to see the engagement, and among others Mc.Donald of Barrisdale, now prisoner, was also present and Alexd. Mc.Lachlan in Lidderdale and Aide-de-Camp to The Pretender.

‘When the action was over, The Commander of the Privateers, having heard of the Battle of Culloden, insisted to have the money put on board again. *But the Rebels beg’d to be excused*, and Doctor Cameron conveyed away six of the Casks to Loch Morrer, 3 miles from Loch Nonha: (The 7th Cask being stole) and there he got a boat and went wth. it to the head of ye Loch and from thence got in to Loch arkick; And having dismissed all the Country people, He wth. Major Kennedy, a french Officer, and Alexd. McLeod son to Mr. John McLeod advocate, took the money out of the Casks, and put it underground in the head of Locharkick, in the midle of a Wood.

‘There was £6 or 7,000 st. in each Cask, All put up in separate Bags, £1,000 in Each bag. They afterwards carried away the empty Casks themselves (none being present but the 3 persons above named) and when at a considerable distance from the place where the Money was hid, They caused the Country people put them underground in a different place in order to deceive.

‘After this was over, All persons were employed to enquire after the Cask that was stole during the engagement. And by the Assistance and authority of a priest (Father Harrison) who is great in that country (all Roman Catholics) the money was recovered except £700, and That is still amissing, ... It is not well known what became of this broken Cask afterwards But Dr. Cameron had the Manadgement of it and all the rest, and it is imagined That The money divided at the meeting with Lovat, at the head of Loch arkick, was part of it, and £3,000 was given to one Donald Cameron at Strontian to Conceal, wch he again delivered to The Doctor, but got not one shilling for himself. [Is this the money hidden at Culdares?] Several of the Country people got each a Louis d’or and some of their gentlemen got each 2 or 3 and that was all the Distribution made among the Camerons.

‘His Majestie’s troops afterwards search’d the woods of Locharkick for this money, and were often round the place where it was, and missed very narrowly finding it, for being hid by Gentlemen, not used to work, it was very unskilfully done, and the stamps and impression of their feet visible about the place. But as soon as Dr. Cameron found a proper opportunity, He went and took up the money and hid it in two different places of the wood. In one of them he put 12,000*l.*, wch he shewed to his own son, and another man, That in case he was taken, it might not be lost altogether, and the other part he put in a place which he shewed to nobody. And thus it remained till a Ship arriv’d in Loch Nonha to carry off the Pretender &c. When the above Ship arriv’d He (the Pretender) was sckulking in one of the Glens of Brad Badenoch where he had been for some time conceal’d in a place under ground, with Lochiel, Cluny Mcpherson, and some other person. Upon receiving Intelligence of the arrival of this Ship, It seems it was concerted That Cluny should remain in Scotland and have the Charge of the money. And having come all together from Badenoch to Locharkick, they got Dr. Cameron, who went and shew’d Cluny the 2 different places where the money was: Left him in that Country, and the rest went and embarked with the Pretender in Loch Nonha. Whether there was any of the bags then taken up (as is probable) carried with them, or how many, is what I am not informed of.

‘But Certain it is that Cluny immediately after Carried the £12,000 to Badenoch And there were in Company wth. him Angus Cameron (of Downan) a Rannoch Man, brother to Gleneavis, McPherson of Breachy (Breakachy), a brother in Law of his own, and his piper.

‘The other part of the money, was shew’d to no Living but himself, and he either did not find an opportunity, or did not think convenient to come for it, untill a month afterwards, when he came and carried it also away, but I am not justly Informed who were wth. him, nor how much was of it, tho’ It is generally believed That he got betwixt £20 and £30,000 in all.

‘It is said by Cluny’s Friends that the Pretender, after embarking, sent a note to Cluny with particular instructions how he was to

manage the money and to whom he was to give any part of it,^[75] and *they say that he has conformed in the most exact manner to his Instructions*, but The other Rebels in the highlands grumble egregiously That he has not done them justice. I have only heard That he gave £100 to Lady Keppoch^[76] and have reason to think That if he made any other distributions it was to some other of the principall Gentlemen of The Different Clans, to be given away among their people, and that those have thought fit to retain all to themselves.

‘I know it is strongly suspected that Cameron of Gleneavis, whose Brother (Angus) was with Cluny at Carrying away the £12,000, has received a Large proportion by some means or other, and there is great reason to think so, as he was almost bankrupt before the rebellion and is now shewing away in a very different manner, particularly This year about a month ago, there were 120 Louis d’ors sent from him to a man in Locharkeek to buy Cattle for him; and some of the Camerons having lately threatened to be resented of him for his behaviour about yt money, he met with them, and parted good friends, which is supposed to have been done by giving them considerably.

‘Barrisdale tells that Cole or Major Kennedy was to embark much about the same time yt he came from France, was to land on the West Coast in order to meet with Cluny, and carry away the money, but I have not yet learned any thing with regard to him, And am apt to believe That he has rather landed on the Eastern Coast and my reasons for this Conjecture are: That one Samuel Cameron (Brother to The above men’d Cameron of Gleneavis) Major in the Regt. which was Lochiel’s in the French Service, was at Edr. and came in a Chaise with the famous Mrs. Jean Cameron to Stirling, where they parted, and she came to her house in Morvern about the middle of March, and he took some different route: It is supposed That he came over on a message with regard to that money, and I the rather believe it as his two brothers seem to have been concerned in it, and I am apt to think that Kennedy and he have come together, but this is only my own conjecture. Another reason which induces me to believe That he would Chuse to land on the E. coast is That Cluny

would not probably Like to march with that money or trust himself among the highlanders, who would probably not let it pass without partaking liberally.

‘It has been said That the French Officer Cameron came to Mrs. Jean Cameron’s, but I am certain he has not come, else I would have got Intelligence of him, for I have had a sharp look out for him and all others of that Kind. And I think he would not probably venture so near the Command and specially after hearing of Barrisdale’s fate’ (taken in March 1749).

‘It is said That his Two Brothers and Cluny have differed about the money, and therefore Cluny would not see this French Officer nor trust him wth anything and some say He is gone back again, but how far This is true I can’t positively determine.

‘The above is all that I have been able to learn wth regard to that money from first to last, and I am much convinced that the Substance of it is true.’

[Unsigned.]

Even before the probable date of this intelligence, Government knew that Cluny’s fidelity to his trust had embittered his relations with the Camerons of Glenevis and Glengarry’s people. There is a curious anonymous note of January 26, 1748, ^[77] written by a man who could spell, and was something of a scholar. ‘*Scyphax*,’ he says, ‘is still in the country and there are disturbances between him and the *Dorians* and *Ætolians* over the goods left by the *Young Mogul*.’ *Scyphax* is Cluny, the *Dorians* are the Camerons, the *Ætolians* are the Glengarrys; the *Young Mogul* is Prince Charles: ‘Nothing but stealing and plundering prevails in all quarters here.’ The writer may have been a Presbyterian minister.

The author of the long letter of intelligence is unknown, but he can hardly have been an English officer, like Ensign Small, who did much secret service in the Highlands. *His* name is always signed to his Reports, as when he tried to catch Lochgarry on shipboard, in 1753. The information, however obtained, is accurate, and, so far, entirely exculpates Cluny from the various unpleasant accusations brought by his enemies.^[78] Major

Kennedy really went from France to Newcastle, and received 6,000*l.* for Charles, a sum conveyed to him, at what peril we may imagine, by Macpherson of Breakachy.^[79]

We now consider the various accounts given of embezzlement by Dr. Cameron and Cluny. It is certain that, in November or December, 1749, Young Glengarry, Lochgarry, and Dr. Cameron were in Cluny's country, that they handled the treasure, that they quarrelled, and that they carried their dispute before the exiled James in Rome. Dr. Cameron accused Young Glengarry of obtaining the money by a forged order from James; while Glengarry charged Cluny and the Doctor with 'embezzlement' and 'villainy.' Cameron, he said, declared that the Royal Family had given up all hopes of a restoration, and told the Highlanders that they must now shift for themselves. He also took 6,000 louis d'or of the Prince's money, 'and I am credibly informed,' says Glengarry, 'that he designs to lay this money in the hands of a merchant in Dunkirk, and enter partners with him.'^[80] Again, in an undated letter to Charles, of about March 1751, Glengarry denounces the embezzlement and 'villainy' of Cluny and Dr. Cameron.^[81] He acknowledges having taken 'a trifle' himself. Another account, clearly from a Macdonnell source, occurs in old Gask's hand, among his papers.^[82] Dr. Cameron is here, as by Glengarry, credited with absorbing 6,000*l.*, while Cameron of Glenevis is said to have 'intercepted' 3,000*l.*, and Cluny, 'for his estate' gets 10,000*l.* This reads like a variant of Young Glengarry's tale told to Bishop Forbes in April 1752. According to that version, Cluny and Lochiel took security from Charles for the full value of their estates before they joined the Royal Standard. This full value is the 10,000*l.* which Cluny is said to have 'embezzled.'



Walker & Boutall, ph. sc.

Prince Charles

circ. 1747.

Now the only independent evidence against Dr. Cameron is contained in a letter of his uncle, Cameron of Torcastle, to Prince Charles.^[83] In this

Torcastle denies that he himself touched the money, and avers that he knew nothing of it, till Dr. Cameron 'told it himself at Rome, where I happened to be at the time' (1750). This letter is singularly inconsistent with another unpublished letter from Douay, of August 28, 1751. The epistle was intended for Cameron of Glenevis, but was intercepted by Colonel Crawford, Governor of Fort William. The Colonel attributed its authorship to Cameron of Torcastle, and if the attribution be correct, the letter contradicts Torcastle's accusations of his nephew, Dr. Cameron. Whoever the author of the Douay letter may be, he speaks of 'the industrious malicious designs and scandalous untruths, publicly handed about against Lochiel's family by Glarry.' 'Chalmers (Dr. Cameron) knows very well that when truth comes out, these people will fall with scandal into the trap they have contrived for others.... All that Chalmers (Dr. Cameron) saw or had access to *was his expenses*.' The writer then speaks of the 'unprecedented method Glarry &c. took to get att their sinister ends,' and about Glarry's misrepresentations of Chalmers to Mr. Young,' the Prince. Singular irritation against Lochgarry is also expressed. ^[84]

On this showing Dr. Cameron got no 6,000*l.*, but only his expenses. Now, that Dr. Cameron should receive his expenses was perfectly legitimate. But, if he took 6,000*l.*, as Young Glengarry declares, his character is lost. In 1750, 6,000*l.* was a fortune. Dr. Carlyle, writing of that time, speaks about a minister who married a lady with a tocher of 4,000*l.*, which then was equivalent to an estate. When executed in June 1753, Dr. Cameron left his family destitute. Consequently he cannot have helped himself to 6,000*l.*, and put it into commerce, as Glengarry alleged. That he did nothing of the sort, we have the very curious evidence of an Informer in 1753. This man, declaring that he is afraid of being informed against by Young Glengarry, informs against him. He says, in his information:

'In Sep. 1749 Dr. Cameron told him (the Informer) he had come over to get some money on behalf of Lochiel's Family; That Fassfarn got from Clunie £6,000, took it to Edinburgh the following winter, and put it in the hands of John Mc.Farlane, W.S. ^[85] Dr. Cameron at the same time got £350: and Fassfarn £400 more to be employed in making good certain claims on the estate of Lochiel.

'Says he saw Dr. Cameron a day or two after, who denied either he or Fassfarn had got any money, alledging that Cluny would not give it without

orders from the Old Pretender: That the Doctor was off to Rome (1750) to get these, with only £100 for expenses. That the following winter he (the Informer) met Young Glengarry, who disproved this by giving him a copy of the Accounts in Clunie's writing of all the money.'

Here follows Young Glengarry's *alleged* copy of Clunie's accounts:—

'A State of Clunie McPherson's Intromissions

	£	s.	d.
'By Cash given Dr. Cameron and Fassfern, <i>secured with Fassfern for use of young Lochiel</i>	6,000	0	0
" sent to Lochiel by Angus Cameron and Donald Drummond, brother to Bohaldie	1,000	0	0
" given the Dr. when last in Scotland to carry his Charges to and from Rome	350	0	0
" at 2 different times by Angus Cameron to the Clan Cameron and others needy	800	0	0
" charged by Clunie for his Estate	5,000	0	0
" " " for his Commission	1,000	0	0
" " " for 30 Men from September 1746-Sep. 1749.	1,627	10	0
" charged by Clunie as his pay, at half a-guinea per diem during said time	542	10	0
" charged by Clunie as Maintenance of his Family	1,400	0	0
" charged by Clunie for Brechachow (Breakachie)	800	0	0

”	given to young Glengarry Nov. 1749	300	0	0
”	given by Clunie to his Clan	500	0	0
”	” Fassfern to pay Publick Burdens on Lochiel’s Estates, viz. Cess and Teinds due by the Tenants	200	0	0
”	given Fassfern to defray the Expences in carrying on the Claims on Lochiel’s Estate	100	0	0
”	Alleged by Clunie to be in Angus Cameron’s hands	500	0	0
”	in Clunie’s hands	4,880	0	0
		<u>£25,000</u>	<u>0</u>	<u>0</u>

‘N.B.—Young Glengary got £1,900 at Edinburgh from Mr. Mc.Dougald at the sight of Mr. John Mc.Cleod of Nuck, Advocate, of which Glencarney got £80 and Glencoe £50. But this money had no connection with Clunie’s Intromissions, having been carried to the South by Mr. John Murray.’^[86] [Part of the 5,000 louis kept by Murray?]

According to this statement, said to be produced as Cluny’s, Dr. Cameron did *not* receive 6,000*l.* for himself. The money went to the support of the exiled family of Lochiel, who had died in 1748. The large claims made by Cluny rest, as before, on the word of Young Glengarry.

In May 1753, Fassifern himself, then a prisoner in Edinburgh Castle, was examined. He declined to give any evidence against anybody on any charge. He admitted that in 1749 he received 4,000*l.* from Evan Cameron of Drumsallie, now dead, for Lochiel’s family. He asked no questions, but deposited it with Mr. Macfarlane, W.S., who lent it out to Wedderburn of Gosford, in Fassifern’s name. Fassifern acted as a near relation for his exiled nephew, Lochiel’s son.

Thus the money which Dr. Cameron is said to have seized, was used for the support of Charles’s best friends, the family of his most renowned

adherent. So vanishes the charge that Dr. Cameron speculated with the money.^[87]

As to Cluny's retention of money, the same difficulty occurs as in the case of Dr. Cameron. He arrived in France a destitute exile, when, by Charles's command, he ceased to skulk in the caves of Ben Alder, and crossed to join the Prince in 1754. There is no trace of the value of an estate in his possession, though Charles, in ordinary gratitude, owed him much more than he is said to have claimed. Thus it is certain that Archibald Cameron did not help himself to the Prince's money; while the story about Cluny is inconsistent both with his honourable poverty and with figures, for these accounts make no allowance for 6,000 louis, certainly conveyed to Charles by Major Kennedy. The whole scandal rests merely on the word of Young Glengarry.^[88]

VII

THE TROUBLES OF THE CAMERONS

This affair of the treasure caused endless calamities, especially involving Cameron of Glenevis, a place within two or three miles of Fort William. The relationship of this family to the head of the clan, Lochiel, stands thus: Archibald Cameron of Dungallon, who died in 1719, was the husband of Isabel Cameron of Lochiel. By her he left two sons and three daughters, of whom Jean married Dr. Archibald Cameron of Lochiel, the last Jacobite martyr; while Mary married Alexander Cameron of Glen Nevis.^[89] Glenevis, or Glen Nevis, was not out in the Rising of 1745, but he was imprisoned in 1746, and released in 1747.^[90]

The house of the Camerons of Glenevis, according to Mr. Mackenzie's 'History of the Camerons,' was of very ancient standing. It was 'generally at feud with Lochiel, and this feeling of antagonism came down even to modern times. Indeed, it has been maintained that the Glenevis family were *originally not Camerons at all, but Macdonalds*, who settled there under the Macdonalds of the Isles, before the Camerons had any hold on the district.' They are also spoken of as Macsories. However this genealogical point may be settled, there was no love lost between Glenevis and Young Glengarry.

The Glenevis family, though not overtly engaged for the Cause, suffered from the brutalities of the victors. In spite of Glenevis's abstinence from the Rising, his family was persecuted. Mrs. Archibald Cameron communicated to Bishop Forbes a lamentable story of how her sister, Glenevis's wife, was stripped by Cumberland's men, under Caroline Scott, and only permitted to keep a single petticoat. Her little son's gold buttons and gold lace were cut off his coat, and the child was wounded by the knife.^[91] This story, which has contemporary evidence from the lips of Lady Glenevis's sister, Mrs. Archibald Cameron, has received the usual picturesque embroidery of Highland tradition. Dr. Stewart ('Nether Lochaber') got the tale from some ladies named Macdonald, in this fashion: the infuriated soldiery, finding none of the plate and jewels which Lady Glenevis had buried, observed a

bulky object under her plaid. Slashing with swords at the plaid, to discover the supposed treasure, they wounded the lady's baby, a child of a few months old. Mrs. Cameron's less romantic version, if either, is correct.^[92] The brothers of Glenevis were Allan, who fell at Culloden—*felix opportunitate mortis*; Angus of Dunan or Downan, in Rannoch; and that unhappy Samuel, called Crookshanks, whom Dr. Cameron, before his execution, denounced as 'the basest of spies.' He was in French service, but was drummed out, after Dr. Cameron's death.

In October 1751, Colonel Crawford, commanding at Fort William, received from head-quarters information about Glenevis's and Angus's share in the treasure. Fassifern, Lochiel's brother and representative, was also denounced. The Colonel took to the duties of policeman with a will, and the following letter from him describes his arrest of the accused:—

From Lieut.-Col. Crawford to Churchill

Cumberland Papers.

Fort William: Oct. 12, 1751.

... 'When I received the Packet from the Express, I without hesitation affected a surprise and concern at receiving the news of our Cloaths being stranded, and pretended to consult him about the nearest way through the Hills to Aberdeen, near which Place I saw the misfortune had happened; this answerd extremely well in blinding our good Neighbours in the Town of Maryburgh,^[93] who are for the greatest part ready enough to give Intelligence to the Country, of any Movements made by the Garrison. I then employed Captn. Jones to execute the warrant upon Fassifarn, and that he might be at no loss in not knowing the Man or the Country, I sent Mr. Gardiner along with him, whose zeal and readiness to assist you are no strangers to. They pretended to go in the German Boat on a fishing scheme, and turning up Lochiel, they soon got to his house, and secured him and every Thing of Paper Kind, bringing all to the Garrison.

'As soon as they were set out for Fassifarn I pretended to take a walk out of the Garrison, to see if I could make a purchase of Hay for my Horses, and taking Mr. Douglas, the Sheriff substitute, out

with me,^[94] by way of shewing me the Road and Country, I allowed only two more officers to accompany me, that we might give no suspicion of our Intentions, which would have been soon discovered had I allowed more or sent a Party.

‘However, notwithstanding these precautions, we were told at going to the House, that Glen Nevis was walk’d out with his Brother in Law, Dungallon, and still persisting that we should be glad to see Glen Nevis, to talk with him about his Hay, I prevailed on his wife to send a messenger for him into the Fields, which having done I took care, that no other Intelligence should go from the House, and then proceeded to search for his Papers: but I soon perceived that a Consciousness of Guilt, had made him secrete almost every Paper, and the hearing that Dungallon^[95] had come to his House in the Middle of the preceeding Night, confirmed me in my suspicions that we should see no more of Glen Eves or Dungallon. I then ordered the Parties who were in readiness to go round the Hill, and come down upon the Head of the Glen, making a strict search, but it was to no purpose. You’ll please to observe that Dungallon, by way of blinding Douglas, had wrote him on the Wednesday, that it would be some Days before he could be in this part of the Country, and yet that very night, near the middle of it, did he come to Glen Eves’ house, and for what Intention may be easily guessed.

‘It is however some satisfaction that notwithstanding the pains they have been at, to conceal their treasonable practices, yet by their remissness I have found some Old Letters among Cloaths, which will greatly help to put their transactions in a proper light, and part of wch I have now enclosed for your perusal. [The letters enclosed are not in the Cumberland Papers.] The Letter I have marked No. 1. is a Letter from Glen Evis to his brother Angus Cameron, in the beginning of which you’ll see that Fassifarn and he are not in concert, and that Fassifarn complains of them both, as I imagine for having got too great a share of the money, and Glen Eves’ hint to Angus is, not to look upon Fassifarn as his friend.

‘In No. 2. You see Angus in his proper Colours appointing the Congress with Cluny (in December 1749); and it would not be amiss that the Name of the Place, Catlaick, should be well observed

on that worthy Gentleman's Account. You see that Loch Gary was in the Country, and on what accounts; likewise the errand of young Glengarry. Whether the "Crookshanks" there alludes to Cluny as a Cant word for his having a wry Neck, or to a Brother of Glen Evis [Samuel, the spy] who is an officer in the French Service, and has crooked legs, I am not certain, but I believe it is to the Latter.

'You will likewise observe by this letter that a correction is to be made in the key of your Intercepted Letter, that Angus is Brother to Glen Eves and not to Fassifarn. I daresay you are no stranger to the part that Angus has Acted from the beginning in relation to the great Money Affair, and that no one excepting Cluny knows more of it. I am fully persuaded that Mrs. Chalmers (Mrs. Archibald Cameron) is charged with orders upon his Bank stock, however unwilling he may be to part with it '

On October 14, Glenevis tired of hiding, and surrendered himself to Crawford. No harm was found in Fassifarn's papers, which had been seized, and he, with Angus MacIan, a brother (or half-brother) of Lochgarry, was admitted to bail.

On October 22, Colonel Crawford wrote an account of Glenevis's examination to Churchill, who forwarded it to the Duke of Newcastle. Now we must ask how Government, which in 1749-50 knew only the anonymous account of the treasure already quoted, was, in 1751, informed that Lochgarry, Young Glengarry, Cameron of Glenevis, and his brother Angus, had meddled with the spoil in December 1749? Readers of 'Pickle the Spy' will remember that Pickle (that is, *ex hypothesi*, Young Glengarry) dates his services as a paid informer from 1750-51. Young Glengarry, then, may have been himself the source of the intelligence about the plunder, and that, as we shall see, was the strong opinion of Glenevis.

In any case this is the earliest hint of suspicion against the honour of Young Glengarry which we have encountered. The eternal feud of Macdonnells and Camerons may have suggested the notion of Glengarry's treachery to the mind of Glenevis; Cluny being out of the question, and he not knowing any one out of prison, except Young Glengarry, who had the

necessary information. Glenevis's brother, Angus, and Angus MacIan were in prison with himself, and Lochgarry was with his regiment in France.

Crawfurd says of Glenevis, and his suspicions:

‘He seems to think that all the Intelligence procured against him has been by means of Young Glengary: this you may believe I am at no great pains to desuade him from, as the greater Enmity gives the better chance of your coming at truth. He does not deny but that his brother, (Angus) Lochgary, Young Glengary, Angus Mc.Ian and he went into Badenoch in the winter 1749, after the Troops were gone from thence, with a view of meeting Clunie, but that while Lochgary, and young Glengary had their Interview at a sheiling opposite to Dalwhinnie, he was desired by Clunie to keep at the House of Dalwhinnie till sent for; and that neither Angus nor he could be allowd to speak with him, tho he sent repeated messages by Clunie's Piper, and a young Brother of Clunie's. That he lay in the same Room with Young Glengary at Dalwhinnie, and early in the morning, the young Brother of Clunie brought Glengary a Bag which might contain two or three Hundred guineas, and counted them out to him, and that he understood Glengary got, in the whole, by that expedition about Two Thousand;^[96] he farther says that the money remitted abroad by Cluny was carried away by his Brother in Law Mc.Pherson of Brechachie to Major Kennedy in the North of England....’ (So Gask also says.)

On October 31, Crawfurd again writes to Churchill. He had recommended on October 21, that Angus Cameron ‘should be allowed the quiet enjoyment of his treasure.’ He now remarks that Glenevis has been admitted to bail. ‘He says, in the Scotch phrase, that *it is hard, to have both the skaith and the scorn*’—that is, to be molested, though he has not got much of the French gold. ‘He blames his brother Angus for having acted a weak and foolish part in quitting (parting) with so great a share of the money that had fallen into his hands, which, he says, did not exceed £2,500, tho’ most people call it £3,000, and of which he knew his brother had paid £1,000 for the use of Lochiel soon after his going to France’ (1746). Next we find a repetition of Glenevis's charges against Young Glengarry, as his betrayer. The accusation, too, that Young Glengarry forged King James's name (alluded to by James in a letter to the Prince, March 17, 1750, as a story reported by Archy Cameron) is urged by Glenevis.

‘He (Glenevis) still continues full of resentment against Young Glengarry, believing that he is the Author of all the information against him and his Brother Angus, not being able to account for our knowledge of the Badenoch meeting in any other way. He confirms what I wrote of the young Gentleman in my last, only that the £2,000 was not of Clunie’s money, but of what was left by the Secretary Murray in the hands of Mr. Mc.Douel his brother in Law, and that his credentials for receiving the money was from the old Pretender, *but that he was sure they were forged.*’ They certainly were forged.

One thing is to be observed about Glenevis’s doubts of Young Glengarry. In this year, 1751, and onwards, that hero was allowed by Government to live in London, in Beaufort Buildings, Strand, whence he communicated with Charles and James, as a strenuous Jacobite agent. His letters are printed by Browne from the Stuart MSS. Yet Government, if only from Glenevis’s evidence just given, knew that Glengarry was at least as guilty as Glenevis and his brother of the only crime charged against them on this occasion—namely, dealing with French gold that had been landed for the use of Prince Charles. Where the treason to King George came in, unless they were using the money for Jacobite purposes, or depriving his Majesty of spoils of war, or of treasure trove, does not appear. Yet the Camerons, Glenevis, Dunan, Fassifern, were all kept in durance at Port William, while Young Glengarry, implicated in their vague offence, was permitted to live, and even to make love, in London. To this point we return later (p. 207). Government had their own reasons for sparing Glengarry, while punishing his accomplices. These accomplices, again, averred that Glengarry had ‘peached’ upon them, as doubtless he had. The Camerons were released, but before very long, they and Fassifern were all imprisoned again in Edinburgh Castle, on a charge of treasonable dealings with the attainted. This was part of a plan of Government’s for ‘uprooting’ Fassifern, who represented the exiled Young Lochiel in the eyes of the Clan. The action of Government makes another chapter in the history of the sufferings after Culloden. Meanwhile the casks of louis d’or had done their task, and sown among the Clans the dragon’s teeth of distrust and of calumny. We cannot tell where the remainder of the gold went, though Cluny probably took what was left over to France, in 1754, as Charles commanded him to do, getting no more for his trouble, perhaps, than did poor Duncan Cameron in Strontian—‘not a shilling.’ As for Glenevis and his brother, they seem to have finally been

fobbed off with the skaith and the scorn, and with very little else but the company of Colonel Crawford, so anxious to talk about their hay crop.

Such is an example of Highland life after Culloden. There are midnight meetings at lonely sheilings, there is digging and delving by hands that knew the claymore better than the spade. Letters are opened in the post office, secret murmurs fly about carrying charges of indefinite guilt, reported by unknown spies. No man can put confidence in another: each neighbour *may* have been bullied or bribed into babbling, and, when the laird sees the English colonel saunter along the avenue, Highland hospitality struggles in his heart with a natural inclination to drop out of a back window, and steal up the glen into the hills. A gentleman is apt to be less often on his estates than in Fort William prison or in Edinburgh Castle. No wonder that many joined the new Highland regiments when they were raised, and preferred King George's pay to domiciliary visits from King George's colonels!

VIII

JUSTICE AFTER CULLODEN

The Uprooting of Fassifern

The years 1752-1754 were full of trouble for Highlanders. The Prince was intriguing desperately with Scotland, and with Prussia. The Elibank Plot was matured and betrayed. Dr. Cameron and Lochgarry were stirring up the Clans. Cluny remained as untakable as Abd-el-Kader. The Government were alarmed at once by Pickle, by their ambassadors abroad, and by Count Kaunitz. The Forfeited Estates had been nationalised, 'for the improvement of the Highlands,' factors had been appointed to raise and collect rents: evictions were threatened; agrarian discontent had been aroused; Campbell of Glenure had been shot in the wood of Lettermore.^[97] The reports of all these things flew from township to township, from strath to strath, as fleetly as the fiery cross. The Highlands, in 1752, were boiling like a caldron. Old tenants were being turned out that men of a hostile Whiggish clan might occupy their hereditary holdings. Ensign Small, an officer who knew Gaelic, and was engaged in secret service, found murmurs of a rising even in the Islands. The Duke of Newcastle was jotting down alarmed notes, 'to be at any expense in order to find out where the Young Pretender is. Lord Anson to have Fregates upon the Scotch and Irish coast.'^[98]

The consequence of this official flutter was a crowd of arrests and trials. James Stewart, on a charge of being accessory to Glenure's slaying, was, to speak plain words, judicially murdered. He was confined in Fort William, and denied access to his advisers; the charges and evidence against him were kept from him till too late, he had a jury of hostile Campbells at Inveraray, the Duke on the bench, and he was hanged as accessory to a murder in which the alleged principal was not before the Court. Political necessities and clan hatred killed James Stewart (1752).

In 1753 Dr. Cameron was caught, and hanged in London, denouncing as informer his kinsman, Samuel Cameron. The famed Sergeant Mohr

Cameron was taken (by treachery, General Stuart hints and tradition proclaims; both are right), and he 'died for the law.' His alleged crime was cattle theft, but, as a sergeant in French service, he was probably regarded as a Jacobite agent. The Sergeant was captured in mid-April, 1753: a few days later Angus Cameron, brother of Glenevis, was taken at the same place, his house of Dunan or Downan, in Rannoch. On May 6 Fassifern, Charles Stewart, writer in Banavie, Fassifern's agent, and Glenevis, were lodged, with Angus Cameron, in Edinburgh Castle. On July 7 Young Barisdale, Young Morar, and others, were culled like flowers at Lochourn, while Young John Macdonnell, 'Spanish John,' was also arrested.

Of all these, the most important prisoner was Fassifern. He had been taken, as we saw, in October 1751, and released, as nothing could be found against him in the affair of the Cluny Treasure. He was Lochiel's brother and representative, and consequently chief, for the time, of the Camerons. He had not been out in Forty-five. A man of commerce, a burgess of Glasgow, he had tried to dissuade Lochiel from exposing himself to the dangerous charm of the Prince. But he was naturally anxious to save as much as possible of Lochiel's estate for the family. There were several lawful claims on it, which Government was bound to respect and he to press. Moreover he, with 'Glenevegh' (Glenevis), had been denounced by Pickle as agents between the Southern and Northern Jacobites.^[99] In addition to all this, Fassifern was trying to keep the old Cameron tenants, Jacobites, in their holdings, and evict tenants who had the bad taste to be Whigs.

As early as May 1751 he had been denounced for these offences by Captains Johnston and Mylne, of the Buffs, in garrison at Inversnaid. 'He falls on ways,' writes an informer whose letter they forward, 'of turning out any from their possessions, who he knows to be well affected to His Majesty.' He encourages Jacobites to settle near the forts, for the purpose of a sudden assault.^[100] He has 'plenty of the Pretender's money' to use for these purposes. Clan sentiment, not Jacobitism, may have influenced Fassifern, and Glenevis, at least, was hardly the man to play the part of Jacobite agent.

The original charge against Fassifern in May 1753 was that of 'correspondence with persons attainted.' But the game of the Government was to get rid of him on any pretext. Colonel Crawford had come from Fort

William to Edinburgh, and, on June 4, 1753, wrote a long letter to the Lord Justice Clerk. ‘The uprooting of Fassifern,’ he says, with candour, ‘is what we ought chiefly to have in view.’^[101] He has found witnesses, or rather has heard of them (it seems kinder to omit the names of these gentlemen), who avow that Fassifern tampered with them to threaten the late Glenure’s wife, and to murder Glenure. That unlucky man was factor for Lochiel’s as well as for Ardsheil’s forfeited estate, and was expected to evict Cameron tenants. ‘The Lord Advocate said that, if this did not hang Fassiefairn, it would at least send him to Nova Scotia.’ Perhaps, the Colonel thinks, Breakachie may be induced to inform against Fassifern! That culprit has only sent 100*l.* to Lochiel’s family in France, and has made Lochiel’s tenants work on his estate, instead of on the county roads.

These last were not hanging matters. And, somehow, Breakachie, a perfectly loyal gentleman, and kinsman of Cluny’s, did not give the desired information. The witnesses as to the suborning of Glenure’s murder by Fassifern would not kiss the book, or, perhaps, had never promised their evidence at all. Angus Cameron and Glenevis were discharged on bail, on July 3. No proof of treasonable correspondence, or suborned murder, or anything else existed, or could be found against Fassifern. Pickle, of course, could not be produced in Court. The Colonel does not conceal the discomfort of his reflections, and Government is perplexed as to the details of the process of ‘uprooting’ the representative of Lochiel. On June 10 Fassifern and Charles Stewart petitioned that they might be put on their trial. But what were they to be tried for? It was an awkward situation.

The resources of civilisation, however, were not exhausted. On August 6 the Duke of Argyll came to Edinburgh and, next day, took his seat in the Court of Session.

That day the Lord Advocate sprang a fresh charge on the accused. They might not have been holding treasonable correspondence, or even suborning murder, but they had been mixed up in—forgery! The Lord Advocate suspected that certain deeds had been forged, to substantiate claims made by Fassifern on Lochiel’s estate. These claims rested on old papers and bonds of various dates, from 1713 to 1748. There was ‘credible information’ (how obtained we shall learn) that five of these deeds were forged. Fassifern’s lawyer, Mr. Macfarlane (husband of pretty Mrs. Macfarlane who shot the Captain), had no longer the vouchers, the original

papers from which he drew up the claims. These vouchers had been in a bag at Mr. Macfarlane's house; but 'some time in Summer' (1752) Fassifern (being in Edinburgh) had sent for the bag, and had returned it in a few hours.

The papers were no longer in it. Fassifern, being examined, could remember having abstracted no such deeds as interested the Court. Next day Fassifern asked for a copy of his statement, 'as he was apprehensive he might have inadvertently fallen into some mistakes in the hurry of the examination, which he was extremely desirous to rectify.' The Lords refused his petition: he might have a copy of his examination 'when he is brought upon trial.' Next day he was charged with being guilty, or 'art and part in forging the deeds, or of using them, knowing them to be forged.' He was to be detained in prison till his trial.

He protested that he had already lain in prison for three months, on a charge (Pickle's) of 'being privy to unlawful designs carried on by disaffected persons'—namely, a rising to follow on the kidnapping of the Royal Family. He 'has reason to believe that no such prosecution is seriously intended,' which is pretty obvious, Pickle not being producible, but absent, at that very hour, in France, with Prince Charles! Moreover Fassifern was not told on whose information he was examined, though he was 'heckled' for several hours.

The charge of forgery was, in fact, based, as usual, on the evidence of an Informer, whom we need not name. Here is a report of his accusations:—

'... Says he has been certainly informed that Fassfarn caused Forge several Grounds of Debt, in Order to be the Foundation of Claims upon the Estate of Lochiel, some of which were written by Charles Stewart present prisoner in the Castle, and Lochiel's name was Forged by one Allan Cameron of Landavrae, who could write like him, and there were Forced Discharges by Lochiel to his Tenants for Crops in 1746 and Proceedings in Order to prevent the Government from getting payment of the Rent of 1746 and arrears.'

Says on knowing this he 'instantly told Crawford'!

Now even the Government's plea against Fassifern says no word of 'forged discharges of Lochiel to his tenants!'^[102]

The interest of this case is partly the mystery—had Fassifern really been concerned in tampering with documents?—partly the procedure, which we know had political motives, and was iniquitous in method. As to Fassifern's guilt, if any, we are not likely to learn the truth; as to the kind of justice he got—there can only be one opinion.

On August 10 Fassifern was 'ordained' to receive a full copy of his examination. He was anxious that the evidence of an aged solicitor, Alexander Stewart, in Appin, a man over eighty, and unable to travel, should be taken by commission. This Stewart had written, or witnessed, several of the old disputed deeds, and was the only person alive able to testify, of his own knowledge, to their authenticity. Fassifern also remonstrated against being described, in the Lord Advocate's charge, as 'the immediate younger brother of Donald Cameron, late of Lochiel, attainted.' He 'ventures to hope that this is not meant to make a point of dittay.' It was obviously meant to suggest prejudice. He asked for bail, after his already long imprisonment. Bail was refused by the Lords of Session, nor would they examine Alexander Stewart by commission; but they promised to remove Fassifern from the Castle to the Tolbooth. The full charges, or 'improbatory articles' against him, he was not to receive.

On August 24 the prisoner once more protested against 'the practice of dropping out charges one after the other,' which unpleasantly resembles the system of Titus Oates. If the Government, as appears certain, had this accusation of forgery pigeon-holed before they locked up the prisoner in May, why did they not bring it forward at first? Fassifern's imprisonment, he justly remarks, 'approaches to a kind of torture.' He is denied the free use of pen and ink, so necessary in his preparation of a defence. An armed sentinel is in his room day and night. This petition was so far successful that pen and ink were given, but what he wrote was inspected, and even his lawyer's chief clerk, Mr. Flockhart, could only visit him by special license. He was allowed to take the air, under a guard, but he seems to have been detained in the Castle, at least the Deputy-Governor is charged to remove the armed sentinel.

In January 1754 articles of accusation were placed before the Lords of Session, and witnesses were examined, including old Alexander Stewart, who was brought from Appin 'in a chaise.' He attested that, as early as 1713, he had written and witnessed some of the deeds, and again in 1728.

Appin (whom one of the deeds especially concerned) gave evidence as to the authenticity of others, and quoted Lochiel's remarks to him, in 1746, about 1,000*l.* borrowed from Fassifern in 1741, and a bond given for the money by himself. He averred that Charles Stewart, writer in Banavie, accused now of forging that instrument, had really written and witnessed it, with Torcastle (in exile) and others (Culchenna and Lundavra), now dead. On these grounds Fassifern petitioned for bail. He had lain in prison for ten months, and his eyes were so impaired that he could not see to read. He must sink *sub squalore carceris*, and be 'uprooted' in earnest.

To all this plea it was replied 'that many persons, even of those who would not do injustice in private affairs, are too easily induced to countenance an injustice done to the public'—that is, by getting public money out of the forfeited estates. Fassifern, with his 'connections and influence, might, if at liberty, use means to prevent discoveries.' There is thus one law (an unpleasant law) for the rich, and another for the poor. Finally Fassifern's 'coolness and silence on the loss of papers of such consequence, notwithstanding his being confessedly a sensible careful man, were mentioned as very suspicious circumstances.'

No doubt they *are* suspicious, but that a 'sensible careful man,' of the best family, should, as charged, forge a bond of 90*l.* from his own gardener, still in his service, is also a very improbable kind of accusation. Fassifern and Charles Stewart were, therefore, left *sub squalore carceris* (March 6, 1754).

In August 1754 they again petitioned for bail. They had lain in gaol for fifteen months on no capital charge. 'There is not one of the deeds under challenge that does not seem to be supported by unimpeachable evidence,' as of Appin, a man of honour, and old Alexander Stewart. 'They have suffered punishment beyond bounds already, without example, and since The Happy Revolution, neither heard of nor dreamed of in our neighbouring country,' England.

Bail was not granted, and the Lord Advocate told a very extraordinary and, it may be said, inconsistent tale. His witnesses, he alleged, 'have thought fit to stand a second diligence for compelling them to appear, and, though wrote to, have not given any answer.' Of course there may be two interpretations of this reluctance, or even three. The witnesses may be

coerced by local sentiment, or may not care to take oath to their evidence, or may have reason to suppose that they are not really wanted, as the Crown manifestly merely wishes to keep Fassifern out of his own country. The evidence of one informer has been given as to forged discharges of Lochiel's. The Government, however, dropped that slander, while keeping up other charges, not supported by evidence given in Court.

The Advocate then carries back the origin of the trouble to the Loch Arkaig treasure. In some quarrel about this, a person was 'heard to declare, that, in self defence, he would make known to persons in the King's service what he knew, or had learned, concerning forged deeds prepared by Fassifern and Charles Stewart.' This information he actually gave to Colonel Crawford. This was certainly one of the witnesses who would not answer to his subpœna, or come to the trial in spite of repeated 'diligences.' Lochaber was not likely to be a happy home for him afterwards; *Lochaber no more!* would probably be the burden of his song. Even Glenevis had three shots fired at him, in November 1752, between Fort William and his own house. So he alleges in a memorial, or petition, in the State Papers. The Colonel then sent for Charles Stewart, who had been introduced to him as a fit person for managing prosecutions against wearers of the philabeg. Charles Stewart, before the arrest of Fassifern, gave Colonel Crawford, at Fort William, a written set of Remarks on Fassifern's claims, impeaching the authenticity of those to which Appin and Charles Stewart had sworn, including the gardener's 90*l*. But Charles Stewart, when examined before the Lords, withdrew all this, and vowed that he had already denied it to the Colonel. When shown the written statement, he acknowledged that it was in his hand, but that he had written it 'to pacify the Colonel, who was then in a great rage.' For, in early summer, 1752, 'a very hot inquiry was going on touching the murder of Glenure.' Relations of Charles Stewart were imprisoned, and Colonel Crawford, interrogating Charles on the claims of Fassifern, told him that *he*, Charles, 'was suspected of some accession to Glenure's murder, and was to be imprisoned if he did not speak out, and make discoveries against the claims upon Lochiel's forfeiture.' Charles 'cannot affirm' that he did *not* 'soothe Col. Crawford, who appeared to be in great passion,' by telling tales against the claims, but rather suspects that he did. But, if he did, he admits that he lied, 'in the confusion and terror he was then in.' So far, the evidence before the Court is that of a witness who

declines to be sworn, and of a prisoner who withdraws testimony extorted by threats.

The Lord Advocate next quoted a letter to Fassifern, from his Edinburgh agent, Mr. Macfarlane, of December 1751—that is, shortly after Fassifern's release in the affair of the treasure. Mr. Macfarlane obscurely warns him in this letter 'not to be carried, for the sake of a small paultry sum of money into difficulties.' 'Mines were to be sprung,' 'odd appellations are given,' phrases which may, or may not, refer to the business of the French gold.

The Advocate then told how Fassifern, in summer, 1752, a year before his arrest in 1753, got his bag of papers from Mr. Macfarlane and returned it, since when no mortal has seen the incriminated deeds. This, of course, is the crucial point; but Mr. Macfarlane had himself prepared Fassifern's claim from the very deeds which, having disappeared, are now said to have been recently forged. Mr. Macfarlane can have seen nothing suspicious in them, or he would not have made them the basis of a claim drawn up by himself. His suspicions of 1751 would have revived, and he would have abandoned the case. He still acts daily for Fassifern, but Fassifern has not recovered the documents, nor tried seriously to recover them.

On these grounds bail was again refused.

No decision was arrived at by the Lords of Session till January 1755. By that time all danger from Jacobitism was over. Charles was deserted by Prussia, by the Earl Marischal, and by his English adherents. The Lords found Fassifern guilty of abstracting his own papers, from the bag in Mr. Macfarlane's custody. These papers it was inferred, were forged. He was sentenced to ten years of banishment, which he passed at Alnwick. Charles Stewart was deprived of his office of notary public. 'Some of the Lords were of opinion that there was not a proof of guilt sufficient to infer any punishment. But others were of a different opinion.' In Fassifern's plea he complained of Colonel Crawford's frequent examinations of Charles Stewart, and of a present of 10*l.* made by him to that notary.

Innocent or guilty, Fassifern was 'uprooted, which is what we ought chiefly to have in view,' to quote Colonel Crawford. The gross oppressiveness of the proceedings, the unexplained delays, the series of charges 'dropped out,' the bullying and cajoling of prisoners under examination, the unconcealed political motive, and the rewards of farms

which, we learn, were given to the informers, are all characteristic of justice in Scotland after Culloden. The improbability of the charge, against ‘a sensible careful man,’ must be set against the mystery of the disappearance of the papers. In that disappearance the ‘uprooters’ had, of course, no less interest than the accused. After nearly two years *sub squalore carceris*, Fassifern was condemned for suborning the forgery of papers not in evidence. In fact, after all the schemes for his uprooting, he was (in cricketering phrase) ‘given out’—several of the Fifteen dissenting—‘for obstructing the field.’ What is the legal name for this offence?

This affair had lingered on from May 1753 to January 1755 before the Fifteen, the Lords of Session. It is probable that a jury, disgusted by the military methods of extorting evidence, would have made short work of the case, and acquitted Fassifern. Of this temper in a jury we have a curious contemporary instance. Sir Walter Scott printed for the Bannatyne Club the trial, in June 1754, of Duncan Terig, or Clerk, and Alexander Bain Macdonald, for the murder of Sergeant Davies, of Guise’s regiment, in 1749, on Christie Hill, in Braemar. There was really no doubt of the guilt of the accused. Scott, who knew one of their counsel, says that they themselves were convinced of the fact. But two Highland witnesses told a story of the murdered sergeant’s ghost, which appeared to them in 1750. By making fun of this apparition, the advocates for the defence, Scott says, secured an acquittal in face of the evidence.

Probably the jury had another motive—namely, indignation at military extortion of evidence. A certain Ensign Small has been mentioned. He seems to have been an astute and energetic man. We find him everywhere in the Cumberland Papers. He it was who, soon after Culloden, arrested the Barisdals in a cave, and took their swords. In 1749 he arrested Barisdale on his return from France. He pursued Lochgarry (after Dr. Cameron’s arrest) into England, and searched the vessels leaving the ports of the East Coast. We find him in the Islands, mixing with the people in disguise, and reporting their murmurs and their curses on the Chiefs and the Prince. In Knoydart he notes that the commons have lost their taste for a rising. Small was rewarded by a factorship on the forfeited estates of Cluny and Robertson of Strowan, and exerted himself to procure the condemnation of the murderers of Sergeant Davies.

Now on June 14, 1754, Mr. Alexander Lockhart, one of the counsel for the accused, laid a complaint against Small before the Court of Session. By Small's instigation, Lockhart said, Terig and Macdonald were charged with the crime. Small had sought out and privately examined witnesses, 'giving them an obligation to stand between them and any hazard they might incur thereby'—such protection was very necessary. 'He endeavoured to intimidate such as would not say such strong things as he wished, or expected.' Lockhart asks 'how far these practices' (the very practices employed to 'uproot' Fassifern) 'should be tolerated?' Moreover, Small had been swaggering with a sword, had stopped Lockhart in the Parliament Close, had insulted, challenged him, and shaken a stick over his head: 'which, if he meant to resent, he would be at no loss to find out where the said James Small lived.'

Small replied that, after doing his best to bring Clerk and Macdonald to trial, his character had been blackened by Lockhart before the jury, as having pursued the accused for private reasons of malice. As an officer and a gentleman, believing in his heart that the accused were guilty (which they undoubtedly were), he had resented the license of Lockhart.

Small was found guilty of contempt, bound over to keep the peace, and obliged to apologise.

Meanwhile General Bland, Governor of Edinburgh Castle, justified Ensign Small in a letter to the English Ministry. Lockhart, the General denounces as a 'famous foul-mouthed Jacobite advocate.' He had 'concerted' his abuse of the Ensign in court 'with his Jacobite fraternity.' The Ensign had very properly 'taken him by the nose, and called him a scoundrell. He took it quietly.' If Lockhart is not warned, his bones will be broken. The General has used his influence with the judges to secure easy terms for the loyal Ensign.^[103]

The docile judges, 'the Fifteen,' had accepted evidence extorted by military violence in what was really a political case, that of Fassifern. But it is clear that the jury, in the case of the Sergeant's murder, had resented such intimidation, as denounced by Lockhart, and this resentment, rather than the ghost story, probably procured the acquittal of two undeniable robbers and murderers, Terig, or Clerk, and Macdonald.^[104]

Another curious instance of the methods of Government occurs in the case of James Mohr. It was generally suspected that Government connived at his escape from Edinburgh Castle in the disguise of a cobbler (November 16, 1752). The Government, however, broke the lieutenants of the guard, deprived the sergeant of his stripes, and whipped the porter.

But we find a remarkable letter of General Churchill's,^[105] saying that 'James Mohr had been taken up on the abduction charge,' and was extremely anxious to make disclosures. That his recent behaviour cannot allow him to be believed unless he is allowed to suppose 'his life is at stake.' That 'should your Grace think proper to employ him, the great difficulty is to bring about his liberation without raising a suspicion of the Cause, *nor can it be so effectually done as by giveing private orders to a Party of the Troops employed in escorting him to favour his escape.*'

If this suggestion was acted on later, if James was allowed to escape from Edinburgh Castle that he might become a spy, as he did, the lieutenants, the sergeant, and the porter were very scurvily treated. The game of justice was not played with much scrupulousness by the English Government.

IX

A GENTLEMAN OF KNOYDART

The modern autobiographical romance of adventure has perhaps been overdone. The hero is always very young and very brave; he is mixed up with great affairs; he is a true lover; he marries the heroine, and he leaves his Memoirs (at six shillings) to posterity. Stereotyped as is the method, and mechanical as are most of the novels thus constructed, it is interesting to compare with them a set of genuine Memoirs, which actually are what the novels pretend to be.

Colonel John Macdonell, the author of the Memoirs, was of the Scottos family, a branch of the House of Glengarry. Indeed, in the male line the chiefs of Clan Donald are now represented by the head of the Scottos branch, not to enter on the old controversy as to the chiefship of Clan Ranald. Our Colonel was born in 1728, and was therefore a boy of eighteen in 1746. He had already been conversant with great adventures; he had seen Rome and his King, had been thrice wounded in one engagement of the Italian wars, and had relinquished his excellent prospects in the Spanish service to fight for the White Rose. An emissary between the Duke of York (not yet Cardinal) and the Prince, the bearer of a treasure in gold, our hero arrived in the Highlands just after Culloden. Robbed by the wicked Mackenzies, associated with the last rally of the loyal clans, betrayed by a cousin to a Hanoverian dungeon, young Macdonell must needs fall in love, at this juncture, with his future wife. He insults his enemies, cows the traitor who denounced him (or another traitor), marries his lady, retires to Canada, and, dying in 1810, leaves his Memoirs to his children.

What more can be asked from a hero? 'Oh, Colonel Macdonell and Mr. Robert Louis Stevenson, which of you imitated the other?' the critic is tempted to exclaim. But, if the real Colonel John 'does it more natural,' the fictitious David Balfour 'does it with the better grace.' The good Colonel never, of course, discourses to us about his contending emotions, or dilates, like Mr. Balfour, on the various trains of casuistry which meet in his simple soul. He never describes a place, nor a person, not even when he meets his

King, the Duke of York, or the Duc de Fitzjames; he only describes action, vividly enough. He leaves out the love-interest, with the merest allusion; and thus, though the Colonel played a heroic part in romantic occurrences, he did not write a romance. He arranges his recollections ill, ignoring essential facts, and, later, dragging them in very awkwardly. His Memoirs are such as an elderly warrior of his period would naturally pen; they illustrate the chaotic condition of Highland morals and manners in 1745-54, and introduce us to figures familiar in the Prince's campaign of Scotland. [\[106\]](#)

Scotus, Scottos, or Scothouse, the estate of the Colonel's family, lies in the south of Knoydart, and on the north side of the entrance to Loch Nevis, just opposite to the Aird of Sleat in Skye. On the north of Knoydart, and on the south shore of Loch Hourn, is Barisdale, the seat of the Colonel's cousin, Col of Barisdale, the tallest man and the greatest robber, ruffian, and traitor of Clan Donald. Universal testimony, from that of the Chevalier Johnstone to the Whig Manuscript of 1750, applauds the family of Scottos as brave gentlemen, honest in the midst of 'a den of thieves' (says our Whig author), loyal when loyalty had most to tempt or discourage it. Our Colonel's father was a younger son of old Scottos. He resided at Crowlin; concerning his means of life we learn nothing, but the Colonel was always well supplied with money in his boyhood. The clan were Catholics, and John's father, in 1740, sent the boy, then aged twelve, to be educated at the Scots College in Rome. He was accompanied by a lad of fourteen, Angus Macdonald, of the Clan Ranald family. From Edinburgh they sailed to Boulogne, and in Paris were entertained by Mr. George Innes, head of the Scots College and brother of Thomas Innes, the first really critical writer on early Scottish history. From Paris the pair of boys went, partly by water, partly in a *calèche*, to Avignon and Marseilles, whence they embarked for Toulon. Here they met with the following adventure, which may be given as an example of the Colonel's style in narrative, though it had no sequel. Most of his adventures led to nothing, unlike the course of fiction:—

'One night, as we walked through the streets and were cracking nuts, my comrade, who was somewhat roguish, observed a Monsieur with a large powdered wig, and his hat under his arm, going past us; he took a handful of nuts from his pocket and threw them with all his force at the Frenchman's head, which unfortunately disordered his wig. Monsieur

turned upon and collared him; by good luck a Spaniard was of our party, who instantly ran to the relief of my comrade and gave the Frenchman a severe drubbing. We then adjourned to a tavern, when our Spaniard, calling for a bottle of wine, brought me to a private room, and after bolting the door, to my great terror and surprise, drew a stiletto with his right hand from his left bosom, and made me to understand by signs that with that weapon he would have killed the Frenchman, if he had proved too strong for him. He then took a net purse out of his pocket wherein there appeared to be about a hundred Spanish pistoles, and made me an offer of a part: I made him a low bow, but, not standing in need of it, would not accept of his liberality, for I thought I had enough, being always purse-bearer for myself and companion. My friend made sometimes free with my pockets, merely to try if I should miss anything, and was happy to find that I made a discovery of his tricks by immediately missing what he took in that way.... I bought out of our stock two large folding French knives, by way of carvers, in case of any sinister accident.'

Such an accident of travel presently occurred. A Mr. O'Rourke of Tipperary, on his way to study at Rome, introduced the boys to a certain Mr. Creach, late of the Irish brigade in Spanish service. Mr. Creach, finding Master Macdonell alone in his room, tried to rob him. Macdonell flew at the man; Angus Macdonald entered; the pair threw Creach on the ground, and John had his 'carver' out, with a view to cutting Creach's throat, when O'Rourke interfered with this wild Celtic justice. Arrived in Rome, the boys found that the fame of their exploit had preceded them and done them good service, as they were reckoned lads of spirit.

John, though the youngest pupil in the lowest class of the seminary, was advancing rapidly in his studies when, in the winter of 1743, Prince Charles rode out of Rome to a hunting-party, and, disguised as a Spanish courier, continued his course as far as Antibes. France had invited him, though, when he arrived, she neglected him. John now conceived that, in the event of the Prince's landing in England, 'My clan would not be the last to join the young Charles.... This set my brains agoing, which were not very settled of themselves. I got disgusted with the life of a student, and thought I would be much happier in the army.'

John, therefore, contrived to get 'introduced to King James by noblemen attending on that Prince, who inquired of me particularly about my

grandfather and granduncles [Glengarry and Barisdale, apparently], with all of whom he had been acquainted personally in the year 1715,' when Glengarry distinguished himself so brilliantly, avenging the fallen Clan Ranald, at Sheriffmuir. A recommendation for John was sent to General Macdonnell (of the Antrim family), then commanding the Irish of the Spanish forces in Italy, and, though the Cardinal Protector demurred to John's change of service, our hero was equipped with a sword by the Rector of his College. 'Presenting me with the sword, his eyes filled, and he told me that I should lose that sword by the enemy, which was verified in seven or eight months after.' The Rector had the second sight!

Mr. Macdonnell, a sage of sixteen, was now horrified by the ethical ideas which he surprised in the conversation of the young Italian gentlemen who rode with him to join the Spanish army. They assured him that his military value depended on his emancipation from the prudish notions of 'a parcel of bigots,' but he was destined to refute this theory. General Macdonnell admitted his young clansman to his own table, and put him in the way of seeing fire. He thus describes his first view of that element; probably his emotions are common to recruits:—

'I'll tell you the truth, I felt myself rather queer, my heart panting very strong, not with bravery, I assure you. I thought that every bullet would finish [me], and thought seriously to run away, a cursed thought! I dare never see my friends or nearest relations after such dastardly conduct. My thoughts were all at once cut short by the word of command, "Advance quick!" We were at once within about one hundred paces of the enemy, to whom we gave so well directed a fire, that their impetuosity was bridled. The firing on both sides continued until dark came on, which put a stop to the work of the evening. The enemy retreated some distance back, and we rejoined our own army. I went to Genl. McDonnell, who asked me if I had smelled powder to-day; I told him I had plentifully. "What, Sir," said he, "are you wounded?" "No, please your Excellency." "Sir, you will never smell powder until you are wounded." I got great credit from the officers commanding the party I belonged to for my undaunted behaviour during the action, but they little knew what past within me before it began.'

The smell of powder was soon in our hero's experience. The Neapolitan general who commanded on alternate days with the French leader, withdrew his troops from a strong position on the heights above Velletri, which was

attacked by Prince Lobkowitz and the famous General Brown, with forty-five thousand Austrians. There was daily fighting, and General Macdonnell was stopped by his superior officer while in the very act of driving the Austrians from the deserted heights, which they, of course, had occupied. An Austrian surprise cut off Macdonnell's regiment from the main force, and he thus describes what occurred:

‘For my own share I was among the last that gave way, but when I once turned my back, I imagined that the enemy all aimed at me alone, and therefore ran with all my might, and thought there was a weight tied to each of my legs, till I had outrun everyone, and looking behind, saw the whole coming up. I halted and faced about, every one as he came up did the same, we soon formed a regular line, and resolved to revenge our dead comrades and to fight to the last; but found our situation to be as bad as before.... Reduced to extremity we offered to capitulate on honourable terms, but could obtain no condition except surrendering at discretion, rather than which we resolved to fight while powder and ball remained among the living or the dead. Our officers and men fell very fast. I among the rest got a ball through my thigh which prevented my standing; I crossed my firelock under my thigh and shook it, to try if the bone was whole, which finding to be the case, dropped on one knee and continued firing. I received another shot, which threw me down; I made once more an attempt to help my surviving comrades, but received a third wound, which quite disabled me. Loss of blood and no way of stopping it soon reduced my strength, I however, gripped my sword to be ready to run through the first enemy that should insult me.

‘All our ammunition being spent, not a single cartridge remained amongst the living or the dead, quarters were called for by the few that were yet alive. Many of the wounded were knocked on the head, and I did not escape with impunity. One approached me; at first I made ready to run him through, but observing five more close to him, I dropt the sword, and was saluted with *Hunts-foot*,^[107] accompanied with a cracking of muskets about my head. I was only sensible of three blows and fainted; I suppose they thought me dead. On coming to myself again, I found my clothes were stripped off, weltering in my blood, and no one alive near me to speak to, twisting and rolling in the dust with pain, and my skin scorched by the sun. In this condition a Croat came up to me with a cocked pistol in his hand,

and asked for my purse in bad Italian. I told him that I had no place to hide it in, and if he found it anywhere about me to take it. “Is that an answer for me, you son of a b—ch?” at same time pointing his pistol straight between my eyes. I saw no one near, but the word *quarter* was scarcely expressed by me, when I saw his pistol-arm seized by a genteel young man dressed only in his waistcoat, who said to him, “You rascal, let the man die as he pleases; you see he has enough, go and kill some one able to resist.” The fellow went off. Previous to this a Croat, taking my gold-laced hat and putting it upon his own head, coolly asked me how he looked in it. He then with his sabre cut off my queue and took it along with him.’

A civilised scalp!



Walker & Boutall, ph. sc.

The Duke of York and Prince Charles

circ. 1735

The Austrians, after all, lost the day, and a certain Miles Macdonnell rescued our hero, and had him carried into hospital. Recovering, he returned to Rome, and was welcomed in a flattering manner both by his King, who presented him with a sum of money, and by the young Duke of York. After seeing some service on the Po, young Macdonnell obtained leave to go to France and join a detachment which was to aid Prince Charles in Scotland.

At Lyons they heard of the Prince's defeat of Hawley at Falkirk, but at Paris the news was worse, and of all the Jacobite volunteers (who were Irish) John Macdonell alone persevered. He urged that, as the Prince's affairs went ill, 'It was ungenerous not to give what aid we were capable of, but I could not prevail on any of them to be of my opinion.' In fact, it was now plain that France did not mean to lend any solid assistance to the Cause. The Duke of York since Christmas had been waiting at Dunkirk and Boulogne, expecting permission to sail for England with a large force, but delay followed delay. Young Macdonell now went to Boulogne, where he met the Duke, and was introduced by him to the Duc de Fitzjames and to Lally Tollendal. Here the good Colonel's memory deceives him, for he avers that Lally wished to take him to Pondicherry. Now Lally was deep in the Scottish rising, and did not leave France for India till ten years after 1746.^[108] Young Macdonell, in these weeks of hope deferred, lived with the Duke of York at Boulogne, Dunkirk, and St. Omer. Finally, he set sail from Dunkirk with several Irish officers on the very day of Culloden, April 16.

Here the Colonel is guilty of an artistic blunder in his narrative. It is plain, from his later statements, that the Duke of York made him the bearer of a letter, and a sum of 1,500*l.* or 2,000*l.* in gold, to Prince Charles. But we do not hear, till later, of the money or the missive. The little company with Macdonell rounded the Orkneys, landed in Loch Broom, and at once heard the fatal news of Culloden. Macdonell's uncle, Scottus, had fallen with twenty of his men, 'and nobody knew what was become of the Prince.' Colonel Macdonell never gives dates, but he must have arrived in Loch Broom between May 8 and May 12, 1746. On May 8, a meeting of chiefs was held at Murlagan, and a tryst appointed at Loch Arkaig, in Lochiel's country, for May 15.^[109] Our hero heard something of this at Loch Broom, and determined to join the rallied clans. He first went to Laggy, at the head of Little Loch Broom, where he found Colin Dearg Mackenzie of Laggy, with several other Mackenzie gentlemen, and sixty of the clan. 'We thought ourselves as safe [he and his friend, Lynch, an Irish officer,] as in the heart of France.'

Now began the purely personal romance of the Colonel. The Mackenzies entertained him and Captain Lynch at dinner in a dark and crowded room; he noticed that men gathered suspiciously behind him, and he remembered that they had remarked on the weight of his portmanteau. He therefore rose

more than once from table to inspect that valise, but, while the company were drinking the Prince's health, Colin Dearg walked out. Absent, too, was the portmanteau, when the guests left the table, but Colin explained that he had packed it on the back of our Colonel's horse. There, indeed, it was, but when the Colonel stopped at Dundonell, and opened his valise in search of a pair of shoes, a canvas bag containing 1,000*l.* was missing. A gentleman of the Mackenzie clan had slashed open the portmanteau and stolen the money of the Prince whose health they were drinking! It was the affair of the Loch Arkaig hoard on a smaller scale. The situation of our injured hero was the more awkward, as Dundonell, where he found, himself, was the estate of a Mr. Mackenzie, nephew to the thief, Colin Dearg. Mr. Mackenzie was absent; Mrs. Mackenzie was at home, but in bed. However, she saw Macdonell, who told her what had occurred, and entrusted to her another bag of five hundred guineas: 'If killed, I bequeath it to your ladyship. God be with you! I wish you a good morning.' Accompanied by Lynch, Macdonell now returned to Laggy. He dared not use force against Colin Dearg, for, if he fell, Colin would win his own pardon by producing a letter from the Duke of York to Charles, which our hero was carrying, though he now mentions it for the first time. Accused by Macdonell of taking the money, Colin Dearg denied all knowledge of it, and, as he was attended by a tail of armed clansmen, Macdonell had no resource but in retreat.

He breakfasted at Dundonell with 'the most amiable lady,' took up the 500 guineas, and, after fatiguing marches, reached Loch Arkaig. On the shores of the remote and lonely loch our Colonel met, and recognised, his gigantic kinsman, the truculent Col of Barisdale. Col said that Lochiel and Murray of Broughton were at Achnacarry; he himself and Lochgarry were mustering men, 'to try what terms could be got from the Duke of Cumberland.' This must have been on May 14. At Achnacarry the wounded Lochiel received our hero kindly, and Mr. Murray of Broughton took charge of the remaining 500 guineas and the letter from the Duke of York to the Prince. Lest any one should think that the Colonel is romancing, there exists documentary evidence to corroborate his tale. The unhappy Murray of Broughton, in his accounts of the Prince's money after Culloden, writes: 'From a French officer who had landed upon the East Coast, £1,000. N.B. —This French officer was charged with 2,000 guineas, but said he had 1,000 taken from him as he passed through the Mackenzies' country, and gave in an account of deductions from the other thousand.' Murray adds

that he has charged himself with 1.000*l.*, ‘tho’ he still thinks he did not receive quite so much.’ He must have received the 500*l.* (perhaps in *louis d’or*, which he reckons as guineas), and some loose cash. Murray was writing from memory, so was Colonel Macdonell. Murray calls him a French officer, and really he was in French service. There cannot have been two such officers who, at the same time, were robbed of 1,000*l.* by the Mackenzies, and reported the loss just after Culloden. ^[110]

Macdonell slept at Achnacarry and was wakened by the pipes playing *Cogga na si*. News had just arrived of an attempted surprise by Cumberland, whose forces were actually in sight; Barisdale was accused of having concerted the surprise, but the story is improbable. Eight hundred Camerons and Macdonalds now retreated by the west end of Loch Arkaig, and our hero, with Captain Lynch, made for Knoydart. Lynch later returned to French service, carrying Macdonell’s report to the Duke of York, and soon fell at the battle of Lafeldt, where the Scots and Irish nearly captured Cumberland. As for Macdonell, ‘I had put on a resolution,’ he says, ‘never to leave Scotland while Prince Charles was in the country.’ The death of Macdonell’s father, and the infirmity of old Scottos, also made his presence at home necessary to his family. So, he says, ‘I waved the sure prospect I had of advancing myself both to riches and honour,’ in the service of Spain.

Knoydart, during the winter of 1746-47, must have been in a state of anarchy. Old Glengarry, accused by Barisdale, was a prisoner in Edinburgh Castle; Young Glengarry was in the Tower. Col Barisdale and his son were captives in France, on a charge of treason to King James. Lochgarry had fled to France with the Prince. Old Scottos was decrepit. No rents were paid; the lands had been wasted by the English; clansmen were seizing farms at will. ^[111] In these melancholy circumstances our Colonel marched alone into the Mackenzie country, to hunt for the money stolen by Colin Dearg. Then this odd adventure befell him:—

‘I went to take a solitary turn and met a well-dressed man in Highland clothes also taking the morning air. After civil salutations to each other, I entered into discourse with him about former transactions in that country. He of himself began to tell me about French officers that came to Lochbroom—how the 1,000 guineas had been cut out of one of their portmanteaus by Colin Dearg, Major Wm. McKenzie of Kilcoy, ^[112] and

Lieutenant Murdoch McKenzie from Dingwall—all officers of Lord Cromartie's regiment, being all equally concerned; and how not only those who acted the scene, but all the people in that part of the country, had been despised and ridiculed for their mean and dastardly behaviour; but that had his (McKenzie's, who was speaking to me) advice been taken, there should never have been a word about the matter. The following dialogue then ensued:—*Question*. "And pray, Sir, what did you advise?" *Answer*. "To cut off both their heads, a very sure way indeed!" Q. "What were they, or of what country?" A. "The oldest, and a stout-like man, was Irish. The youngest was very strong-like, was a Macdonell of the family of Glengarry." Q. "How was the money divided?" A. "Colin Dearg got 300 guineas, William Kilcoy got 300 guineas, and Lieutenant Murdoch McKenzie got 300 guineas." Q. "What became of the other hundred?" A. "Two men who stood behind the Irish Captain with drawn dirks ready to kill him, had he observed Colin Dearg cutting open the portmanteau, got 25 guineas each; and I and another man, prepared in like manner for the young Captain Macdonell, got 25 guineas each." Q. "You tell the truth, you are sure?" A. "As I shall answer, I do." Q. "Do you know to whom you are speaking?" A. "To a friend and one of my own name." "No, you d—d rascal," seizing him suddenly by the breast with my left hand, at the same instant twitching out my dirk with the right, and throwing him upon his back, "*I am that very Macdonell.*" I own I was within an ace of running him through the heart, but some sudden reflection struck me—my being alone, and in a place where I was in a manner a stranger, among people which I had reason to distrust, I left the fellow upon his back, and re-entered the house (Torridon) in some hurry. My landlord, Mr. McKenzie of Torridon, met me in the entry, asked where I had been. I answered, "Taking a turn." "Have you met anything to vex you?" "No," I returned smiling. "Sir," says he, "I ask pardon, you went out with an innocent and harmless countenance, and you came in with a fierceness in your aspect past all description." "Mr. McKenzie," said I, "none of your scrutinizing remarks; let us have our morning!" "With all my heart," he replied. Soon after, being a little composed, I related to him my morning adventure. He remarked that the man was a stranger to him, and had been a soldier in Lord Cromartie's regiment. That very day I quitted that part of the country and returned home, where I continued sometime.'

The *some time* must cover the years from 1747 to the autumn of 1749. Old Glengarry was released at that date from Edinburgh Castle. To him, at Invergarry, Colonel John told the story of his wrongs, and from his chief he obtained an escort of five men. With these at his heels, he marched to Dundonell, and told Mr. Mackenzie that he desired a meeting with Colin Dearg. Colin came, but his escort consisted of some thirty-five men armed with dirks and clubs. The Colonel, however, was determined to beard his enemy, and devised the following tactics. He himself would sit between Colin Dearg and Dundonell: two of his five men would slip out and guard the door with drawn swords; meanwhile the Colonel would insult the Mackenzies. If they raised a hand he would pistol Colin and dirk his host, Dundonell; his three retainers would fire the house, and the Macdonells would escape in the confusion or perish with their foes. It was a very pretty sketch for a *camisado*.

‘After a short pause Dundonell mentioned the cause of our present meeting *in as becoming a manner as the subject would admit of*; to which an evasive answer was returned by his uncle, Colin Dearg, pretending to deny the fact. I then took him up, and proved that he himself was the very man who with his own hands had taken the gold out of my portmanteau, after cutting it open with some sharp instrument. This I said openly in the hearing of all present. To which I got no other reply than that “the money was gone and could not be accounted for.” I returned that “If the cash was squandered the reward due to such actions was yet extant”—and being asked what that was, I answered, “The gallows.” At this expression the whole got up standing, and seeing them all looking towards me, I drew my dirk and side pistol, and presenting one to my right and the other to my left, swore that if any motion was made against my life, I would despatch Dundonell and his uncle, who seeing me ready to put my threat in execution, begged of their people for the love of God to be quiet, which was directly obeyed. In the meantime my men had taken immediate possession of the outside of the door and were prepared to act according to my orders. I called to them to stay where they were, but none of the people in the house knew what they had gone out for.’

The money was gone, no man dared to touch our hero, and he and Dundonell went peacefully home together! Our hero had dominated and insulted the Mackenzies and was obliged to be satisfied with that result.

In the following years (1751-54) Knoydart and Lochaber were perfectly demoralised. The hidden treasure of Loch Arkaig had set Macdonalds against Camerons; cousins were betraying cousins, and brothers were blackmailing brothers. The details (much veiled in this work) are to be found in the Duke of Cumberland's MSS. at Windsor Castle. The murder of Campbell of Glenure by Allan Breck, or by Sergeant Mohr Cameron, and the reports of Pickle, James Mohr, and a set of other spies, had alarmed the Government with fears of a rising aided by Prussia. Consequently arrests were frequent and no man knew whom he could trust. Col of Barisdale, a double-dyed traitor, was dead in gaol, but his eldest son was being hunted on island, loch, and mountain. Now in a letter from an English officer, Captain Izard, dated September 30, 1751, and preserved at Windsor, he says: 'Dr. Macdonald, living at Kyles, and brother of Glengarry, told that young Barisdale lay at his house the Monday before and proposed going to the Isle of Skye.'

The giver of this information was not a man in whom to confide. Our hero, however, confided. Disguised as a rough serving-man he went fishing for lythe with 'my relation, Dr. Macdonell of Kyles, an eminent physician.' An English vessel, the *Porcupine*, under the notorious Captain Fergusson, came in sight. Dr. Macdonell insisted on taking our hero on board her, and there, as he sat over his punch, informed the English officers that the servant who accompanied him was a gentleman. Fergusson arrested Macdonell at once on suspicion of being young Barisdale, and he lay for some time a prisoner in Fort William. Now the Doctor may only have blabbed in his cups, but, taken with Captain Izard's report, his behaviour looks very odd. Our hero, however, does not suspect his relation, the Doctor, but denounces his cousin, Captain Allan Macdonald of Knock, in Sleat, as his betrayer, and 'the greatest spy and informer in all Scotland.' However it be, the betrayal of Colonel John was apparently a family affair.

A long list of charges, doubtless of Jacobite dealings, was brought against him, and a midshipman on the *Porcupine* assured him that Allan Macdonald of Knock was the informer. So the Colonel was locked up in Fort William, then, or just before, crowded with prisoners, such as Lochiel's uncle Fassifern, his agent, Charles Stuart, Barisdale's second son, and Cameron of Glenevis, with his brother Angus. The date must have been June or July, 1753, for young Barisdale was taken in July, and the Colonel was then a

prisoner. Young Barisdale just escaped hanging; Fassifern was exiled; Stuart was accused of the Appin murder; Sergeant Mohr Cameron was betrayed and executed; the traitors were clansmen of the victims, and, though our Colonel says nothing of all this, the facts gave him good cause for anxiety. It is fair to add that no mention of his enemy, Macdonald of Knock, seems to occur in the Cumberland Papers, where so many spies hide their infamy.

Our hero escaped by aid of Mr. Macleod of Ulnish, sheriff-depute of Skye, 'being both my friend and relation as well as the friend of justice.' This gentleman suppressed the only good evidence against the Colonel, which indeed merely proved his wearing the proscribed kilt. After nine months of gaol the Colonel was released and seized the first opportunity to challenge Knock, who would not face him.

So ends the Colonel's adventure. 'I was then in love with your mother,' he says simply, and on this head he says no more. He had 'kept the bird in his bosom,' a treasure lost by many of his kin, and among them, one fears, by Allan of Knock. A certain Ranald Macdonell of [*in*] Scammadale and Crowlin, who, born about 1724, married in May 1815, and died in November of the same year, aged ninety, is said to have 'severely punished that obnoxious person known as Allan of Knock, over whose remains there was placed an inscription not less fulsome than false.'^[113] Allan, whether he betrayed the Colonel or not, has obviously a bad name in Knoydart.

The Colonel lived happily on his property till 1773, when he settled in Schoharie County, New York. When the American rebellion broke out he served in the King's Royal Regiment of New York, and, after the final collapse of the British, he retired to Cornwall in Ontario. As General Macdonnell wrote of him in 1746, 'He has always behaved as an honourable gentleman and a brave officer, irreproachable in every respect.'

X

THE LAST YEARS OF GLENGARRY

Readers who have followed the adventures of Pickle the Spy may care to know what were the later fortunes of his inseparable companion, Young Glengarry. These fortunes were not answerable to the expectations of the Chief. The death of Henry Pelham, in March 1754, blighted, as we shall learn, the hopes which Glengarry, like Pickle, had founded on the promises of the Prime Minister, and left him a debtor to Government for claims on his lands. That Young Glengarry, on reaching his estates in November 1754, behaved with oppressive dishonesty to his smaller wadsetters, men holding portions of his land in pawn, we learn from the report of Colonel Trapaud, who, for some sixty years, was Governor of Fort Augustus. Early in 1755, we find Glengarry at Inverness, where he signs a tack, or lease, on January 24. A copy of an undated letter from Pickle represents Glengarry as ‘making a grand tour round several parts of the Highlands, and having concourse of people from several clans to wait of him.’ Glengarry himself speaks, in a letter to be quoted, about such a gathering. In 1755, we find General Bland objecting to Glengarry’s journeyings (when Pickle went to London), and on May 18, 1757, Captain John Macdonnell, of General Frazer’s regiment, departing for America, makes Glengarry his ‘factor and attorney,’ also his executor and general legatee.^[114] This Captain Macdonnell was the younger Lochgarry, who accompanied Pickle in Edinburgh, in September 1754. ‘I hope, in case of accident, you’ll take care of Young Lochgary,’ writes Pickle.^[115] Captain Macdonnell was later Colonel of the 76th, says General Stewart, and a previous owner of my copy of the General’s book notes in the margin that ‘he was wounded on the Heights of Abraham.’ Critics who think that Glengarry was personated by Pickle will observe that Young Lochgarry knew both gentlemen and could not be deceived. He was Pickle’s companion in Edinburgh when Pickle had just lost his father, a Highland chief. In 1757 he makes Glengarry (who had suffered a similar bereavement at the same time as Pickle), his factor and legatee. There is, of course, no reason to suppose that Young Lochgarry had ever heard of such a mysterious personage as Pickle.

We know nothing else of Glengarry's life from 1755 to 1757, when his manuscript letter book throws a melancholy light on his closing years. There is a draft of a letter of 1757 and several drafts of 1758-1759, in a stitched folio wherein he entered the *brouillons* of his correspondence, not always in his own hand. On April 28, 1757, he wrote from London, probably from his rooms in Beaufort Buildings, Strand. He writes to his Edinburgh agent, Mr. Orme, W.S., on a variety of business. His action in settling his estates was much impeded by the retention of his charters and family papers by Sir Everard Falkner (or Faulkner), an English officer. 'I have prevailed,' he says, 'upon Mr. Brado, how (who) is a principal man amongst the Jewes, to endeavour to recover my charters from Sir Everard.' He expects to redeem all the wadsets on his lands, and to compound for a few of the most pressing of his father's debts. But he must have been disappointed, for on his death, in 1761, more of his estate was in the hands of wadsetters than in his own. He must, however, have secured proof of 'my propinquity to those of my predecessors left infert,' for he was formally inducted into his property before an Inverness jury in 1758. He mentions that, when he left Scotland, 'the appearance of a famine threatened then the whole north,' and 'his friends were buying meal in Buchan.' A wet summer and autumn always meant dearth in the Highlands. He alludes to some military oppression of one of his retainers: 'the attempt is so flagrant that it would not pass unpunished amongst the hotentots.' An unfinished draft appears to be addressed to General Frazer, son of Old Lovat. With him (if it is Frazer) he wants 'to settle family differences *à l'aimable*.' His correspondent is leaving Scotland after recruiting.

In June 1758, Glengarry was in correspondence with persons concerned in the affairs of his sister-in-law, widow of his brother Æneas, accidentally shot at Falkirk, in 1746. Æneas must have married very young: he was not twenty when he died, but he left a son and a daughter. For some unknown reason Glengarry was on ill terms with his brother's widow, as will appear, and she would not permit her children to visit their uncle. To this business the following letter refers:

‘To Rory McLeod.

‘(Dated Greenfield, 22nd June, 1758.)

‘Dear Sir,—I am favour’d with yours by the last post, and am not a little surprized to understand by it that Mr Robison should have wrott either to Mr Drummond or you that I intended to dispose of my nephew contrar to the present system of moral education, all I said to Mr Robison that if I sent him abroad I could have him educated for nothing, but that I did not myself approve of this frugall method, but that I would advise with Mr Drummond how to Dispose of him when I would be at Edinburgh, that if he inclin’d a military life, I might have interest to get him a pair of Colours, but then I would insist the best *moitié* of his patrimony should be assigned to his sister, but that what I inclined he should follow was the law, if he had genius for that profession, and that in that case if Mr Drummond approved of it, I would send him for the sake of the language to some country school in England. This was all that passed upon honour, and Desired to send over the boy that I might make him acquaint in the country, and should only Detain him two months, I had a Double view in this as I had the countrey about that time all convened, it would have been fifty pounds in his way, and this I told Mr Robison; and at the same time, as the lassie had no English, I would Keep her all winter with my sister so that in spring she might be presentable, when I would send her for a little time to my sister’s Dr Chisolme at Inverness. Mr. Robison approved of all this, particularly of the lassy’s coming, and, that he might not be blamed for retaining them, sent them to their Mother’s, where the Girle has ever been, and laid the whole blame to her charge. I have still Mr Robison’s letter, but he has his views which I am resolved to frustrate.... I will shew you my brother’s discharge to my father, and I have living witnesses that delivered him Cattle in payment of interest, and part principall, and as one of them is his father’s brother, how would go all lengths for him, that there can be no objection to his evidence as Discharges have been burned or Destroyed after the Castle was blown up....

‘Your affect. Cousine and humble servant,

‘MACKDONELL.’

Burt says that 'to have the English' was the mark, among the Highlanders, of a gentleman's children. Glengarry's niece had as yet no English; her education had doubtless been neglected in the distresses consequent on the Rising. Probably, too, her mother was poor, her husband's portion having been partly paid in cattle. These very cattle may have been among the 20,000 plundered by Cumberland's men after Culloden, as a volunteer writes in his little book of 'A Journey with the Army into Scotland' (1747).

In a letter to Mr. Orme, of unknown date, Glengarry says that his sister-in-law 'is infamous.' On the same affair of the nephew he writes again:—

[No date.]

'Sir,—I have been frequently since my father's death abused in the good opinion conceived in former days of those that ought and were generally believed steadfast friends to this family, but I must confess I least of all expected it from any of yours, and least of all from yourself personally. I had a letter lately from Robison of Ballncaird acquainting me that Provost Drummond and you, despairing of the amicable agreement twixt my nephew and me, intended to push matters to the utmost, this was strange proceedings, without ever acquainting me, and in any event a strange procedure between me and my nephew when the opinion of any one or two eminent in the law might in a few moments decide the whole without further expences, and when they come to the age to judge for themselves I believe they will be little obliged to their present directors, Mr Drummond only excepted. I sent for my nephew and niece, their not arriving is laid to your advice, tho up to that time I little believed it, and from that Instant foresaw Mr Robison and their infamous mother's drift. As Mr Drummond is so very good as take the trouble to look after any so very near connections, least by others' drift he should be Deceived, I must act the needful to have a near relation of the father's side subjoined with him to take care of the whole, and their Education, and bring their Mother and Mr Robison to account for their intermissions with his effects and moveables, most of which he received as payment, and at his Death were very considerable, there are still living witnesses

that can prove this, and I have which I believe may be in my Agent's custody, his discharge or Bond for 6000 merks, pay'd by his father of his bond of patrimony. Should this stand in law, as it ought in equity, and Justice, I will refer any differences of this kind to any named by Mr Drummond, and another by me.

‘... Acquaintance, friendship, and blood connection might expect a friendly demand, not by a Sheriff Officier.

‘But as the world has taken a turn, and that men of business are not to mind such punctilios, I have nothing to say but that I hope it may not be long when a blood relation and connection with this family may be claimed both as an honour and protection, it was so formerly, and may be still the same.’

(He adds that he wishes proceedings stayed still he comes to Edinburgh, and refers to his ‘late violent indisposition.’)

‘Your sincere friend and affect. Cousine.’

This undated letter is probably of 1758, though early in 1759 Glengarry had another very severe illness, from which it may be doubted if he ever entirely recovered. He writes to Mr. Orme, ‘I am drinking goat-whey and milk, that is my diet.... I shall be soon upon my leggs, and see you soon.’

The following is an important letter, undated in the draft, to the Chief of the Macleods:—

[Undated. Really of June 21, 1758.

‘Dear Macleod,—I thought to have had the pleasure some months ago of drinking a glass with you at White House. But a Severe fitt of sickness of which I am now getting the better prevented me. I have settled my affairs in the country as well as my present situation and the circumstances of my tenants could admitt, but as their whole [property] was once destroyed, and that they have not recovered yet quite in their stock I was oblinded to give them a longer delay than I expected.’

He therefore asks Macleod to ‘go conjunct with me in security for borrowing 400*l.*’—an invitation which Macleod declined. If Macleod will not help him, ‘I cannot be active in making application to be discharged of the claims the Government has against my estate, *which I was once made sure of, but that vanished with those then at the helme.*’

Such a promise, broken on the change of the hand at the helm, is several times referred to—by Pickle. He writes to the Duke of Newcastle, ‘he bitterly complains that nothing has been done for him, of what was promis’d him in the strongest terms, and which he believes had been strickly performed had your most worthy Brother (Henry Pelham) his great friend and Patron, survived till now.’^[116]

Among the many odd coincidences between Pickle and Glengarry, this is not the least curious. Both the spy and the chief entertained great expectations from Government, and both confess that these hopes ‘vanished with those then at the helme,’ obviously, that is, with Henry Pelham’s death.

Glengarry goes on, in his letter to Macleod, ‘*but to be explicit on this*’ (namely, on his ‘being made sure’ of the abandonment of Government’s claims on his estate) ‘and the confusion my father and the late unluckie troubles left this estate would draw to tow great lenth, I will therefore reffer it till meeting.’ He ends with compliments ‘to Lady Macleod, and the two lovely little Misses.’

It would have been pleasant to hear Glengarry when, over a bottle, he was ‘explicit’ on the reasons for which Henry Pelham promised to abate the demands on his estate. Government knew that Glengarry was in the affair of Loch Arkaig. They arrested his accomplices in 1751, but left him free. Government knew, by their spies, that Glengarry frequented the Earl Marischal in Paris in 1752, and that, in 1753, he was perpetually running over, as a Jacobite agent, to Paris. But they then arrested Glenevis and Fassifern, while they promised to abate their claims on Glengarry’s estate! To explain all this to Macleod ‘over a magnum,’ as Glengarry elsewhere convivially remarks, could not be an easy task. His letter, in the draft, is undated, but on the same page is a letter to his solicitor, Mr. Orme, W.S., dated ‘Greenfield, 21 June, 1758.’ In this letter he speaks of that just cited as having been sent ‘by this very post.’ Macleod was in Edinburgh, but left before Glengarry’s appeal could reach him. Now, without the 400*l.* the

Chief could not go to town. He therefore wrote again to Macleod, repeating his supplication, and being 'explicit' indeed as to his former patron in the Government, though not as to the reasons for his patronage.

'An absolute discharge of the heavie claim the Government has against me I was once promised, but those that was then at the helme *are no more.*'

The only person of those 'then at the helme' who was now, in 1758, 'no more' was precisely Henry Pelham. He died in March 1754. Pickle was his 'man.' Pickle had received promises from him which were never fulfilled. So, oddly enough, had Glengarry! We know what Pickle's services to Henry Pelham had been; we can guess at those of Glengarry. But after Henry Pelham's death—in fact, at the very time of his death—Prince Charles's party broke up for ever in England, and the Earl Marischal quarrelled irreconcilably with the Prince. The services of Pickle were therefore no longer needed. Pelham's engagements with him were not kept, and the promise to Glengarry, by a coincidence, was also broken by the faithless English Government.

People who maintain that Glengarry was not Pickle may be asked to produce a theory which will account for the singular series of coincidences in the fortunes of the Chief and the spy. Even in this new coincidence alone, it will be interesting to see how they explain the circumstance that Glengarry, like Pickle, found his expectations blasted, and the promises made to him unfulfilled, in consequence of the death of Pickle's employer, the brother of the Duke of Newcastle. What possible claim could a professed Jacobite agent, known for such to Government, as young Glengarry was, have on the good offices of the First Lord of the Treasury? It has been fondly suggested that Pickle was an unknown miscreant, personating Glengarry. That will be shown to be physically impossible; but, granting the hypothesis, why was Glengarry, no less than Pickle, favoured by Henry Pelham? No other person can be meant by the phrase 'those at the helme,' now 'no more.' Newcastle, indeed, was out of office in 1756, if 'no more' is explained as 'out of office.' But when Glengarry wrote to Macleod in 1758 Newcastle was again at the Treasury.

Macleod would not back Glengarry's bill for 400*l*. His agents advised him against this measure. In February 1760 Pickle, who was anxious to go to London, asked the Duke of Newcastle to send him a bill, payable at sight,

‘for whatever little sum is judged proper for the present.’ The Duke’s answer, with the bill payable at sight for the little sum to defray Pickle’s travelling expenses, is to be directed by his Grace

‘To Alexander Mackdonell of Glengarry by ForAugustus.’

Apparently, then, Pickle had some means of getting at Glengarry’s correspondence. The two gentlemen spell ‘Fort Augustus’ in the same singular way. On September 11, 1758, Glengarry wrote to Mr. Orme’s subordinate:—

‘Will you dowe me the favour to order me the “Caledonian Mercury” regularly every post to the care of Mr. William Fraser, merchant at forAugustus?’

The almost unvarying uniformity in bad spelling which marks Pickle and Glengarry will be commented on later.

The last years of Glengarry were disturbed by the legal results of an early piece of domestic slyness. His father, old Glengarry, commonly described as a weak, indolent man, married, first, a lady named Mackenzie, of the Hilton family. As his eldest son was not of age in January 1745 the marriage may have been in 1723 or 1724. After bearing a second son, Æneas, and apparently a daughter, Isobel, Lady Glengarry died (1727). In a deed of 1728 we find Old Glengarry already remarried to a daughter of Gordon of Glenbucket, who in 1724 was nearly murdered by evicted Macphersons. The stepmother of Young Glengarry was a managing woman, and ‘factrix’ of her husband’s estates. Now, in 1738 Old Glengarry pawned or ‘wadsetted’ his lands of Cullachy to his kinsman Lochgarry. The wadsetter paid 2,000 merks in money and gave bills for the rest. But in January 1745, when Alastair was in Scotland on furlough from his French regiment, Old Glengarry formally ‘disponed’ his estates to his eldest son. Doubtless this was done with an eye to the chances of a rising; in any case, the transaction was kept a secret from Glengarry’s wife and factrix.

Hence arose trouble, for the pawned estate of Cullachy had been redeemed. Lochgarry had been paid his 2,000 merks, or they were set off against another debt, but his bills were not returned to him. They lay in Lady Glengarry’s custody, and she could not be asked for them without

revealing the secret transference of the whole property to Young Glengarry in 1745. He therefore gave Lochgarry a written promise that the bills should never be used against him. But Lochgarry being attainted, after 1745, and exiled, his possessions were forfeited to the Crown. Government therefore demanded, in 1758, that Glengarry should redeem from them Lochgarry's wadset of Cullachy. He pleaded that it was already redeemed before 1745, but of this he could bring no evidence. He writes to his Agent on August 2, 1758, that he is not certain of the year of the wadset (really 1738), as he was not then in the kingdom; he was in France. 'Lochgarry being more in debt to the family than the [amount of the] mortgage, he delivered up his contract of wadsett, which I thought was all the ceremony necessary; and the signature being tore from it was laid, according to custom, among the family papers, which were carried off, and are now in Sir Everard Falconer's custody.' He knows little of estate affairs, 'as I was always abroad.' His rental of 1744 was burned with the house of his factor, Donald McDonell, Younger of Scotus.

After the Rebellion, he did not meddle in matters of the property, till his father's death (1754). 'The tenants could hardly pay what would subsist him.'

'Every tenant took possession of what farme he pleased.' In 1746 'Mrs. Mc.Donell of Lochgary being destitute of all suport, having a numerous family of young children, came from Badenoch, took possession of Cullachy, and there lived untill she followed her Husband abroad.'

'The lands of Cullachie was only set till lately from year to year, the tenants were frequently removed, I know of no written rentall, it is not customary ... Discharges were not formerly required, nor were they necessary.'

Glengarry explains all this to his Agent on January 6, 1759:—

'When I got disposition to my Father's estate I was then under age, at this time Lady Glengarry, *how* [who] then had so much to Say with her husband, the Disposition Grant was concealed from her, and as the Bill granted by Lochgarry was in her Custody, had they demanded it would have Discovered the Scheme in my favours, I granted my Obligatory to Lochgery that these Bills should never make against him.'

The sense can be puzzled out of the anacoloutha.

On February 3, 1759, he repeats his story:—

‘I will only observe that the reason of the bills not being cancelled or retired by Lockgerry, was that they were then in Lady Glengarry’s custody, and that the disposition of my Father’s estate in my favour was kept secret from her, which would have been discovered had Lochgerry demanded his bills, and this occasioned my giving him my obligation they should never make against him.’

The whole affair is a specimen of the informal manner in which Highland business was done. The frequency of ‘removals’ of tenants also throws doubt on the theory that Evictions were a novelty introduced by the Commissioners of Forfeited Estates. The anarchy after Culloden is shown by the squatting of tenants on whatever farms they chose to select. The Judges could not be induced to accept Glengarry’s account of the redemption of Cullachy, as he had no documentary evidence, and Cullachy appears, after the Chiefs death, among his mortgaged lands. [\[117\]](#)

The latest of the drafts in Glengarry’s Letter Book are of December 1758, January 1759. He appears much aggrieved by Colonel Trapaud, Governor of Fort Augustus, for the following cause: his ground-steward had been claimed, unjustly it seems, as a deserter from the army. A party of soldiers then acted in the manner described in the following draft, which has no date or address:—

‘The party in the dead of night was posted round my hutt, of which I was ignorant untill my servants were stopped from going from door to door. Alarmed at this, I suspected some straglers were come to break open some valts in the old Castle, which was formerly Done.’

The indignant chief drafts the following remonstrance to Colonel Trapaud:—

‘I never thought to have reason to write you in so cooll a strain. My own Behaviour, not to mention the pollitess shoven to you by my friends in Generall since you lived in this countrey claimd a more Gentle return, and as our Actions are always above Board It

depends upon yourself that the same Harmony Should allways
subsist, and I will be very happie still to remain,

Sir,

Your sincere friend and Humble servant.'

Trapaud's behaviour, Glengarry writes, is 'picking,' and Pickle also spells *pique* 'pick.' The worst of it is that Glengarry 'is lick to lose the use of his eyes,' for at the time of this assault in his 'hutt' he was exceedingly ill. 'I am now writting,' he says to Colonel Lambert (January 6, 1759) 'in this confus'd stile with only the fowrth part of one eye open, beeing near losing my life with a plague of a distemper, which, when recovered, seised my eyes.' On January 15, 1759, he tells Captain Forbes that he can hardly see. On February 24, 1759, he expresses a civil surprise at Macleod's refusal to back his bill for 400*l*. On February 3, he was still 'hardly able to crall,' but intended to go south; his sister Bell was going to Edinburgh. Macleod's persistent refusal probably made the journey to London impossible, where Glengarry expected 'to be off or on with the Government claim against my estate.'

There are no later drafts in the Letter Book, but Pickle, at all events, had the use of *his* eyes when he wrote to the Duke of Newcastle on February 19, 1760, ^[118] offering to raise a regiment. Glengarry, six weeks later, urged the same proposal through the Duke of Atholl.

On April 21, 1761, Glengarry made his will. He recommends his sister and sole executrix to seal up his cabinet, which is not to be opened 'till the friends of the family meet.' The Macdonnells of Greenfield, Leek, and Cullachy are then 'to see all the political and useless letters among my papers burnt and destroyed, as the preservation of them can answer no purpose.'

Mr. Fraser Mackintosh, who publishes these extracts, adds, 'why Glengarry who lived several months after the execution of his will, did not himself destroy the papers above alluded to, can be conjectured by people for themselves—all that need be said here is that their destruction was a pity, and the reason given unsatisfactory.'^[119] His affairs 'were found to be in a deplorable state.' It may be conjectured that Glengarry clung to his

papers, which must have been compromising enough. If his malady again affected his eyes, he might be unable to select the documents which it was wiser to destroy. Nor could he well endure to entrust 'my sister Bell' with the task of selection. She must not know her brother's guilt. That secret must have oozed out, for it has left traces in tradition. [\[120\]](#)

Thus closed miserably a singular career. Impoverished, dying in a 'hutt,' beside the ruins of his feudal castle, distrusted, not even permitted to see his young nephew and heir, Glengarry reaped the harvest sown by his mysterious attendant, Pickle.

XI

THE CASE AGAINST GLENGARRY

Of all the companions of Pickle, the most inseparable was Glengarry. Now, since the appearance of 'Pickle the Spy,' the author has been denounced before the Gaelic Society! Amidst 'applause' a Celtic gentleman, the news-sheets say, accused me of bringing a charge of an odious nature, *without any proofs*. Of course, if I have no proofs, nobody who thinks so need argue against what I, myself, regard as a chain of irrefragable circumstantial evidence. Nor am I aware that any arguments, beyond clamour, have been advanced, in favour of Glengarry's innocence, except those which I shall presently examine. But first I must meet the charge of wresting facts to suit my 'prepossessions.'

I had no prepossessions: how should I? If I knew so much as that there was any young Glengarry, before I read the Pickle letters, it was the limit of my information. These documents were pointed out to me, several years ago, by Sir E. Maunde Thompson, when I was in search of a manuscript to print for the Roxburghe Club. I began to read them, where they are to be found, scattered through five or six volumes of the Pelham Papers, in the British Museum. They are not all in sequence in one volume, nor in chronological order. On a first hasty examination, nothing appeared to indicate their author. I therefore had transcripts made of the Pickle Letters, and, after reading them, arranged them chronologically, being helped, where dates failed, by their allusions to public events: such as the death of Frederick, Prince of Wales, the death of Henry Pelham, and so forth.

On a first glance at the originals, I had no hope of detecting the spy called Pickle. He might be a servant, secretary, or retainer of any Jacobite family. But indications as to his identity kept occurring, when once the papers were sorted, and the hunting instinct awoke in the reader, the fever of the chase. Pickle was apparently no 'paltry vidette,' for he was in close relations with the Prime Minister, Henry Pelham, and, later, with the Duke of Newcastle. Now a lacquey may, as Sir Charles Hanbury Williams's dispatches show, report to an Ambassador, but a Prime Minister is less easy

of access. Next, Pickle was, or had succeeded in persuading Pelham that he was, a person of the first importance in the Highlands. A critic has replied that, of course, a spy would pretend to be important, and, naturally, would be accepted as such. Ministers are scarcely so gullible. They do not accept a casual stranger's identity without inquiry.

Presently it appeared, from a letter of the Court Trusty, or Secret Service man, Bruce,^[121] who attended Pickle in Edinburgh, that he now, by his father's death, was head of a great clan. Pickle's father's death occurred in September 1754. Now, on examination, it appeared that Old Glengarry, and no other Chief, died on September 1, 1754, in Edinburgh, where we find Pickle, with Young Lochgarry, in mid September. Pickle, writes Bruce, the Court Trusty (signing 'Cromwell') is adulated by military society in Edinburgh, where he stays for at least a month. He is to be observed, when he goes North, by the Governor of Fort Augustus, near which lie Glengarry's lands. The Governor (Trapaud) writes unfavourably of the new Glengarry (December 13, 1754), and Pickle writes that he will, if not permitted the use of arms, prevent officers from shooting over his lands.

Pickle then is, or affects to be, a young Chief, just come, by his father's death at Edinburgh, in September, into estates near Fort Augustus. He is also, or pretends to be, the chief of the Macdonnells, for he says (April 1754), 'there could be no rising in Scotland without the Macdonnells: he is sure that he shall have the *first* notice of anything of the kind; and he is sure that the Young Pretender would do nothing without him.' Finally (as stated on p. 209), writing to the Duke of Newcastle (Feb. 19, 1760), he speaks of Pickle in the third person, says that he is ready to raise a Highland regiment (which only a Chief could do), and ends, 'Direction' (of reply) 'To Alexander Mackdonnell, of Glengary, by Foraugustus.' Before I read that line, I had said to a Highland friend, 'The traitor is a Macdonald.' 'Not Clanranald, I hope,' he answered, and then Pickle's last letter gave me the clue to Glengarry.

Thus there was, and could be, no 'prepossession' on my part. The circumstances all pointed direct to Glengarry, or to a personator of his, and to no one else. Thus it became a 'working hypothesis' that Pickle either was, or was personating, Glengarry: a Chief on terms of perfect intimacy with Prince Charles. He was, or affected to be, a Macdonnell, a Chief, with

lands near Fort Augustus, to which he succeeded by his father's death in September 1754, the date of the death of Old Glengarry.

Taking Pickle's identity, natural or feigned, with Young Glengarry, as a working hypothesis, it became necessary to trace the career of that chief. At every stage, in every detail and date, after 1750, whatever was true of Young Glengarry was found to be true of Pickle. Every gleam of light that revealed the long forgotten incidents of Young Glengarry's career, after 1750, fell also on the sinister features of Pickle. My hypothesis thus 'colligated' all the facts. New facts from MSS. came into view after my book was published; my hypothesis colligated these also. Everything fell into its place: everything coincided in the identification of Pickle with Young Glengarry.

To upset the evidence of a long series of coincidences, all pointing in the same direction, some hypothesis other than the hypothesis that Pickle is Glengarry must be advanced. Only one alternative suggestion has been ventured, as far as I am aware—namely, that Glengarry was *personated* throughout, for ten years, by some unknown 'inward' or close intimate, calling himself 'Pickle.' That hypothesis I shall prove to be not only morally but physically impossible, to demand a physical and moral miracle. We are left, then, with the equation, Pickle = Glengarry. [\[122\]](#)

To the *a priori* objection, that it is morally inconceivable that a Highland Chief, of character hitherto unsuspected, should sink so low, I need hardly reply. Too many Chiefs, from the death of Malcolm MacHeth, had been in the same *galère*. Young Glengarry, moreover, was suspected by several independent witnesses. We have also read the story of Barisdale, Glengarry's cousin. *A priori* improbability there is none. We therefore proceed to examine the career of Young Glengarry, and to show how his comings and goings, his entrances and exits, the changes in his fortunes, his unconsidered private letters, his spelling, and his handwriting, all combine to identify him with the author of the Pickle Correspondence.

About the early years of Alastair Ruadh Macdonnell of Glengarry it is unnecessary to write at great length. Born apparently about 1725, for he was not of age in the beginning of 1745, Young Glengarry had one brother of the full blood, Æneas, accidentally shot at Falkirk in 1746. He had also a sister, Isobel. Before 1728 his mother died. Wodrow says that she was

imprisoned by her husband on an islet, and died of hunger (1727). Young Glengarry now received a stepmother, a daughter of Gordon of Glenbucket. He does not seem to have been attached to this lady, who bore two sons to Old Glengarry. According to Murray of Broughton, Young Glengarry ‘was most barbarously used by his father and mother-in-law’ (p. 441). Alastair, at all events, was sent to France as early as 1738, where he was not likely to learn English orthography. His own, though pretty consistent in its blunders, is of the kind which Captain Burt found prevailing in the Highlands.

Alastair’s boyhood was probably unluxurious. Burt tells the following curious anecdote on this head. After 1715, the Castle of Invergarry, which had been adorned by the father of the Glengarry of Shirramuir, was gutted by the English soldiery. It was refurnished and made inhabitable by the agent of a Liverpool Company, who smelted iron in the district. Glengarry, meanwhile, ‘inhabited a miserable hut of turf, as he does to this day’ (1735?). To this manager, a Quaker, a number of gentlemen of the clan paid a visit. After receiving them hospitably, the Quaker observed that they would always be welcome in ‘my house.’

‘God d—n you, Sir, your house! I thought it had been Glengarry’s house.’ They then assaulted the Quaker, who was rescued by his workmen. ^[123] Alastair was better lodged in France, where, in 1743, he got a Company in the Royal Scots. In 1744 he was with Pickle’s friend, the exiled Earl Marischal, at Dunkirk, meaning to start with the futile French expedition from Gravelines.

How that expedition was ‘muddled away’ we have told in the essay on the Earl Marischal. At this time the Earl in France, and Murray of Broughton in Scotland, gravely distrusted James’s agents in France, Sempil and Balhaldie. Now Balhaldie was a connection of Lochiel, and was aware that Murray held him in suspicion. He, therefore, after the collapse of the expedition of 1744, sent over to Lochiel Young Glengarry, ‘freighted with heavy complaints’ against Murray. Lochiel next, in the spring of 1745, brought Murray and Young Glengarry together. The young Chief told Murray that Balhaldie accused him of bidding the Prince come to Scotland, with or without French assistance, and ‘seat himself on the throne, and leave the King at Rome’ (which was precisely what James desired and Charles repudiated). ^[124] Glengarry was therefore to warn the party against Murray. Murray told Glengarry the real facts—namely, that Balhaldie was

too imaginative, and Glengarry seemed quite satisfied. Indeed, he produced a letter to the same effect as regards Balhaldie from Æneas Macdonald, the banker, and, later, the informer.

Glengarry and Murray presently met at that strange tavern gathering in Edinburgh, where, out of the company, Traquair, Lovat, Glengarry, Murray, Macleod, and Lochiel, Lochiel alone preserved his honour. Glengarry then went to the Highlands with letters for Sir Alexander Macdonald of Sleat and other gentlemen. In January 1745 Glengarry had induced his father secretly to dispoise to him his lands, an action which became a serious trouble to him later. In May 1745 Murray sent him with despatches to the Prince in France, and with reasons why Charles should not come unless accompanied by a French force. Late in 1745 Young Glengarry was taken at sea, and lodged in the Tower.

Charles, meanwhile, was loyal enough to his imprisoned adherent. On November 4, 1746, Charles wrote to d'Argenson, 'there are three prisoners in London, sir, in whom I take a warm interest. These are Sir Hector Maclean, Glengarry, and my secretary, Mr. Murray of Broughton. All three hold French commissions, the first was born at Calais.... I implore you, sir, to take every means to secure their exchange, and will regard it as a personal obligation.'

These gentlemen, however, were not naturalised French subjects, like Nicholas Wogan, who, after fighting when a boy at Preston in 1715, and after losing an arm at Fontenoy, took part in the campaign of 1745, and later saw Cumberland's back at Laffeldt fight. Nicholas may have been exchanged, in 1746, as a French prisoner; for Murray and Glengarry this plea was unavailing. The Prince, however, did his best for both men, and ill they rewarded him. [\[125\]](#)

Glengarry told Bishop Forbes the same story in 1752. He was the bearer of a letter from the Chiefs, imploring the Prince not to come over without arms, money, and auxiliary forces. [\[126\]](#) But he could not find Charles, who was incognito, 'lurking for a spring.' Towards the end of 1745 Alastair was captured, as we saw, while conveying a piquet of the Royal Scots to join the Prince. He pined in the Tower, he says, for twenty-two months, and was then released. His fortunes were frowning. His father lay in Edinburgh Castle, a written information having been laid against him by a number of

the gentlemen of his clan who had been out in the Rising. His lands and cattle had been destroyed and driven away by the English soldiery. Men squatted on what farm they chose, and could only pay rent enough to 'subsist' his father. The French Government made demands on him for money advanced to him while in the Tower, and stopped his pay. His grant from the Scots Fund (1,800 livres) was inadequate. The Prince could not procure for him a regiment. In these gloomy circumstances Alastair took a step which nobody can blame in itself. He attempted to reconcile himself to the English Government. The following letter is from a friend sincerely anxious for his success:—[\[127\]](#)

(State Papers, Domestic, Scotland, Bundle 38 (1747), No. 6.)

'Rotterdam, Oct. 17, 1747.

'Sir,—I take this opportunity of my worthy friend an officer of the Royals of informing you how I have had severall letters on the following Subject from Mr. Macdonell Junior of Glengary who desires me to charge you with this letter. He has frequently and seriously reflected on the many good Advices given him by you and Maj. White when he was Prisoner at the Tower, to abandon that party and the service of France. I am thorowly convinced that he is determined so to do if it is agreeable to the Ministry, and that he will give the Duke of Argyle and them all the assurances that a man of honour can give of his behaving as a peaceable Subject, if they will allow him to wait upon them in London. Let me beg of you for God's sake to persuade these great men to accept of this young Gentleman's offer, by which at once you'll detach him from that party that has given birth to all the Calamitys that both his Clan and Country has suffered this age past: as I shall be some months here before my affair is Negotiated you'll have time to send me answer, which I pray God may be favourable. Please write me as soon as you can. I am with my Compliments to your family,

'Sir, your most obedt. oblidge humble Sert.

'WILL: BAILLIE.

'P.S.—The young man depends very much on the Duke of Argyle's interest.

‘To Major Macdonald at London.’

On September 20, 1748, Glengarry wrote from Amiens, telling James that he ‘waited an opportunity of going safely to Britain,’ on his private affairs. In December he asked James to procure for him the colonelcy vacant by the death of Lochiel. Young Lochiel, a boy, had been appointed. James could do nothing, and was too poor to send money. But, on Glengarry’s request, he dispatched ‘a duplicate of your grandfather’s warrant to be a peer’—Lord Macdonnell and Aros. Glengarry often signs ‘Mackdonell,’ without Christian name. ^[128]

On June 8, 1749, Glengarry explained his circumstances to Cardinal York and to Lismore, James’s agent at Versailles. ‘I shall be obliged to leave this country, if not relieved.’ Presently he went to London, with Leslie, a priest suspected of treachery by the Jacobites. ^[129] Leslie says, ‘Glengarry did not intend to appear publicly’ in London, ‘but to have advice of some counsellors about an act of the Privy Council against his returning to Great Britain.’ He was so poor that Leslie pledged for him, to Clanranald, a watch of Mrs. Murray’s of Broughton, wife of the notorious traitor. He had already ‘sold his sword and shoe-buckles.’ This must have been the very nadir of his fortunes, and four years later Campbell of Lochnell told Mrs. Archibald Cameron that now, in 1748 or 1749—the lady could not remember which—Glengarry offered his service, ‘in any shape they thought proper,’ to the English Government and Henry Pelham. ^[130] Without pausing to discuss the value of Mrs. Cameron’s evidence (given on January 25, 1754) we return to what is actually known of Glengarry in 1749. He had left London, probably little the better for his visit. On September 23, 1749, Glengarry wrote to Lismore from Boulogne. He has been in London, by advice of his friends, ‘ces Messieurs croyant que je ne ferai point de difficulté de me conformer aux intentions du Gouvernement, mais étant toujours determine de ne me point égare[r] des principes de mes Ancêtres, ne du devoir que je dois a mon Roy je [de?] me lui tenir, je puis retire [retirais?].’ If not relieved, he must return to England. ^[131] We know what his protestations of loyalty were worth. We do not know what occurred to Glengarry, in London, at this time.

Starving in July or August 1749, Glengarry appears (according to Æneas Macdonald, the banker) to ‘have plenty of cash’ at the end of the year (December). In October his father had been released from Edinburgh

Castle, a point of no evidential importance, as several other gentlemen were also simultaneously set free. His estates were not forfeited, though remonstrances on this head were addressed to the English Government. They exist in the State Papers.

Before Æneas Macdonald met Glengarry in December, and earlier in the winter of 1749, Young Glengarry and Archy Cameron went North, and helped themselves to the Treasure of Cluny, the gold of Loch Arkaig.^[132] On January 16, 1750, Glengarry reported his journey to Edgar, and accused Archibald Cameron of taking 6,000 louis d'or, and damping all hearts in the Highlands.^[133] Cameron, on his side, appears to have accused Glengarry of obtaining the money by forging a letter from James. James, writing to Charles about Cameron's charge, leaves a blank for the name (March 17, 1750). But Æneas Macdonald supplies the name of Young Glengarry (October 12, 1751).

That Young Glengarry was concerned in the looting of the treasure in winter, 1749, is certain from his own admission to Charles, corroborated by the confession of Cameron of Glenevis to Colonel Crawford, in October 1751. In that confession appears the earliest charge of treachery against Glengarry, who, Cameron vows, must have betrayed him (p. 153). At about the same time (November 30, 1751, February 14, 1752) Holker (of Ogilvie's French Scots Regiment) and Blair anonymously warned young Edgar against Glengarry. He is a friend of Leslie, 'an arrant rogue,' and is 'known to be in great intimacy with Murray'—of Broughton, the traitor, an acquaintance which is proved by Murray's own 'Memorials,' already cited. Even if we discount Mrs. Cameron's story, with those of Archy Cameron and Glenevis, as Camerons were at feud with Macdonnells, we have no reason to suspect hostile animus in Young Edgar, Blair and Holker.^[134] They remark (February 14, 1752) that 'Mr. Macdonald of Glengarrie says that he is charged with the affaires of his Majesty,' in London.

Now, what was, in 1751 the real situation of Young Glengarry? He had left Rome in September 1750. In January 1751 he was in Paris, and wrote to Edgar, asking for money. He was confined to bed by a severe cold.^[135] At an uncertain date, probably April 1751, he was residing publicly in London, for he thence announced to Charles his approaching marriage 'with a lady of a very Honourable and loyall familie in England,' after which he will

repay his share of the Loch Arkaig gold. On this head he has satisfied James. He discloses the embezzlements of Cluny!^[136] On July 15, 1751, he wrote from London to James, and to Edgar, with political and loyal observations. Yet, in 1751, Glenevis believed, for very good reasons, that Glengarry was already an informer. If the suspicions of Glenevis were correct, Glengarry was an informer in 1751, the date assigned by Pickle to the beginning of his own service is about 1750.

Thus, in 1751, Glengarry was tolerated in London by the English Government, though still professing loyalty to James. As late as October 1754 he had not ‘qualified’ or taken the oaths. He must, therefore, have made his peace with England—otherwise! He had resigned his French commission. Moreover, while his accomplices in the Loch Arkaig affair, the Camerons, were arrested, Glengarry, the ‘unqualified,’ was allowed to go about London, and travel to France and Scotland, though the English Ministry knew that he was at least as guilty as Glenevis and Downan.

The inferences are obvious. Government had a motive for sparing Glengarry. Again, quite apart from the Pickle letters, Glengarry is assuredly betraying one or the other party. To James he poses as an active conspirator. To the English Government he poses as, at least, ‘one peaceable subject,’ for they allow him to live, and love, in London, and to go where he pleases. He was in Edinburgh in April, 1752, and dined with Bishop Forbes. Later, he seems to have gone to Lochaber, which Government knew, from an Informer.

We now come to the Elibank Plot, to kidnap the Royal Family. It flickered from November 1752 to summer, 1753. Glengarry, writing from Arras on April 5, 1753, gives Edgar, James’s secretary, a veiled account of the affair. ‘The day was fixt,’ on, or for, November 10, 1752, but the English shuffled, and did not act. ‘The concert in Novr. was,’ says Glengarry, ‘that I was to remain in London, as I had above four hundred Brave Highlanders ready at my call, and, after matters had broke out there to sett off directly for Scotland, as no raising would be made amongst the Clans without my presence.’^[137] He then alludes to ‘my leate illness at Paris,’ which has left him ‘still very weake’—a phrase used at the same time by Pickle.

Now the Pickle letters begin on November 2, 1752, and Pickle speaks of himself, to his English employers, in precisely the same terms as Glengarry uses about himself when writing to Edgar. Pickle says that, among his Jacobite friends, he explains his supplies of English money as remittances from 'Baron Kenady.' Now, in Lord Advocate Craigie's letters of 1745, ^[138] we read 'in most things Young Glengarry is advised and directed by Baron Kennedy,' a Baron of the Scottish Exchequer. Thus, if Pickle is Glengarry, he would naturally represent his chief adviser, Baron Kennedy, as the source of his supplies. He announces (Boulogne, November 2, 1752) 'you'll soon hear of a hurly burly,' and he must make a long journey, first to Paris, then South, as he writes on November 4 to Henry Pelham. ^[139] The hurly burly is the Elibank Plot. 'I will see my friend' (Henry Pelham) 'or that can happen.' To Pelham he says, 'I will lay before you *in person* all I can learn.' Pelham knew Pickle *personally*, and could not be deceived as to his identity, as to his being a Chief, as he represented himself. In December 1752 Pickle, in London, informed against Archibald Cameron and Lochgarry, whom Charles had sent to Scotland, also against Fassifern and Glenevegh (Glenevis) as agents for Charles with the Southern Jacobites. Pickle has seen Charles, and, in town, Lord Elibank, who 'surprised me to the greatest degree by telling me that all was put off for some time.' He has promised Charles 'to write nothing to Rome,' which Glengarry actually did, in April 1753. In later letters to his English employers, Pickle speaks much of a severe illness, at Paris, which 'nearly tripped up his hiells,' and left him, like Glengarry at the same date, 'very weake.' He had caught a cold, with a relapse at the masked ball of the Lundi Gras, where he met the Prince. 'They now believe Pickle could have a number of Highlanders even in London to follow him.' Nothing can be transacted in the Highlands without his knowledge, as his Clan must begin the play. ^[140] The scheme is a night attack on the Palace of St. James's. Pickle has often discussed it with his friend, the Earl Marischal, Frederick's ambassador to the French Court. ^[141]

Here, then, are the following points shared in common by Pickle and Glengarry. (1.) Both in November 1752 are engaged in a deep Jacobite Plot. (2.) Both are expected to lead a force of Highlanders, 'even in London.' (3.) No rising can take place among the Clans without each of them. (4.) Both are in correspondence with Rome. (5.) Both suffer from a severe illness at

the same time, and are left very 'weake'. (6.) Both are friends of Baron Kennedy. (7.) Both frequently visit the Earl Marischal in Paris.

That Glengarry visited the Earl in 1753 I cannot prove by independent evidence. But I can show, by independent evidence, that he, as well as (by his own statement) Pickle, did so at an approximate date. Glengarry had known the Earl since 1744. Here is another spy's undated testimony (1752-1754) to Glengarry's familiarity with the Earl Marischal in Paris, about this date, when Pickle haunts the old exile.^[142]

'Macdonald of Glengarry, goes by the first of these names, lives at a *Baigneur's* in the *Rue Guenegaud*, and keeps one Servant out of Livery, and two in Livery. When he first came to Paris he kept a *Carosse de Remise* by the month, but now only hires one occasionally to make his visits, which are chiefly to

Lord Ogilvie

Mr. Ratcliffe

Mrs. Carryl of Sussex

Mrs. Hamilton (Lord Abercorn's Cousin who has changed her Religion and lives with Mrs. Carryl)

The 3 Messrs. Hayes (who are cousins and lodge at the *Hotel de Transylvanie, Rue Conde*)

Macloud }
Fitzgerald } at Roisins, a Coffee House in the Rue Vaugirard

Lord Pittenweemys, the Earl of Kelly's Son, at the *Hotel d'Angleterre, Rue Tarrane*

Sir James Cockburn, at the *Caffe de la Paix*, in the *Rue Tarane*.

Lord Hallardy }

Mr. Gordon } at a *Baigneur's* on the Estrapade where they keep

Mr. Mercer } themselves conceal'd,

L. Cromarty }

Frequently to the Jesuits' College.

'And never fails going to Lord Marshal, whose Coach is often lent him when he has none of his own.

‘N.B.—Tuesday 9th. Janry. Macdonald waited in his own Coach from ten o’clock at night till past eleven, in the *Rue Dauphine*, when a Person took him up in a Chariot, who, by the description, is believed to be Lord Marshal. It is about that time that the Pretender’s Son is suppos’d to have been in Paris.’

Thus Glengarry undeniably frequented the old Earl Marischal, no less than Pickle did, and the English Government knew it. Yet they did not arrest him, as they arrested Glenevis, Downan, Fassifern, Archy Cameron, and tried to arrest Lochgarry, on all of whom Pickle had informed. Moreover Glengarry, in Paris, is not starving, but has a servant out of livery, and two in livery, keeps or hires a carriage, or uses that of the Earl Marischal.

I respectfully submit that these seven common notes of Pickle and of Glengarry cannot possibly be explained, except on one of two hypotheses. Either Pickle is Glengarry, or he is audaciously personating Glengarry, not only by letter, but bodily. For he promises to visit Henry Pelham ‘in person,’ and Henry Pelham, with the English officials and police, cannot but have known the aspect of Glengarry, a man who, for twenty-two months, was an important state prisoner in the Tower, and had, later, lived openly in London, though, as we shall see, under surveillance.

That point I prove thus: on August 12, 1753, Charles, in hiding at Liège, and elsewhere in the Netherlands, desired, as he notes in a draft, an interview ‘with G.’^[143] In August, or September, 1753, Pickle sent in accounts of his interview with Charles, in whose company he had travelled from Ternan to Paris. The Prince asked Pickle to allow arms to be landed on his estate, which Pickle refused, ‘nobody knowing as yet in what manner the forfeited estates would be settled.’^[144] Pickle himself is now in England.

Now we know, from a report in the State Papers, that, in 1753, the English Government received intelligence from a spy on Glengarry. ‘Mr. McDonald of Glengarry has been several times in France within these three weeks, and is suspected to be an agent for the Young Pretender, who, it is believed, has been lately in Paris, incog. N.B.—The above-mentioned Mr. McDonald lodges at the second House on the right hand side of the way in Beaufort Buildings, in the Strand, and is a young, fair, full-made man.’^[145]

Thus, just when Charles wishes to meet ‘G,’ Glengarry is coming and going from France to England, suspected by a spy to be a Jacobite agent, while Pickle is reporting to the English Government on his own simultaneous journeys and interviews with the Prince. Yet the English Government, though independently informed of Glengarry’s movements, and his familiarity with the Earl Marischal (whom they know to be intriguing for the Jacobites with Prussia), arrest Clanranald, arrest Fassifern, but never touch Glengarry!

This is not the limit of their favours. Far from incommoding Glengarry, Henry Pelham promises that Government will remit all their large claims on his estate. For this, as least, we have Glengarry’s written word, as has been shown already in ‘The Last Days of Glengarry.’^[146]

The Celtic believers in Glengarry’s innocence may explain why, when Pelham was arresting Jacobites all over Scotland, in 1753, he not only allowed Glengarry, who had not ‘qualified,’ and against whom he had copious information, to go free, but also ‘promised an absolute discharge of the heavie claims the Government has against me.’ He made similar promises to Pickle, who complains of their non-fulfilment. And, on the hypothesis of Glengarry’s guilt, his motive is now transparent. In addition to payments of ready money, sorely needed, his estates escaped forfeiture, *and he was promised remission of the fines*. These facts, of course, were unknown before I had access to Glengarry’s MS. Letter Book. My hypothesis colligates the new facts as well as the old, which is the note of a good working hypothesis.

To the seven common points between Pickle and Glengarry, in 1752-53, we now add an eighth: both have been disappointed by Henry Pelham’s promises, broken after his death. Such coincidences cannot be fortuitous, and Glengarry’s friends must explain why he, a known Jacobite agent, was so endeared to Henry Pelham.

At this time, the autumn of 1753, James Mohr Macgregor made his absurd ‘revelations,’ about an Irish plot to invade Scotland. He, his chief, Balhaldie, and a Mr. Trant, were particularly concerned. Government had also news, from Pickle, Count Kaunitz, and other sources, of Frederick’s tampering with the Jacobites, through the Earl Marischal, the friend both of Pickle and of Glengarry. It would have been natural to arrest and examine

Glengarry, who, as Government knew, was a familiar friend of the Earl Marischal. In place of doing that—they consulted Pickle! The Duke of Newcastle wrote a paper of Memoranda, proving his agitation, and making a note that Henry Pelham should colloque with ‘the person from whom he sometimes receives information.’^[147] That person was Pickle.

Here are Pickle’s answers!

(Private intelligences concerning some particular persons.)

‘He says Mr. Trent told him there was a Collection already made for the Pretender of about £40,000, and that his friends here said he should [not] want for money, tho’ it were £200,000.

‘Mr. Trent and he were very familiar formerly, but as he is here grown a great man, he does not see so much of him. Trent is not gone, but is expected to go every day. This Mr. Trent is son of Olive Trent [once mistress of the Regent d’Orléans, and complained of by Bolingbroke].

‘He does not know, nor believe, any one has come from Lord Marshal hither lately with authority. He is sure no Arms have come to Scotland this year, if there had, he must have known it. [James Mohr said arms had come.] He says Sullivan’s Brother has been twice at Rome lately, but does not know his errand.

‘Bohaldie [James Mohr’s Chief] was an Agent of the Pretender with the late Lord Temple (Sempil?), but the Irish got him turnd off, and he is sure Lord Marshal would never trust him, because he will never believe him. [James Mohr had alleged that the Earl was engaged with Balhaldie.]

‘MacGregor was a Spy of both sides, and will never be trusted.

‘When he [Macgregor] escaped to Bulloigne he was very poor, but Lord Strathallan etc took compassion upon him, and he knows the Old Pretender sent him £20.’

This report damaged poor James Mohr; he was dismissed, and, in a few months, died a destitute exile. General Stewart of Garth claims our

sympathy for James, who ‘rejected an employment which he considered dishonourable in itself, and detrimental to the good of his country.’^[148] Alas! his employers rejected James!

We now reach the crucial point of the hypothesis that Pickle *personated* Glengarry. ‘Whoever Pickle was, it was clearly his intention to personate Glengarry,’ says Mr. A. H. Millar.^[149] Now on this point, I need scarcely recapitulate what is said at the beginning of this chapter. On September 14, 1754, we find the bereaved Pickle, an orphan now, but also a Chief, by his father’s death, in Edinburgh with Young Lochgarry, who cannot but have known Young Glengarry, his Chief. For this presence of the orphan in Edinburgh, we have not only his written word, but that of Bruce (‘Cromwell’), the ‘Court Trusty’ who accompanied him. We have his testimony to Pickle’s enhanced pride. He it is who tells us how ‘the Army people make up to Pickle, thinking to make something of him,’ how General Bland (unconscious of guile) suspects *him*, as a friend of Pickle’s; how Pickle is going North, to his estates, and how the Governor of Fort Augustus, hard by, is ‘to try his hand upon Pickle.’^[150]

All this Pickle himself confirms, in two letters of one of which only the briefest analysis has hitherto been given.^[151] But these dull confirmatory letters may be relegated to an appendix. Briefly, we learn from his letters how Pickle has hurried to Edinburgh, for some reason of his own, on the news of a death which coincides with that of Old Glengarry. Coincidentally, too, Pickle’s family affairs are in great disorder. He writes again from Edinburgh (October 10, 1754), and this letter is in his feigned hand.^[152] In his second epistle from Edinburgh Pickle confirms all that Bruce, the Court Trusty, has said about his approaching journey North, whence Colonel Trapaud, Governor of Fort Augustus, gives a bad account of Glengarry as swindling his wadsetters.^[153] Pickle also confirms Bruce’s account of the jealousy of General Bland.

That Young Glengarry, as well as Pickle, was a week’s distance from town after his father’s death (September 1, 1754) I now confirm by the following letter to himself, where he is supposed to be interested in Old Lochgarry. It is probably from the Major Macdonald who, while he was a prisoner in 1747, persuaded him to conform to the English Government.

‘London: Sept. 12, 1754.

‘My dear Cuss,—I have duely received the Honour of yours of 3d current. I must own that the melancholly news [Old Glengarry’s death] gave me an inexpressible shock, the only thing that abates my greife is that my dear late friend is so well represented in your dear person. I pray that all the powers above may combine to make you shine even above your noble Ancestors. I hope that Hevon will long preserve and prosper you for the protection of a poor name that seems at present in a very tottering and abject condition; No doubt this accident will naturally retard your coming to this place [London] yet I can’t think otherwise than that your interest calls you hither has soon you may have settled your domestique concerns.

‘I have a line from Samer [probably St. Omer] by which I understand that the whole Coy [Corps?] seem’d determined to get ride of Loch[garry] at all events surely he’s a most incorrigible man, and if a certain person [the Prince] does not interpose he must fall a sacrafice to his enemies’ resentment and to his own folly. Mrs. Macdonald and the young folks join in compliments, our friendes of Crevan street salute you, and I ever am, My dear Cous,

‘Yours whilst J. M.

‘London: Sept. 12, 1754.

‘I did not receive your note dated wednesday till Thursday 12 o’clock.’^[154]

Thus, all Pickle’s movements at this solemn hour of Old Glengarry’s decease tally with those of Young Glengarry. Pickle is adulated by the army people, and goes North to his estates near Fort Augustus, whence the Governor reports on—Glengarry.

Can Pickle, then, while Glengarry is in Scotland, after his father’s death, be posing in Edinburgh as himself a young, newly orphaned chief, going to his lands near Fort Augustus; personating Glengarry, in fact—for no other Chief had just lost his father?

Mr. Millar says: ‘Whoever Pickle was, it was clearly his intention to personate Glengarry.... It is hardly possible to imagine that an impostor

could have deceived the Edinburgh folks, to whom Glengarry must have been well known,' and whom, hurrying to his father's funeral, and to arrange his affairs, he must just have visited, for Old Glengarry died in Edinburgh. I venture to call such an impersonation a physical impossibility, prolonged, as it was, for some six weeks. It is *physically impossible* that, both in London and Edinburgh, many men who knew Young Glengarry should have supposed another person—Pickle—to be that hero. Yet, if the personation was played off, it was not discovered, then or later; for Pickle continued to be the informer, and to be the shadow of Glengarry. As soon as it is admitted that Pickle is feigning to be Glengarry, the case for that Chief's innocence is given up. The personation, among people who knew Glengarry intimately well, is *impossible*.

Pickle's day of usefulness had gone by. On April 24, 1755, an official gave in a report of a conversation with the Chief, 'the head of a great Clan of his name,' who wanted money.^[155] In April 1756 Pickle again came to London, and dunned the Duke of Newcastle: 'not the smalest article has been perform'd, of what was expected and at first promised. I am certain my first friend' (Pelham) 'mentioned me to the King....'^[156] In an undated letter he speaks of being on an 'utstation' in the Highlands, and talks of Glengarry in the third person.^[157] He tells of Glengarry's greatness, of Jacobite overtures to him, and repeats his usual fond demands.

In 1758, 1759, we know, from his own letters, that Glengarry was eager to go to London, to make terms about the fines on his estate. But Macleod would not back his bill for 400*l*. On February 19, 1760, Pickle wrote the last letter to Newcastle extant in the Pelham Papers. He speaks of Pickle in the third person, but he writes in Pickle's hand. Pickle wants to give information; Pickle wishes to raise a regiment (and so did Glengarry), if he gets 'the Rank of full Colonel, the nomenation of his Officers, and suitable levie money:' also 'a bill payable at sight' for travelling expenses. He ends, 'Mack mention of *Pickle*. His Majesty will remember Mr. Pelham did, upon former affairs of great consequence. Direction—*To Alexander Mackdonell of Glengary, by Foraugustus*.'^[158]

A reply from Newcastle directed to Glengarry would be opened by Glengarry, and then, if Glengarry did not write Pickle's epistle of February 19, 1760, where is Pickle? Mr. Millar suggests that, 'if Pickle were a traitor

in Glengarry's family, he must have been in a position to intercept the reply to this letter, or the whole plot would have been exposed.' This is a romantic hypothesis. There is no trace of any gentleman (such as Pickle was) eternally in attendance on Glengarry. And why did the hypothetical traitor offer to raise a regiment, which only Glengarry could do? There is no conceivable motive for writing such a letter on the part of any one but Glengarry, who was terribly pressed for money, and could raise a regiment. Besides, the physical impossibility of Pickle's supposed personation has already been demonstrated. Glengarry, who had long been in very bad health, died on December 23, 1761. The nature of his will has been explained.

The internal evidence of identity in the authorship of Pickle's and Glengarry's letters remains to be considered. Both write the same shambling style. In an age of bad spelling both have a long list of blunders in common. I give a few:—

1.	aquent	acquaint.
2.	estime	esteem.
3.	tow	two.
4.	dow	do.
5.	sow	so.
6.	triffle	trifle.
7.	{ jant }	jaunt.
	{ chant }	
8.	{ utquarters }	out quarters.
	{ utstation }	out station.
9.	pick	pique.
10.	{ Foraugustus }	Fort Augustus.
	{ forAugustus }	
11.	how	who.
12.	lick	like.
13.	supplay	supply.
14.	relay	rely.
15.	puish	push.

Of these, 1, 2, 3, 4, 5, 6, 12, 13, 14 occur, sporadically, in other Scotch writers of the age, as in the Gask Correspondence. Pickle combines them all. But I have not elsewhere met 7, 8, 9, 10, 15. 'How' for 'who' (11) I have met in Macleod of Raasay's letters in the 'Lyon in Mourning,' and in one letter of 1725, while 'howse' for 'whose' occurs in a Scotch epistle in the Cumberland MSS. The *accumulation* of these fifteen mis-spellings is the common note of the orthography of Pickle and of Glengarry. It constitutes a note of identity of authorship.

But, believers in personation may say, 'Pickle had carefully studied and adroitly copied Glengarry's orthography, as, *ex hypothesi*, he wished to pass for that Chief.'

Then why did he not also imitate Glengarry's handwriting?

Glengarry wrote two hands; one is a sprawling scrawl, sloped much to the right, in his rough drafts of letters, preserved in his Letter Book; the other is merely the same hand written smaller, closer, not so sloped, in his letters, for example, to James and Edgar. The Windsor Letters, the neater and more careful, I could not compare with those of Pickle at the British Museum. But I took Glengarry's Letter Book, or folio of scrawled drafts, thither, and Mr. Millar (author of the criticism in the *Scottish Review*) kindly compared the two sets of documents, he having much experience in such studies. I append what is essential in his report, contributed to the *Dundee Advertiser* of April 28, 1897.

'Mr. Lang has come into possession of much new evidence upon the subject. Amongst other documents he has the Letter-book in which Glengarry frequently copied his letters with his own hand and signed them. This book comes from an unchallengeable source. By Mr. Lang's invitation I had to-day the pleasure of comparing the handwriting of Glengarry in this book with the Pickle letters in the British Museum. At the first glance one would say that the manuscripts are so unlike superficially that they were not both written by the same person. Glengarry wrote a wide, sprawling hand, with a very distinct slope towards the right. The Pickle letters are all written in the vertical style, and the lines are small and neat. When examined more closely, however, there is a striking similarity

in the details. Having selected Pickle letters that contained similar words to those in the Letter-book, I have made a careful comparison of them minutely. It is beyond question that whoever Pickle was he wrote in a feigned handwriting to prevent identification should any letter miscarry. If Glengarry wished to feign another hand than his own, the most obvious way of effecting his purpose would be to change the sloping style into the upright style. When Pickle wished to disguise his hand he used the upright style. There are several letters which Glengarry wrote in a very peculiar manner. The capital letter "T," for instance, was distinctly Glengarrian. But the capital "T" written repeatedly by Pickle is absolutely identical with that used in the Glengarry book. Such words as "most," "humble," "Sir," "I," and "Tho'" are precisely the same in form in both cases, the only difference being the change of the slope. There is only one curious fact which comes out after careful examination. When Glengarry is writing adjectives that begin with the letter "d" he generally uses a capital. Pickle never does this, but uses the small "d" instead, yet that small "d" is exactly similar in form to the same letter written by Glengarry. This is certainly minute criticism, and might not be sufficient alone to establish the case against Glengarry; but when the other fact is borne in mind, that Pickle and Glengarry make the same errors in the spelling of uncommon words, the confirmatory proof is very strong. It is not likely that any letter exists in which Glengarry fully acknowledges his treachery, and the main evidence must therefore be circumstantial. If Mr. Lang had now to begin writing his book with all the additional evidence before him which he has obtained since its publication, he would probably find few who would dissent from his conclusion that Pickle the Spy was no other than Alastair Macdonnell of Glengarry. There may be coincidences in events in the lives of two men; but it is incredible that Pickle, when disguising his handwriting, should fall into the same formation of many of the letters which was peculiar to Macdonnell of Glengarry. Though begun upon a mere surmise by Mr. Lang, extended research seems to confirm his notion as to the identity of these two personages. It is not a pleasant conclusion for any one who believes that all the Highlanders engaged in the Rising of 1745 were indomitable and patriotic

heroes. There were blacklegs in the army of Prince Charles Edward, as there are in every movement of the kind; but there were also noble characters prepared to shed their blood and sacrifice their prospects in support of what they believed to be the rightful cause. Glengarry, apparently, must now take his place among the execrated traitors.—I am, &c.

‘A. H. MILLAR.

‘London: April 26, 1897.’

I am no expert in handwriting, and I offer no opinion, except that Pickle’s confessedly feigned hand is more like Glengarry’s careful hand, in the Stuart Papers, than like his sloping scrawl, meant only for his own eyes (and these nearly blind) in his Letter Book. The Duke of Atholl has compared letters from Glengarry, in his possession, with those of Pickle, and has arrived at the same conclusion as Mr. Millar. Pickle’s hand is Glengarry’s, disguised.

Such is my chain of evidence towards proving the personal identity of Pickle and Glengarry. Both men, it is hardly worth while to add, had been officers in French service. I am aware of not one discrepant feature to discredit the identity which Pickle practically asserts, when he declares himself (corroborated by Bruce) to have become, by his father’s death, Chief of the Macdonnells, just when Old Glengarry died, and Young Glengarry succeeded to the headship of the clan. To sum up the whole case:

Young Glengarry’s conduct, as far as we know, is stainless, till, after endeavouring to ‘conform’ in October 1747, he presently poses as a religiously faithful subject, or devotee, of James in January 1748. He is starving in London, which he visits in July 1749, his father being soon after released from Edinburgh Castle. Young Glengarry, in the winter of 1749, visits Cluny at Dalwhinnie, in company with Glenevis, Lochgarry, and Angus MacIan. Glengarry obtains, by his own admission, a share of the treasure, and then formally charges Archy Cameron with looting 6,000 *louis d’or*. Archy accuses him of forgery; they carry their quarrel before James in Rome. Early in 1751 Glengarry, though he is not known to have taken the oaths, is allowed to reside in London, and announces his approaching marriage with an English lady. But Glengarry is already suspected, and he

knows it; for when Leslie, the priest, is charged with treason by the Jacobites, Glengarry says that the blow is aimed at *him*. Nothing is proved against Leslie, but stories of Glengarry's intimacy with Murray the traitor, and the spy Samuel Cameron, called Crookshanks, are anonymously brought by Blair and Holker. In October 1751 Samuel's brother, Glenevis and Downan, arrested for their share with Glengarry in the matter of the French gold, accuse Glengarry of informing against them. They lie in gaol in Fort William; Glengarry (though the Government know him to be their accomplice) lives freely in London, and travels where he pleases.

In November 1752, April 1753, we have the affair of the Elibank Plot. On one side is Pickle, who is to lead Highlanders in London; Pickle, without whom his clan, and the North, can do nothing; Pickle, a friend of Prince Charles, and a correspondent of the exiled King in Rome; Pickle, who is 'very weake' after a serious illness in Paris (February-March, 1753); Pickle, the constant associate of the Earl Marischal; and on the other side is Glengarry, who claims every one of these notes for himself. Both Pickle and Glengarry are friends of Baron Kennedy's. Glengarry is known to Government to be a trafficker with France, and with the dreaded envoy of Prussia, the Earl Marischal, but Government consults Pickle in place of arresting Glengarry. Pickle has had great promises made to him by his employer, Henry Pelham, so has Glengarry. Both complain of the breach of these promises after Pelham's death. Pickle comes and goes to Prince Charles in France in August 1753. Glengarry is accused, to Government, of visiting France at the same time as a Jacobite agent. Jacobites are being arrested all over the country, but not a finger is laid on Glengarry.

Pickle and Glengarry both leave London for Edinburgh on the news of Old Glengarry's death, both are then bereaved young chiefs going to their northern estates near Fort Augustus. In this capacity Pickle, for some six weeks, is the centre of military attention in Edinburgh. Pickle wishes Bruce to assist him in drawing up a judicial rent-roll. Bruce surveys the lands of Glengarry. Pickle now, like Glengarry, remains in the North, where both are magnates, but both are poor. Pickle offers to raise a Highland regiment, and asks the Duke of Newcastle to direct his answer to Glengarry. The spelling of Pickle and Glengarry is identical in a score of peculiarities, and Pickle's handwriting is that of Glengarry in a simple disguise.

What makes Pickle's design to raise a regiment especially interesting is the fact, now to be proved, that *Glengarry entertained the same wish at the same moment*. He wrote to the Duke of Atholl to that effect, on April 5, 1760, and his letters are printed in the Duke of Atholl's 'Chronicles of the Atholl and Tullibardine Families' (iii. 476-477). Thus Pickle and Glengarry were inseparable to the last.

Whoever is unconvinced by this array of circumstantial evidence against Glengarry must, at least, suggest an alternative hypothesis which will colligate the facts. The hypothesis of a personation of Glengarry by Pickle has been proved absurd and impossible. Recent research, after the publication of 'Pickle the Spy,' has added to the original evidence proof of Glengarry's insincerity as a Jacobite; the Glenevis affair; the promises made to Glengarry, as to Pickle, by Henry Pelham; the identification of 'Cromwell' (Bruce); the relations of Glengarry with Pickle's friend, Baron Kennedy; a few new similarities of Pickle-Glengarry spelling; the identity of their handwriting; and their simultaneous desire to raise a regiment. All these facts confirm the previous conclusion. A false hypothesis is not apt to be strongly confirmed by facts unknown when it was framed, nor would a jury regard the charge against Glengarry as 'without any proof in the world.' To say so, as has been audaciously done, is to illustrate prejudice, not to enlighten criticism. In truth, the game was up as soon as the person calling himself Pickle offered to raise a clan regiment, and asked the Duke of Newcastle to reply to Glengarry. More than one interpretation of that fact there could not logically be. But what is logic? A Lowland pedantry!

XII

OLD TIMES AND NEW

Some years ago, when fishing in Loch Awe, I found a boatman, out of Badenoch, who was a charming companion. It may be the experience of others also that an English keeper usually confines his conversation, at least with strangers, to the business in hand, whereas a Scottish or Highland attendant will talk about Darwinism, Mr. Herbert Spencer, history, legend, psychical research, religion, everything. The boatman had a store of legends, and one day we fell to conversing on the old times, in the Highlands, and the new. He voted for the old. Among the advantages, he mentioned the game; and then, with sparkling eyes, the plunder! Property, of old, had been *les vaches d'autrui*, the cattle of Lowlanders and of other clans.

Often, since that day, one has reflected on the old times and the new. The old were not wholly what is supposed. Thus Mr. Mackenzie, in his 'History of the Camerons,' contrasts the manly sport of the past with the modern driving up of deer to be shot down by 'drawing-room' gunners. Stalking is more common now, but the drawing-room way was the old way! 'The tenants drive everything before them, while the laird and his friends are waiting with their guns to shoot the deer.' So writes Burt, between 1726 and 1740. 'When the chief would have a deer only for his household,' he does not stalk it himself; 'the gamekeeper and one or two others are sent into the hills, ... where they often lie night after night to wait an opportunity of providing venison for the family.'^[159]

I have seen in the Highlands heart-breaking destitution. I have seen an old shivering woman gathering nettles for food near Tobermory. On one side of a river I have seen scantily clad girls hanging about listless, in the rain, beside hovels more like the nests of birds than human habitations. On the other side of the water were comfortable cottages and thriving crops. The former was the Protestant, the latter the Catholic side of the stream, which the Reformation did not cross. In the bleak cold of June, on Haladale, I have said, 'Who would stay here that could go away?' The gillie observed

that he had been in America, running the blockade, but he vastly preferred Haladale. He numbered his horses and kine; he was a man of substance. But, poverty for poverty, give me nettles and shell-fish in the North, before fried fish (and too little of that) in the New Cut.

Moved by the extreme wretchedness in which some Highland cotters seem to live, by the cry of 'congested districts,' by the laments of the evicted, and by the belief in 'good old times' behind the Forty-five, a Lowland observer naturally asks himself if the old times were really so good? In one respect, and that essential, they bear the palm: the people, as a rule, loved and revered their Chiefs, and the Chiefs adopted at least the airs of popularity among the people. Even Young Glengarry, not a model Chief, resented the oppression of tenants falsely accused, as he maintained, of being deserters.^[160] Moreover, the poor did not live, generally speaking, in view of the luxurious rich. Clanranald and Glengarry had castles which must have been built at the expense of the undefined 'services' of their people long ago; but the warrior Glengarry of Killiecrankie discouraged refinement and delicacy of living. The smaller lairds lived plainly, even poorly. Occasional feasts were given to the Clan. Every man 'was treated as a blood relation.' Consequently, if destitution existed, it did not provoke social hatred and discontent. This, at least, is quite certain.

On the other hand, the presence of extreme poverty, of famines, by no means rare, of exactions which Lowlanders considered tyrannical, and the occurrence of evictions, before 1745, seem equally well established. Ignorance was one safeguard against discontent, and in the absence of schools, in the rarity of the Presbyterian clergy, with their innate democratic ideas, ignorance flourished. Over-population was encouraged, by minute subdivision of lands, for the purpose of increasing the Chief's military following. Thus poverty was artificially fostered, and, with it, idleness and habits of plunder and of tippling.

This little picture of a Highland home is given in a book of 1747:^[161] 'I have seen in their Huts, when I have been walking, and forced to retreat thither for Shelter from the Rain, their Children, sometimes many in a Hut, full of the Small Pox and [at?] their Heighth, they having been lying and walking about in the Wet and Dirt, the Rain at the same time beating through the Thatch with Violence; so that I used to get from one End of the House to the other to keep dry; but it was all in vain, the Rain soon

following me. These children at the same time seemed hearty, drinking Whey and Butter-milk, Wet and Cold with the Inclemency of the weather, and yet so well!’

This sketch was drawn somewhere in the country between Inverness and Fort William, after Culloden.

The raising of the early Highland regiments (1756-62) relieved the population, but also diffused knowledge, while the Chiefs’ power, as sanctioned by law, was destroyed. The soldiers, who had seen the New World, whether gentry and officers or privates, did not incline to stay at home when rents were raised. They emigrated to America, almost by clans, in years of famine, as in 1782. The Chiefs were alarmed and indignant; they were also needy. They screwed up rents, introduced sheep, moved populations to the coast, or evicted them. Voluntary emigration (the wisest policy) was succeeded by the removal of clansmen who were reluctant to go, or who could not afford to go, their poor goods not being marketable. Many even sold themselves into voluntary slavery for their passage fare.

Some chiefs became opulent for a generation; their families were ruined by their following of George, Prince Regent; their estates fell into English hands, and forests were made at the expense of new evictions.

This is a brief and gloomy account of what followed Culloden. An example may be given in the case of the great Glengarry family.

On the death of Glengarry, in 1761, his affairs were found, as was natural, in a lamentable condition. To study them and the later changes on his estate is to gain a view into the heart of Highland grievances. Fortunately materials for this examination exist, and have been published by Mr. Fraser Mackintosh in his ‘Antiquarian Notes’ (1897).

Perhaps it may be best to begin by giving a brief account of the way in which such estates as Glengarry’s were usually occupied by the clansmen. The Chief let to tacksmen, or leaseholders, gentlemen of his clan, part of the lands which he did not hold in his own hand. Part of his ‘tack,’ again, the tacksman cultivated; part he let out to cotters, ‘under which general term may be included various local denominations of *crofters*, mailers, &c.... Frequently they have the command only of a small share of their own time to cultivate the land allowed them for maintaining their families. Sometimes

the Tacksman allows a portion of his own tillage field for his cotter; sometimes a small separate croft is laid off for him, and he is likewise allowed, in general, to pasture a cow, or perhaps two.’^[162]

‘The Tacks,’ says Dr. Johnson, ‘were long considered as hereditary,’ but, in his time, strangers would make larger offers, and the hereditary tacksman was apt to be dispossessed, with cotters, crofters, and all. As to the tyrannical and oppressive conduct of the tacksmen, much will be reported later. According to Young Barisdale’s plea (1754), Old Barisdale held possession, from Glengarry, without a line of written paper. The tacksmen, in war, were officers of the Clan regiment, and led, or drove, the tenants to the field.

Apart from tacksmen and their cotters, were ‘small tenants’ holding direct from the Chief. They usually occupied, in townships, a farm in common: the shares may once have been equal, but, by 1738, one man might hold a fourth, another but a fifteenth. They dwelt in a hamlet near the arable crofts, of which the division might vary from year to year. They had also grazing, and, money being very scarce, their chief wealth was their cattle. Interest and part principal of his patrimony were paid, in cattle, to Glengarry’s younger brother Æneas.^[163] Cotters, who acted as labourers, were scattered among the little communities of small tenants. Rents were mostly paid in kind, and in ‘services,’ little money passed.

Another system was that of ‘wadsets.’ A chief simply *pawned* a farm to a clansman, say Glengarry to Lochgarry, for a certain period, and for a certain sum of money. When he repaid the money, he recovered the farm. The wadsetter might build and improve, but no money was returned on redemption. The wadsetter sublet to tenants of either class, and either he or the Chief might make the better thing of the bargain. There were many poor wadsetters on a small scale. Colonel Trapaud accuses Glengarry of bullying his small wadsetters in Knoydart out of their wadsetts, and making them ‘accept of common interest.’^[164] ‘The principal wadsetters refused, on which he ordered them out of his presence.’

Such was the system of a Highland estate; of its working more will be said later. On Glengarry’s death, his heir was his nephew, Duncan, a minor: Glengarry and the boy’s mother had been on the worst terms. In actual money, Glengarry’s rents, at the day of his death, were but 330*l.* yearly. The

rent 'uplifted' by his wadsetters was larger. There were heavy debts, both on the estate and personal: the amount of the claims of Government I have nowhere found stated. Trustees ruled for the heir, who, however, must have been of age when Morar was sold to the Master of Lovat (Simon of the Forty-five) in 1768. This cleared the personal debts. In 1772, the new Glengarry wedded Miss Marjory Grant, eldest daughter of Sir Ludovick Grant of Dalvey. Mr. Fraser Mackintosh says that 'regardless of sufferings, she strove with success to clear off the debts, to raise the rents, and generally to aggrandise the position of the Glengarry family.'

The wadsetts were paid off: the wadsetters must now be tenants, on increased rents, or go. Most of them emigrated to the New England States. Bad years came: the small tenants fell into arrears. In 1782, a year of famine, arrived the first sheep farmer from the Border. In 1785, fifty-five tenants were warned and removed, 'say 300 souls.' In 1786, 500 people emigrated under their priest, a Macdonnell of the Scothouse or Scotos family. They settled in Canada. They had fled from famine, as much as from increased rents.

Duncan Macdonnell died in 1788; his son was Sir Walter Scott's Glengarry, 'the last of the Chiefs,' in costume and demeanour, but, it seems, a great evictor. The French war made Highland recruits desirable, and emigration slackened, but there was an exodus in 1802, the settlers peopling Glengarry County in Ontario; sentiment apart, a very happy change.

We have seen Alastair's free rent in 1761; it was 330*l.* in money. In 1802 the rental was 5,090*l.*! The eccentric history of Scott's friend, Glengarry (for whom he wrote a Death Song) is well known. He was accidentally killed in 1828, and Glengarry was sold some years later. It has changed hands twice, since the first sale, and, says Mr. Fraser Mackintosh, 'It is a fact not less painful than preposterous that at the present day (1894), some dozen crofters (all remaining) cannot get sufficient land out of the tens of thousands of acres at Knoydart, to maintain them, without the intervention of the Crofters Commission.'^[165] Yet in 1753, Lochgarry, perhaps in a sanguine way, reckoned the Macdonald claymores, 'by Young Glengarry's concurrence only,' at 2,600.^[166]

This is a typical specimen of the fortunes of a large Highland estate, compromised in the Rising of 1745. There are, of course, happier examples;

but, in this instance, we see every stage of the revolutionary changes in the condition of the Highland people.

Now an Englishman, or a Lowlander, asks himself, did the good old times contain the germs of these social maladies, exhibiting themselves in other forms, under other conditions? To this conclusion we appear to be forced by the evidence. If Chiefs were callous and selfish after the Forty-five, if the land could not, or did not, support the people properly after Culloden, these misfortunes, moral and material, existed before the starving and ill-arrayed clansmen died on the English bayonets. There had been no reason to expect better treatment than the Clans have actually received, from several of the powerful families. Extreme destitution had prevailed; evictions had occurred, and had sometimes been bitterly avenged. There had been 'Agrarian outrages' before Culloden, attacks on men, and mutilation of cattle.

Our evidence, as to the state of the Highlands, comes from various sources. We have Lowland, English, and Anglified witnesses. The Duke of Argyll cites a Highlander, Forbes of Culloden, but he was a Whig, and President of the Court of Session. Yet there was no juster, more fair, or more wise and tolerant man in the North. We have Captain Burt, author of 'Letters from Scotland,' written between the Rebellions of 1715 and 1745. Some modern Highlanders call him their foe: he certainly looks with English eyes, but he tries to be fair, and is far from unsympathetic. His tenderness for the poor is remarkable. We have the Gartmore MSS. (*circ.* 1748), which is Whiggish, and 'MS. 104,' in the King's Library. It is, apparently, of 1749-50. All these witnesses agree as to the oppression of the people, their involuntary idleness, their dependence on tacksmen, chamberlains and factors, their destitution, while their liability to raised rents and evictions are, by some of these witnesses, insisted upon. But all are writing from the Whig point of view; their desire to improve the popular condition is part of their desire to reduce the power of the Jacobite Chiefs.

On the other side is General Stewart of Garth, enthusiastically Highland, anxious to keep up population for military purposes, as well as from honourable sympathy, and decidedly inclined to overlook the poverty, plundering, enforced idleness, tippling, and blackmail of the good old times. We have also Mr. Fraser Mackintosh, who, while he delights to tell a story against Cluny, for example, maintains that there were no evictions

before 1745. Unluckily, we have no authoritative treatise from the Jacobite and ‘old times’ side, written between 1747 and 1790. The best evidence might be found in Gaelic poetry, which, in general, proves one important point.

Whatever the material condition of the Highland people, whatever their lack, in many parishes, of elementary education, they possessed, in legends, *Märchen*, traditional poems, and the living art of popular song, a native culture—rich, dignified, and imaginative—which newspapers merely destroy. This great element of happiness, where it survives, is the bequest of the good old times.

Such is our evidence; and now, having described its nature, we may turn to the details.

A considerable portion of the people were terribly destitute. We have heard what the biographer of Young Barisdale says, about a diet of shell-fish from March to August, about the faces that never wear a smile. Franck, writing in 1654-1660, tells us how, when Monk held Scotland, the Strathnaver crofters bled their cows in winter, and fed on blood mixed with oatmeal.^[167] Burt and Knox testify to the same practice, a century later and more. ‘This immoderate bleeding reduces the cattle to so low a plight that in the morning they cannot rise from the ground, and several of the inhabitants join together to help up each other’s cows.’^[168] ‘The gentry may be said to be a handsome people, but the commonalty much otherwise; one would hardly think, by their faces, they were of the same species, or, at least, of the same country, which plainly proceeds from their bad food....’^[169]

The old times were not so good; the peasants, who protected and concealed him, could not give Lord Pitsligo salt to his porridge: ‘Salt is dear.’ But people who have seen nothing better are not discontented. The gentry—not chiefs, but tacksmen—as we have said, did not live luxuriously. Examples may be given. ‘Although they have been attended at dinner by five or six servants, they have often dined upon oat-meal varied several ways, pickled herrings, or other such cheap and indifferent diet.... Their houses are *sometimes* built with stone and lime’ (like Barisdale’s palace), but other houses of the gentry ‘are built in the manner of the huts.’ Burt mentions one such house, with beasts dwelling under the roof of the

owner, or tacksman. For many years Old Glengarry dwelt in a hut, his castle being occupied by an English commercial gentleman. The laird's children were 'dirty and half naked'—this is on hearsay—and it was a common proverb that 'a gentleman's bairns are known by their speaking English.' Glengarry's niece, daughter of Æneas, shot at Falkirk, 'had no English,' when she could not have been under thirteen years of age. ^[170]

Thus there was no very great gulf, in some cases, between gentry and peasantry, where comfort was concerned. The difference of appearance between them, as between beings 'of a different species,' is the less intelligible. But herrings and game are more nutritious than nettles, cows' blood, and shell-fish, especially where all are scarce.

As to rents, payments to chief or tacksman, how did things fare? Conservatives, like Dr. Johnson and Sir Walter Scott, have written about the chiefs 'degenerating from patriarchal rulers to rapacious landlords.' The Duke of Argyll, on the contrary, speaks of the sub-tenants, in the good old times, as 'holding at the will of the lease-holders or tacksmen, and complaining bitterly of the oppressions under which they laboured.' This is on the evidence of Sheriff Campbell of Stonefield, speaking of Mull, Morven, and Tyree, in 1732. ^[171] 'It was only beginning to be felt these poor people that even a bare subsistence could not be secured when plunder had been stopped, and before industry had begun.' What were the 'oppressions,' not including, of course, such exceptional outrages as those of Barisdale? Well, Burt tells us that a tenant's improvements, in 1730-1740, meant an instant rise of rent. 'What would the tenant be the gainer of it' (enclosures and improvements on his farm), 'but to have his rent raised, or his farm divided with some other?' ^[172] The division would serve to recruit another swordsman for the Chief. The writer of a MS. of 1747, in the possession of Graham of Gartmore, ^[173] says, 'The practice of letting many farms to one man' (the tacksman, say Lochgarry or Barisdale), 'who, again subsetts them to a much greater number than these can maintain, and at a much higher rent than they can afford to pay, obliges these poor people to purchase their rents and expences by thefts and robberys.' ^[174]

In the good old days, something like the iniquitous Truck System existed, we learn from the same authority, on some Highland estates. 'Some of the substantial Tacksmen play the merchant, and supply the common people....

As the poor ignorant people have neither knowledge of the value of their purchase, nor money to pay for it, they deliver to these dealers (the tacksmen) 'cattle in the beginning of May for what they have received; by which traffick the poor wretched people are cheated out of their effects for one half of their value.' This is a mournful aspect of the good old times. The MS. 104 confirms the statements, and describes the thriftless agricultural methods.

Each of these (the tacksmen) 'possesses some very poor people under him, perhaps five or six on a farm, to whom he lets out the skirts of his possession, these people are generally the soberest and honestest of the whole. Their food all summer is milk and whey mixed together without any bread, the little butter or cheese they are able to make is reserved for winter provision, they sleep away the greatest part of the summer, and when the little Barley they sow becomes ripe, the women pull it as they do flax, and dry it on a large wicker machine over the fire. Then burn the straw, and grind the corn upon Quearns or hand mills. In the end of Harvest, and During the winter they have some Flesh, Butter, and cheese, with great scarcity of Bread. All their business is to take care of the few Cattle they have. In spring, which is their only season in which they work, their whole food is bread and gruel without so much as salt to season it.

'About twenty years ago Lochiel erected two or three Water Mills, but by reason of the great distance of many of the people from them, and their natural Laziness, with the prejudice in favour of the old Custom of burning the straw, they were made very little use of. The custom has been given up some time except by the Camerons and Macdonalds, some McLeans, and some of the people of Skye.'

It is not safe, of course, to argue from a report about the state of the people in one part of the Highlands to a conclusion about their condition everywhere. A river may divide comfort from destitution. And it is certain that reports by Lowlanders, Englishmen, or Highlanders, like the famous Forbes of Culloden, who practically defeated the Rising of 1745, will not please some Highland reasoners. [\[175\]](#)

Forbes reported in 1737 on the Duke of Argyll's lands in Morven, Mull, and Tyree. He speaks of the 'tyranny' and 'unmerciful exactions' of the tacksmen, large leaseholders who sub-let to smaller tenants. Hence the

lands lie waste, and ‘above one hundred families have been reduced to beggary and driven out of the island.’ This is precisely the modern complaint against the bad new times, a complaint with which we all sympathise. Tacksmen, according to Culloden, were as bad as factors.

Culloden, therefore, suggested the granting to the sub-tenants of nineteen years’ leases if they would ‘offer frankly for their farms such rent as fairly and honestly they could bear.’ Such leases he had power to offer, and did offer. ‘No takers!’ Culloden was surprised, but he need not have been. The weight of the tacksmen would be against him; also the conservatism of the people. A fixed rent was a new crude hard thing: a system of shuffling along, above all as the general policy was to find room for swordsmen—was an old endurable thing. Culloden, however, persuaded some sub-tenants to offer. On the tacksmen he put pressure. He had with him some tacksmen from the mainland, better acquainted with farming methods. *They* offered for the insular tacksmen’s farms, whereon the insular tacksmen also offered. Fixed now were rents, and fixed the duration of tenancy.

One Culloden lease to a kind of village community of six people in portions of land of different sizes is dated April 18, 1739, from Stoney Hill. [\[176\]](#) The lease of 1739 is for nineteen years, ‘and that in full satisfaction of all casualtyes, and other prestations and services whatsoever,’ except for services in repairing harbours, mending highways, or repairing miln-leads, for the general benefite of the Island (Mull). The tenants were to pay cesses, ministers’ stipends, schoolmasters’ salaries, &c., ‘freeing and relieving the Duke’ from these burdens. Failure of rent meant removal, and made the lease null and void; the tenants having leave, however, to take over the share of a defaulter or choose a substitute for him.

What the sub-tenants gain is freedom from a tacksmen, secure possession while they pay, and freedom from all but the stated customary services and ‘casualties.’ One of these was military service in a Jacobite rising. A tenant in Mull could not now lose his holding if his tacksmen ordered him to join the Prince and he refused. As to the other ‘services,’ the Duke of Argyll regards them as indefinite and oppressive. He selects examples from Sinclair’s paper for the Board of Agriculture in 1795. Rent was mainly paid in kind, chickens, cattle, grain, *plus* ‘tilling, dunging, sowing, and harrowing a part of an extensive farm in the proprietor’s’ (or tacksmen’s) ‘possession.’ Peats, thatching, weeding, cartage, harvesting, and so forth,

were exacted, with implements, eggs, butter, cheese, a tithe of fish and oil, woollen yarn, and so forth. These services might easily be made oppressive, and did not conduce to improvement in agriculture.

The exact weight and money value of these services must have varied widely. The author of MS. 104 proposes that, in future, all services shall be definitely stated in writing when a tenant takes a farm. 'Extravagant services are still required' (*circ.* 1750) 'and performed, which the landlord would be ashamed to commit to writing.' He also, like Culloden, advocates the compulsory granting of leases for not less than twenty years. But he has already said that the people, accustomed to hereditary entry on farms from father to son, refuse to take written leases.

As to 'services,' Mr. Fraser Mackintosh, on the other side, tells us how the Lochiels, in exile, 'regularly received part of the rent.' That he only sent 100*l.* to Lochiel's children in France, and made the tenants work on his lands instead of on the county roads, is a charge made by Colonel Crawford against Lochiel's brother, Fassifern.^[177] Mr. Fraser Mackintosh comments on the loyalty of Lochiel's tenants, but adds 'in former times rent in the form of money was a minor easy consideration, the real burden or tax being services'—especially 'the almost intolerable burden' of war. Thus the exile of the Chief became 'really no hardship to the people,' enabling them 'to pay a double (money) rent now and then with comparative ease.'^[178]

Thus, in this author's opinion, 'the real burden or tax' was 'services,' not money rent. Happily he gives a case of commutation of services for money on Glengarry's estate. The commutation was 'apparently quite disproportionate and oppressive. For instance, in the case of Dugald Cameron, late cowherd to Glengarry, afterwards tenant of Boline, while his rent was 11*l.* 4*s.* 3*d.*, the converted services amounted to 3*l.* 2*s.* 8*d.*' Well, if services were 'the real burden,' where is the 'oppressive disproportion'?^[179] This seems absurd.

If it be agreed that 'services' were the main part of rent, how oppressive a hostile tacksman, say Barisdale, might make them is easily conceived.^[180] Whatever we may think of the advantages of a definite Culloden rent, it is pretty plain that the people did not like it. But the old kind of rent and services was of scarce any value to a probably non-resident proprietor, who could get high returns on the new system from large farmers or graziers. He

did not want hens and cheese, and had now no use for claymores. The consequences were raised rents, emigration, evictions, the Highland grievances.

But were there no evictions, and removals, and forced migrations in the good old times?

Mr. Fraser Mackintosh says, 'The Commissioners on the Forfeited Estates, or, more properly, their Factors, were the first evictors in the Highlands, and they were guilty of favouritism to such a degree in favour of strangers, that many of the tenants emigrated voluntarily.'

Indeed, Glenure was shot, by Allan Breck or another, because, as factor for the forfeited estates of Lochiel and Ardsheil, he had evicted Cameron or Stewart tenants, and preferred Campbells. But Mr. Fraser Mackintosh ought to know that the Commissioners were *not* the first evictors. Who drove a hundred families from Mull and Tyree about 1738, as Culloden tells us? Who 'removed' James Stewart of the Glens before Campbell of Glenure did? Why Ardsheil, whose bastard brother he was. Who evicted some and threatened to evict all Macphersons from the Duke of Gordon's lands in Badenoch in 1724? Why the Duke and his factor, Gordon of Glenbucket.

The story is told in a letter of Cluny to the Earl Marischal.^[181] The Macphersons held lands in Badenoch 'as feuars, woodsellers, or kindly tenants to the Duke of Gordon.' He however 'vexes and reduces us by perpetuall lawsuits,' and '*has taken it into his head to root us intearly out of our own country.*' He therefore feued most of his Badenoch lands to Glenbucket 'for the half of its value, or, I may say, a third, meerly out of design to take it out of the hands of the Macphersons.' Glenbucket, 'in order to begin the work of extirpating us, has turned out the tenants of six farms.' Their high offers of rent were refused, so they dirked Glenbucket, 'in a most barbarous manner.' The operation can scarcely be performed in a gentle fashion. 'They very luckily missed their aim by the favour of a buff belt he had about him,' also by the favour of a claymore that, was lying convenient. The Duke now threatened to 'extirpate' or evict 'the whole name of Macpherson,' which he proceeded to do 'with a body of a thousand men, foot and horse.' All parties were Jacobites, and King James settled *hæc certamina tanta*. He had no objections to eviction. He writes to the Duke of Gordon, 'I am far from blaming you for any steps you may have

taken which are authorised by the law of the land, but there are only a few offenders, and, politically, the *eviction* disunites loyal clans.’^[182]

Indeed the more one thinks of Mr. Fraser Mackintosh’s assertion that the Commissioners were the first evictors in the Highlands, the more grotesque does it appear. We turn to the manuscript ‘Letter of a Gentleman’ whose sympathies are with ‘the wretched commons,’ not with the Chiefs.^[183] ‘The gentlemen of the name of Mackenzie,’ says our author, ‘are frugal and industrious.... They have screwed up their rents to an extravagant height, which they vitiously term improving their estates, without putting the tenants upon a proper way of improving the ground, to enable them to pay that rent, which makes the common people little better than slaves and beggars.’

No ‘screw’ but eviction could be used by these Mackenzie landlords, frugal and industrious.

Here is a case among the Camerons from the same MS.:—

‘To shew the present disposition of that Clan,’ described as ‘lazy, silent, sly, and enterprizing people,’ ‘I will relate an instance of their barbarity which happened since the year 1725. The possessor of a farm belonging to the Duke of Gordon, of the tribe of the Macmartins, about three miles to the North of Fort William, demanded an abatement of the usual rent, which the Duke refusing, he left the farm, boasting that no man would dare to succeed in it. For some years it was untenanted, till at last the Duke prevailed on Mr. Skeldoich, who was then minister of the parish, who could not find a place to reside in, to take this farm. The former possessor lay still till the minister had plentifully stocked the farm with cattle and built a house on it, then, with some other rogues, finding that the cattle were carefully watched, went to the place where the calves were kept, and with their durks cut off their heads, and cut the skins so that they would not be of any use.’

They also destroyed the Duke’s salmon nets on the Lochy. Later, watching till the minister chanced to be away from home, ‘they pulled down part of his house, and fired several shots towards the place where his wife lay.’ The worthy clergyman then thought it time to move into Fort William. Our author adds that cadets of Highland houses have possessed farms ‘for ages’ without leases, and when they are not able to pay their rents, *and are turned out*, they look upon the person who takes the farm

after them as usurping their right. These people have often refused to take a written lease, thinking that, by so doing, they gave up the right of possession.

All this, written about 1749, is hardly congruous with Mr. Fraser Mackintosh's bold statement that the Commissioners of Forfeited Estates were the first evictors in the Highlands. We learn that, 'by reason of the great poverty and slavery of the commons,' on the Mackenzie estates, out of the clan levy of 3,000 men, 'a third are but dross.' Let us add that the Campbells evicted the Macdonalds from Kintyre, by cutting their throats; that every defeated clan was likely to be, more or less, evicted; and that all the Macgregors were evicted. These were operations of clan warfare, though not much more enjoyable for that. But when a sub-tenant held from a tacksman, on a 'precarious tenure,' does Mr. Fraser Mackintosh maintain that he was never evicted? Why did Robin Oig shoot Macfarlane at the plough tail? He did so simply for the old agrarian reason.

In Prestongrange's speech for the Crown, at the disgraceful trial which ended in the judicial murder of James Stewart of the Glens, he says that 'a delusion in a peculiar manner prevailing in the Highlands,' is that 'a cause of mortal enmity arises if a man should be removed by another from his farm or possession which he hath no manner of title to hold or retain.'^[184] 'The delusion,' he says, 'prevails elsewhere,' but is 'in a particular manner prevalent in the Highlands.'

How could a popular delusion of this kind come into existence if the Commissioners of Forfeited Estates were 'the first evictors in the Highlands'? Demonstrably they were nothing of the kind. There were evictions in the good old times.

On the other hand, evictions had probably not been much practised with a view to obtaining higher rents or making improvements, but for other reasons. Claymores, not money, had been in request from tenants before 1745.

Once more, according to Burt, a Lowland authority, the Chief 'must free the necessitous from their arrears of rent, and maintain such who, by accidents, are fallen to a total decay.' Far from throwing a lot of small farms into a large one, or a sheep-walk, 'if, by increase of the tribe, small farms

are wanting for the support of such addition, he splits others into lesser portions, because all must somehow be provided for.’^[185]

This policy is the precise reverse of the Culloden lease, which terminates, *ipso facto*, when rent falls into arrears. A Chief, bound by consanguinity to treat all his tenants as gentlemen, might practise shooting at them, like Clanranald with his famous piece, ‘the Cuckoo,’ but certainly was not apt to evict often for arrears of rent. He lived at home, he built a great castle like Glengarry’s (probably by aid of ‘services’), he fed on the sheep, kine, butter, milk, of his tenants, but he shook them by the hand, perhaps forgave arrears, held clan feasts, and was a god on earth. When he raised rents, united farms in one hand, did not shake that of every clansman, but rather evicted them, discontent was natural, inevitable. Holders of land, proud free men, must emigrate, or become labourers or artisans in towns. Who does not sympathise with their emotions?

On the other side, the Chief must subdivide and subdivide, in the good old times, ‘because all must somehow be provided for.’ But all could not be and were not ‘provided for.’ We have seen the pictures of cruel exquisite poverty from Franck in 1654, to the Gartmore MS. in 1747, and the Culloden Report in 1738, and the ‘Life of Barisdale’ in 1754, and Burt’s Letters of about 1735. It seems reasonable to suppose that all arable lands were eagerly cultivated as far as the implements and skill of the people availed to cultivate them. It was the interest of the chiefs to increase their bands of warriors and the sentiment, if not the interest, of the clansmen urged them to stay on the land.

But the land could not maintain them! The younger gentry pushed their fortunes abroad as men of the sword or in commerce. But the commons were often at the starving point; we hear of famines. Glengarry writes of a great scarcity, when meal had to be bought in the Lowlands. Burt tells of no meal in Inverness. ‘A house, grass for a cow or two,’ and ‘as much land as will sow a boll of oats,’ rocky land, needing spade culture, was a cottar’s ‘only wages of his whole labour and service,’ says the Gartmore MS. The author reckons that there is not in the Highlands employment for more than half the population, even when land has been remorselessly sub-divided. Many earned a harvest wage in the Lowlands. Others ‘sorned’ on their kindred. Armies of tramps were supported by the generosity of the poor; nay, Lowland beggars came North, allured by the open hands of the

Highlanders. Whisky shops were everywhere; here men sauntered and drank. Plunder was habitual; a captain of a 'Watch' like Barisdale was at once thief and thief-taker. 'They live like lairds, and die like loons,' says Franck, speaking not of all the Highlands (as Macaulay quotes him), but chiefly of Lochaber. 'Upon this fund'—blackmail—the Captain 'employed one half the thieves to recover lost cattle, and the other half of them to steal.' Lochiel laboured to reform his clan in this respect. The exactions of tacksmen, 'sub-letting farms to a much greater number than they can maintain, and at a much higher rent than they can pay, obliges these poor people to purchase their rents and expences by thefts and robberys,' of cattle; for the Highland honesty about portable property is extolled by Burt.

As to the moral iniquity of cattle robbing, all morality is local, and a man who does not sin against the local standard is no extreme criminal. The Macdonalds held a simple creed of communism. 'They say that the Cattle are God's creatures, made for the use of man, for which the earth yields grass and herbs in plenty, without the labour of man, and that therefore they Ought to be common'—that is, ought to belong to the Macdonalds.^[186] The same ideas had prevailed on the Border:

If every man had his ain cow,
A richt poor clan Buccleugh's wad be.

Dr. Carlyle shows that Border cattle thieves, though not encouraged by the gentry, were a powerful class about 1740.

This is not a picture of a golden age, and Bailie Nicol Jarvie, in 'Rob Roy,' sums up this theory of what the age was really like. But, if we turn to Stewart of Garth,^[187] we find the real condition of the Highlands in times past revealed in a rosy haze. Blackmail is only extorted from *Lowlanders*, as if Barisdale had Lowland neighbours!^[188] The game and fish were 'free to all'—a palpable error as regards salmon, at all events, while one doubts if every clansman was made free of Cluny's forest. We do not read of grouse and venison in cotters' huts. 'Cottagers and tradesmen were discouraged from marrying.'^[189] Yet the surplus population was very large. A young amorous Highlander set himself up for marriage by 'thigging'—that is, by begging among friends for cows, sheep, and seed-corn.^[190] They did not discourage him. 'The extinction of the respectable race of tacksmen ... is a serious loss to the people.'^[191] Mr. Fraser Mackintosh, however, speaking

of Skye, says, 'large tacksmen ... could be relied on to assist (each other) or keep aloof, if the oppressed were below their class or set.'^[192] The author of MS. 104 would reduce the power of tacksmen by making all tenants leaseholders for terms not under twenty years, and would pay off all wadsetts on forfeited estates, 'because the gentlemen who had them were great oppressors of the Poor, and most of them, though they did not themselves take arms, were very active in forcing the people into the late Rebellion.'

An association had been made by Sutherland farmers in General Stewart's time to suppress sheep-stealing. He objects to the new social state which made this association necessary. Previously 'crimes had been so few that, from 1747 to 1810, there was only one capital conviction for theft.' This may have been so in Sutherland, and the MS. Letter already cited makes it probable. 'The Mackays of Lord Reay's country,' though previously reckoned 'the wickedest clan,' now 'abhor thieving.' But 'the common people who dwell along the East Coast are next to the Caithness people for poverty, slavery, and dwarfish stature, while the people further up the country towards Strathnaver' (where Franck found them bleeding their cattle for food) 'live better.' A third of the Earl of Sutherland's levy 'are mean, despicable creatures.' Thus one county showed very different conditions: however, like the Mackenzies, the Sutherland men 'abhor thieving.' Elsewhere in the Highlands, hangings for theft occupy a good deal of the old *Scots Magazine*. Many pretty men 'died for the law,' as every one knows.

General Stewart, objecting to the new farmers' association, seems not to have observed that blackmail and 'Highland Watches' were old-fashioned associations for protecting property.' Complaints are made by him of 'cutting down farms into lots,' as if the old Chiefs had not infinitely subdivided the soil.^[193] The old extreme poverty is left out of notice by General Stewart, with the old tippling, loafing, 'sorning,' thieving, 'thigging' habits. Much land could be and was cultivated, he says, which is now pasture, the harvest only failing 'in cold and wet autumns.'^[194] These not being unknown in the Highlands, but, on the other hand, very common, famines followed often, notably in 1782.

If the Lowlanders, the English, and the Anglified Highlanders, like Culloden, paint too gloomy a picture of the good old times, General Stewart may be regarded as erring in the opposite direction. His charge against the new Chiefs and landlords is the callous hurry with which they seized their pecuniary advantage, 'which proved ruinous to their ancient tenants.'^[195] This is also Scott's opinion, in his *Quarterly Review* article of 1816. He, too, a Tory of the Tories, condemns the heartless greed of evicting landlords.^[196] General Stewart records cases of delicate consideration and honourable sagacity on the side of the landlords. But often we find either a well-meaning hurry to make sweeping 'improvements,' and benefit people in a way they detest and do not understand (as by giving them leases), or a mere hasty desire to save such a ruined estate as war had left to Glengarry, by raising rents, causing, with the aid of frequent famine years, wholesale emigration. This policy was, indeed, far unlike what Burt reports: 'the poverty of the tenants has rendered it customary for the Chief, or Laird, to free some of them every year from all arrears of rent; this is supposed, upon an average, to be about one year in five of the whole estate.'

These habits vanished with the change in the Highlands; the old 'arts of popularity' were no longer practised by the Chiefs: clan affection became clan hatred. If we may believe a tithe of our Whig or Lowland information, it should have done so long before 1745. Cattle, sheep, red-deer, grouse, now occupy the place of the swords of the North: the banker, brewer, or upholsterer shoots the Chiefs game, or misses it.

Truly money is the root of all evil. When specie was scarce in the North, a guinea a thing seldom seen, the fatal treasure of Loch Arkaig produced, or evoked, the moral consequences of hatred, malice, treachery and slander. Twenty years later the lack of money hardened the hearts of Chiefs (which had not been so very soft before). Clansmen had to emigrate, and they were wisest who sailed first from a land of famine. Their descendants, or some of them, dwell happily in a realm of forests, hills, and streams, deer and salmon, still retaining Highland courtesy, Highland speech, Highland courage, and Highland hospitality. They seem to have chosen the better part, and to be more fortunate than their cousins in the new times, or their fathers in the old days that were not really golden.

On the whole, a distressed Highlander need not, it seems, conceive that the old times were free from distress, or that Chiefs were really always

humane. They acted in accordance with their immediate interests. They kept rents low when it paid to have a following, and they screwed rents up when money was more desirable than men. The two policies might be contemporary; this among Mackenzies, that among Macdonalds. Ensign Small reported^[197] that, among the Macdonalds, 'the gentry are fond of a rising, the commoners hate it.' The author of MS. 104 represents the Macdonalds as 'cursing their Prince and their Chiefs.'

The world, to its disadvantage, allows interest to override sentiment, which we only find here and there, as in the noble words of Lochiel. When he arrived with Prince Charles in France, in the autumn of 1746, he was, of course, very poor. The Prince, according to Young Glengarry, in a conversation with Bishop Forbes, was obliged to give Lochiel a full security for his estates before the Chief would raise his clan. Consequently Charles felt bound, said Glengarry, to secure a French regiment first of all for Lochiel. This, in Lochiel, would have been a singular piece of caution! But let us hear his own words, in a letter to King James.^[198] 'I told H.R.H. that Lord Ogilby or others might incline to make a figure in France, but my ambition was to serve the Crown, and serve my Country, or perish with it. H.R.H. say'd he was doing all he could' (to return with forces to Scotland), 'but persisted in his resolution to procure me a Regiment. If it is obtained, I shall accept it out of respect to the Prince, but I hope Yr. M. will approve of the resolution I have taken *to share in the fate of the people I have undone*, and, if they must be sacrificed, to fall along with them. It is the only way I can free myself from the reproach of their blood, and shew the disinterested zeal with which I have lived, and shall dye, Your Majesty's most humble, most Obedient, and most faithfull subject and servant,

'DONALD CAMERON.^[199]'

There speaks a man who makes real the ideal of the Clan system. But the ideal, though a hundred times illustrated in the conduct of the commons, has left less conspicuous examples in the behaviour of some Chiefs. 'My brother-in-law, Major Grant, pretended that the man,' (a recruit) 'I sent from this country, *I sold*, which is false,' says Old Lovat to Cluny.^[200] Major Grant, his brother-in-law, knew Old Lovat. He, like Barisdale, was an example of the kind of chief who, till after 1745, was not impossible. He throve wickedly on the survival of a kind of society, the tribal society with

its usages, which was in no sense exclusively Celtic, but originally prevalent all over Europe. In parts of the Highlands tribal society outlived its day, and gave to Lovat the opportunities which he abused.

APPENDIX



I.—PICKLE'S LETTERS

These two letters of Pickle's, not published in full in *Pickle the Spy*, illustrate 'The Case against Glengarry' in this volume. In the letter dated Edinburgh, 14th September, 1754, we find that, immediately on hearing of his father's death, the writer sent a note to Gwynne Vaughan, an English official, and went to Edinburgh, writing from Newcastle on his way North. His 'family affairs are in confusion.' Now Old Glengarry died in Edinburgh, on September 1, 1754, and, as has been elsewhere shown, Young Glengarry at once repaired to the North. No reader of these letters can doubt that their writer is, or is feigning to be, Young Glengarry. Now no such pretence could possibly succeed in Edinburgh, where Young Glengarry, a man eminently well known, happened to be at the moment. For the rest, the letters are mainly concerned with the Informer's proposed terms of payment, now that his 'situation is greatly altered,' by the death of his father, obviously Old Glengarry. Further comment seems needless, the evidence being beyond suspicion, and capable of but one interpretation.

Dr. Sir,—I have receivd the pleasur of yours of 20 Septr, but have been of late so hurried that I had no time to return a proper answer. I thought I was pritty pointed in my last in regard to a certain stipulation, but as by yours I imagen I was not so well understood, I beg leave to be now more explicite. I waited patiently four years (since 1750) without making the least demand, but for Journy expences, which fell so fare short that I spent all my owne ready Mony, and ran in debt eight hundred £st. Now, Sir, I expect that your friend will pay this sume by way of gratification, which will make me free of all debt contracted during my several trips, for I expect to be considered for what is past, as well as for times

coming: I had had his worthy Brother's^[201] paroll for this as well as a promise of his countenance, and protection, in all my other claimes, as I will not varrie the least in my demand, notwithstanding my situation is greatly altered, I will only mention £ five hundred St. yearly, twice regularly payd by Grandpapa, for I won't absolutely have to dow with any other. If Mr. Kenady (Duke of Newcastle) whose friendship I have a right to Claim, in vertue of his Brother's promise, will obtain this for me, there is nothing honourable he can think of, but I am able to perform. Only I beg he be not prejudic'd by that swarm of Videts that dally infest him. The Services I can be of are pritty well known, and as I am embark'd I am determin'd to percevere, but then I expect that Mr. Kenady (D. of N.) will fulfill his worthy Brother's promise to me, which was to clear me of the Debts contracted in my new way of lief, when that is done, and a certain thing yearly fixt, Mr. Kenady shall dispose of me in what shape he pleases. Young Swift (Lochgarry) is arrived, and upon his waiting of 20 (Genl. Bland) was not recevd as was promis'd he should. When I waited of him, he did not receive me as I expected, haughtly refusd the use of a fulsie without I should qualifie. I smiling answr'd, if that was the case, I had then a right without his permission, but that he could not take it amiss that I debar'd all under his comand the pleasure of hunting upon my grounds, or of any firing, which they can't have without my permission, so that I thought favours were reciprocally. 20 (Genl. Bland) and his Club pretends to be well inform'd of the minutest transaction in the Grand Monark's Cabinet, *O rare polliticians, Poor 21 (Bruce) is greatly to be pityed, for my old friends are mad at my consulting him in all my affairs, and 20 (Bland) and some about him spoke very injurious of him to me.* I think this ought to be put to rights. *I go North in a few days, I hope to prevail on 21 (Bruce) to follow in order to assist me in making a Judicial rent roll.*^[202] My stay will not exceed a month, and his not a fortnight, so that if you expect me up, write under 21 (Bruce's) cover, and I shall obey your comand. But Mr. Kenady (D. of N.), your friend, must enable me to go about it in a proper manner, and I am sure I will performe the business to his entire satisfaction. Young Swift, (Lochgarry) has verbally communicated to me most of *Miss Philips*

(Young Pretender's) amours. She has turn'd adrift all, or most of her former companions and galants. (This refers to the rupture between Prince Charles and his English adherents.) My presence is much wanted, and ardently wished for by hir, and hir present conductors. But I cant hear any thing materiall till old *Swift* (Lochgarry) return from hir. What I mentiond concerning *Black Cattel* is fact, but I hate repetitions, and at any rate must deffer further particulars till my return from the North. I will expect the pleasure of hearing to satisfaction and pointedly from you—I will beg the continuance of your good Offices, and will conclude by making offer of my Compts. to Mr. *Kenady* and assures him that all now depends upon himself, as Every thing is in his option.

I ever remain, Dear Grandpapa

Your most obedient and most oblidged humble Servt.

ALEX GUTHRY.

Edinbr. 10. Octr. 1754.

(Pickle to G. V.) (Gwynne Vaughan)

Add. 32,736. f. 525.

Edinbr. 14 Sept. 1754.

Dr. Sir,—I am vastly uneasy not to receive the least answer to either of my letters from Newcastle, or that which I wrote immediately upon my Father's death;^[203] but, as I have the greatest confidence in your friendship, I perswade myself that nothing prevents my receiving apointed answer to every article in both my last, but the multiplicity of weighty Affairs daily crouding upon the Duke of Newcastle; therefore without any suspicion or diffidence I am determind to continue firm to our Concert, untill you acquaint me if he agrees to my Proposals, which if he does, he may safely rely upon everything in my power, and I think I can't give stronger proof of my sincerity than by this offer, *in the confusion of my Family affairs, which in its present situation, demands all my attention.* I have heard fully from Lochgary, who acquaints me that the Young Pretender's affairs take a very good turn, and that he has

lately sent two expresses to Lochgary earnestly intreating a meeting with Pickle, and upon Lochgary's acquainting him of the great distance Pickle was off, he commanded Lochgary to a rendezvous, and he set out to meet me the 4th. Instant, and is actually now with me.

I shall very soon have a particular account of the present plan of operation. I have now the ball at my foot, and may give it what tune I please, as I am to be allowed largely, if I fairly enter in co-partnership. The French King is in a very peaceable humour, but very ready to take fire if the Jacobites renew their address, which the Young Pretender assures him of, and he will the readier bestir himself, as the English Jacobites hourly torment him. Troops, Scotch and Irish, are daily offered to be smuggled over: *but I have positively yet refused to admit any*. The King of Spain has lately promised to add greatly to the Young Pretender's patrimony, and English Contributors are not wanting on their parts.

I suspect that my letters of late to my friends abroad are stopt, pray enquire, for I think it very unfair dealings. I am in a few weeks to go north to put some order to my affairs. I should have been put to the greatest inconveniency if 21 (Bruce) had not lent his friendly assistance; but as I have been greatly out of pocket by the Jants I took for Mr. Pelham, I shan't be in condition to continue trade, if I am not soon enabled to pay off the Debts then contracted. I have said on former occasions so much upon this head to no effect that I must now be more explicit, and I beg your friendly assistance in properly representing it to the Duke of Newcastle. If he thinks that my services, of which I have given convincing proofs, will answer to his advancing directly eight hundred Pounds, which is the least that can clear the Debts of my former Jants, and fix me to the Certain payment yearly of Five hundred at two several terms, he may command anything in my power upon all occasions. I am sorry to be forced to this explanation, in which I always expected to be prevented. I am so far from thinking this extravagant, that I am perswaded it will save them as many thousands, by discarding that swarm of Videts, which never was in the least trusted. If the Duke of Newcastle's Constituent (the King) was acquainted with this, I dare

say he would esteem the demand reasonable, considering what he throws away upon others of no interest or power on either side. I beg you'll acquaint me with the soonest of the Duke of Newcastle's answer, and assure him of my ready obedience to his commands. I have referred to 21 to enlarge further upon this, and other subjects I have been conversing with him some days ago, *as he can inform you of my great hurry and confusion for this fortnight past,*^[204] which will be all the apology I will make for this hurried scrawl, and I beg you'll be fully convinced of the great esteem etc. etc. etc.

P.S. Pray let me not be denied the Arms I wanted, and I hope in case of accidents, you'll take care of young Lochgary. I am just this instant informed that *Mr. Nordly* has left the King of France for the summer season, and is residing now in England, but can't learn in what particular place—21 is supposed to be the Watchman: whose letter will explain what he hints of Lochgary.

Mr. Nordly is not deciphered yet.

(Copy of Pickle's letter to G. V. (Gwynne Vaughan) deciphered. R. Oct. 16th, 1754.)

II.—MACLEOD

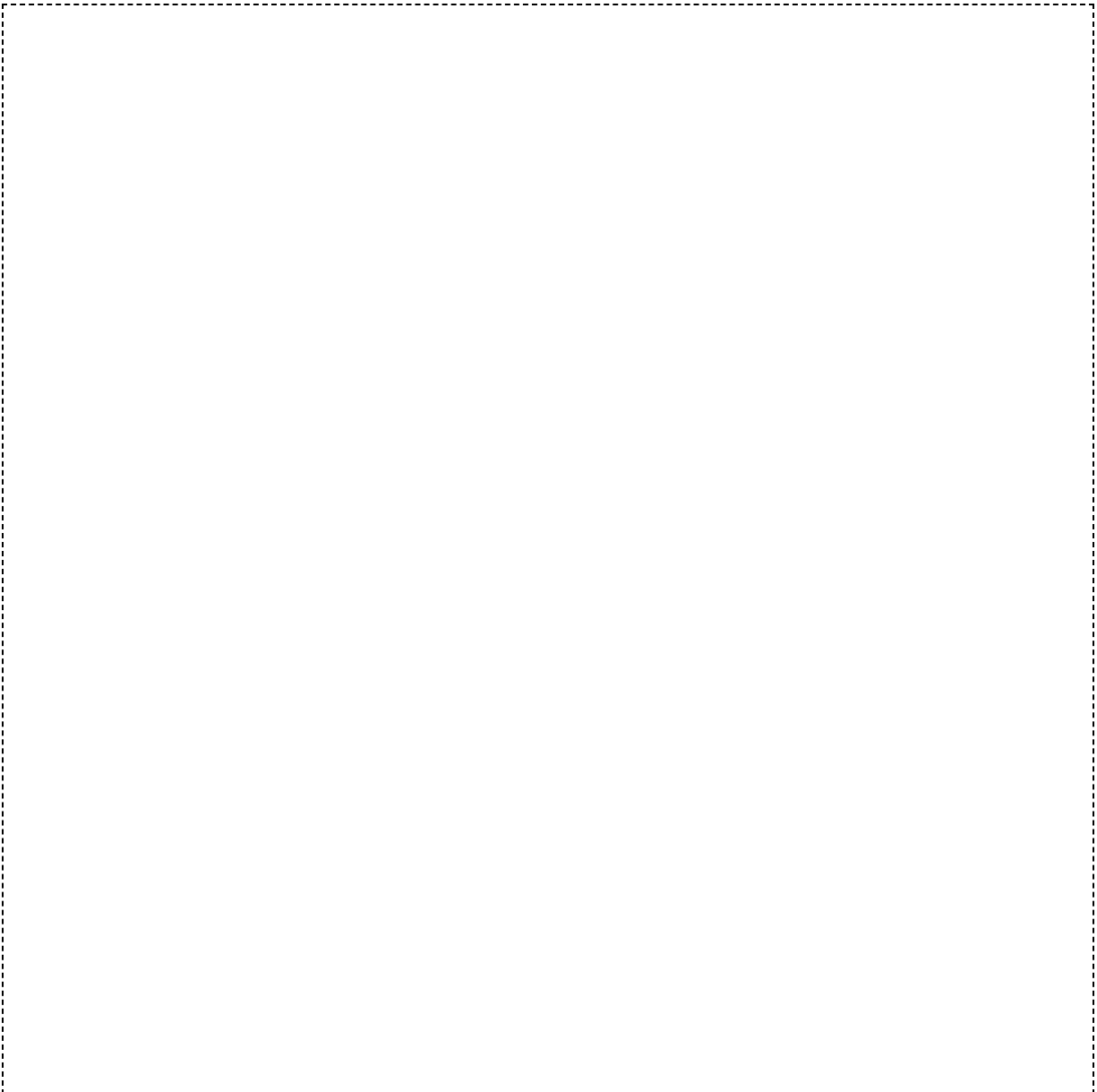
‘The Rebels had an implacable Illwill and Malice against Him (Macleod) as they alledged, and many of them believed, that he not only deserted, but betrayed their Cause: what truth there is in this I will not take upon me to determine.’ So says the writer of the MS. 104, ‘The Highlands of Scotland in 1750.’

‘Surely never did man so basely betray as did Macleod, whom I shall leave for the present to the racks and tortures of a guilty conscience, and the just and severe judgement of every good man.’ Thus writes Murray of Broughton, after narrating how Macleod gave a written promise to aid Prince Charles whenever he landed. What he *did* was to send information to Forbes of Culloden, ‘it is certain that the pretended Prince of Wales is come into the coast of South Uist and Barra.’ He begs that his name as informant may be kept secret.^[205]

Macleod can thus avoid the charge of betraying the Cause, only by disproof of Murray’s allegation that he gave a written promise to rise. But this allegation is confirmed by family tradition. ‘Miss Macleod of Macleod, Dunvegan Castle, remembers having seen in the family charter-chest an interesting correspondence between His Royal Highness and Macleod, in which Norman “invited the Prince to come over, several months before he arrived,” but the letters have since disappeared, and the family knows nothing as to where they have gone to.’^[206]

On the showing of Miss Macleod, as reported by Mr. Mackenzie, in the passage just cited, Murray might well cry ‘never did man betray so basely as did Macleod.’ Despite his written promise to Prince Charles, Macleod was the first to send information against ‘the pretended Prince of Wales.’ After Prestonpans, ‘it would appear,’ writes Mr. Mackenzie, ‘that Macleod was taking lessons in duplicity from Simon,’ Lord Lovat. Macleod scarcely needed instruction in treachery; but, if Mr. Mackenzie is right, he now meant to send Young Macleod with the clan to join the Prince, while he stayed at home, and said that he could not help it.^[207] This domestic arrangement was not carried into effect.

Macleod was born in 1706, and inherited the family lands with 60,000*l.* He died in 1772, leaving 50,000*l.* of debt. He is still spoken of in the traditional history of his family as *An Droch Dhuine*, or ‘the Wicked Man,’ partly because of his extravagance, partly ‘for his cruel treatment of his first wife and Lady Grange.’^[208] When we add his treachery to the Prince, we see in Macleod a character far from exemplary. His grandson speaks of him as ‘always a most beneficent and beloved chieftain, whose necessities had lately induced him to raise his rents.’... ‘The Jacobites treated him as an apostate, and the successful party did not reward his loyalty.’^[209] He reaped as he had sown.



FOOTNOTES

[1] *Literature*, July 30, 1898, p. 93.

[2] There is a brief sketch of the Earl in his brother's Memoirs (Spalding Club), which cites d'Alembert, and puts the Earl's birth in 1687.

[3] Plaids worn by the Earl and his brother are preserved in a house in Fifeshire.

[4] This remark makes it probable that the Earl was really a young man. If born in 1693, as some thought, he would be twenty-three in 1716. (As, indeed, one of d'Alembert's authorities says that he was.) If a year or two older, he could scarcely have pleaded youth as a reason for silence.

[5] Mar to 'H. S.' From France, February 10, 1716.

[6] Mr. Eliot Hodgkin's MSS., *Hist. MSS. Com.* xv. ii. Appendix, p. 230.

[7] Add. MSS. 33,950. 1718-1719. British Museum.

[8] There are copies of his correspondence with the would-be murderer in the Gualterio MSS., British Museum.

[9] The author hopes to tell the story of Mr. Wogan, a charming character, on another occasion.

[10] Hist. MSS. Commission, x. i. Appendix, p. 475.

[11] Letter from Musell Stosch to d'Alembert, *Œuvres*, v. 457.

[12] Hist. MSS. Commission, x. i. Appendix, p. 184.

[13] Hist. MSS. Commission, x. i. Appendix, p. 452.

[14] The Earl's letter is in Browne, ii. 448, from the Stuart Papers.

[15] The Rev. George Kelly was a constraint on the old Duke's amours with Madame de Vaucuse!

[16] Papers from French Foreign Office. In Murray of Broughton's *Memorials*, pp. 499-501.

[17] Charles to James, May 11, 1744. Stuart Papers in Murray of Broughton's *Memorials*, p. 368.

[18] Stuart Papers. Browne, ii. 476.

[19] Compare Villettes' letter, *postea*, [p. 48](#).

[20] Stuart Papers, in Murray of Broughton's *Memorials*, pp. 513-514.

[21] James to the Duke of York. November 8, 1745. Browne, iii. 452, where all the correspondence is printed.

[22] The Memoirs of the exile in question, unhappily, have never been printed, and I do not feel at liberty to anticipate any points of interest in these curious papers.

[23] Letters in Browne, iv. 64-66. Conceivably it was Goring who prejudiced the Earl against Kelly; he may have conveyed the ideas of Carte and the English party.

[24] See Sir Charles's letter of February 6, 1751, in *Pickle the Spy*, p. 117.

[25] These letters are from the printed Correspondence of Frederick.

[26] Ewald, *Charles Edward*, ii. 223.

[27] The story was believed, however, by a contemporary who knew the Earl well.

[28] Mr. Bisset has printed these letters from the originals in the Add. MSS. British Museum.

[29] Fidei Defensor.

[30] From the correspondence of Hume. MSS. in the collection of the Royal Society of Edinburgh.

[31] Hill Burton's *Hume*, ii. 464-6.

[32] See '[Mlle. Luci](#),' later.

[33] In the papers of Ramsay of Ochertyre occurs perhaps the only unkind reference to the Earl. Ramsay reports that, being told about the destitution of the child of his nurse (who had sold her cow and sent him the money in 1719), he made no remark. A reference to [p. 66](#), *supra*, will show that silence followed by kind deeds was the Earl's way when he heard a story of distress. Ramsay mentions that he sold his lands cheap when he finally left Scotland.

[34] Murray to a lady. Quoted in *Genuine Memoirs of John Murray, Esq.* (London: 1747), p. 9.

[35] The diamond box has gone; the miniature, published by Mr. Fitzroy Bell, is in my possession.

[36] *A Collection of Loyal Songs*. Printed in the year 1750.

[37] Browne, ii. p. 476.

[38] Stuart Papers, in Murray of Broughton's *Memorials*, pp. 392-395.

[39] *Chronicles of the Atholl and Tullibardine Families*, iii. pp 8, 17. (Privately printed: edited by the Duke of Atholl.)

[40] Charles was nursed at Thunderton House, by Mrs. Anderson (*née* Dunbar) of Arradoul. In some mysterious way Charles was able to secure for Mrs. Anderson's son an appointment under the English Government. So says a tradition preserved by Miss Janet Lang, a great-great-granddaughter of Mrs. Anderson.

[41] See '[Cluny's Treasure](#),' *postea*. A writer in the *Athenæum* (July 9, 1898) appears to think (as was thought at the time) that Murray now intended to turn informer, and keep what he could of the French gold. This is not my impression.

[42] See '[A Gentleman of Knoydart](#),' *postea*.

[43] Lord Justice Clerk to Newcastle, July 10, 1746. Murray's *Memorials*, p. 418.

[44] *The Highlands in 1750*. Blackwood, 1898.

[45] Leslie. Paris, May 27, 1752. Browne, iv. 101.

[46] See 'Account of Charge' in Chambers's *Rebellion*, p. 522; and, later, 'Cluny's Treasure.'

[47] Stuart Papers. Browne, iv. 59. Mr. Fitzroy Bell does not remark on all this evidence.

[48] Unable, at first, to learn even the real name of Mlle. Luci, I appealed, in despair, to a lady who occasionally sees 'visions' in crystals. 'What can you see of Mlle. Luci?' I asked, by letter, giving no hint of any kind as to the lady's date or connections. The seeress replied that, in an ink-bottle on her writing-desk, she saw a girl of about twenty-eight, dark, handsome, rather like Madame Patti in youth. Her dress was that of the middle of the eighteenth century. On her shoulder was laid another lady's hand, a long, delicate, white hand, with a 'marquise' diamond ring. '*La Grande Main*,' I exclaimed, 'the hand of *La Grande Main*!'—whom we later discovered to be Madame de Vassé.

The coincidence was certainly pretty, but, unless a portrait of Mlle. Ferrand can be discovered, we must remain ignorant as to whether she was correctly represented in the ink-picture; whether a true refraction shone up from the dead past, the afterglow of a romance.

[49] *Burt's Letters*, ii. p. 334.

[50] MSS. in the Cluny Charter Chest. Privately printed, 1879, p. 16.

[51] *Waverley*, i. p. 161 (1829).

[52] London: 1754.

[53] This is confirmed by the Gartmore MS. in Burt; by MS. 104, in the King's Collection; and by Murray of Broughton, in his paper on the Clans.

[54] Published (1898) as *The Highlands in 1750* (Blackwood).

[55] He is a Lowlander, and avers that Scotland rarely lost a battle except when the Highlanders were engaged, as at Flodden.

[56] *Sutherland Book*, ii. 256.

[57] MS. 104 says that they went out most reluctantly.

[58] The Impartial Hand.

[59] These letters are in the Cumberland MSS. at Windsor Castle.

[60] MS. 104. King's Library.

[61] See Mr. Mackenzie's *History of the Camerons*, pp. 233-244, where the documents are given.

[62] *History of the Camerons*, p. 236.

[63] Sheridan can scarcely have been Charles's adviser at this time. It may have been O'Sullivan.

[64] *Pickle*, p. 160. I at first conjectured that this letter might refer to Pickle himself, but Barisdale, who was in touch with Cumberland in 1746, just after Culloden, is more probably the person hinted at.

[65] This does not look as if the Duke alluded to him in the letter of August 9, where he talks of the price of information.

[66] Cumberland MSS. See '[A Gentleman of Knoydart](#),' *postea*.

[67] *Antiquarian Notes*, pp. 152, 153.

[68] *Lyon in Mourning*, i. 147.

[69] *Culloden Papers*, pp. 290-292.

[70] Cumberland MSS.

[71] *Memorials of Murray of Broughton*, p. 270, *et seq.*

[72] Chambers's *Rebellion* of 1745. Appendix. But compare *Memorials*, p. 286, where Murray represents himself as poor, though he had the 5,000 *louis*, unless he had sent them on in front.

[73] *Scots Magazine*, July 1753, p. 362.

[74] *Ibid.*, 1750, p. 254.

[75] This is accurate. The note exists to this day.

[76] This was by the Prince's desire.

[77] Scots Papers. Record Office.

[78] See p. 141, note 2.

[79] Letters between the Major and the Prince are published in *Pickle the Spy*.

[80] Glengarry to Edgar, Jan. 16, 1750. Browne, iv. p. 66.

[81] Browne, iv. p. 79.

[82] *Jacobite Lairds of Gask*, p. 276.

[83] Nov. 21, 1753. Browne, iv. 117.

[84] Scots Affairs. Record Office.

[85] The husband of the lady who pistoled the English Captain after 1715.

[86] State Papers, Scotland, 1753.

[87] S.P.S. Bundle 44, No. 28-29.

[88] It is plain that the account given on [p. 144](#), and said by the Informer to be 'in Clunie's writing,' is absolutely wrong, cannot be by Clunie, and is meant to incriminate that chief. Not only are the 6,000 *louis* carried to Charles by Kennedy omitted, but the 'treasure' intercepted by Downan and Glenevis does not appear, while 2,000 of the 27,000 *louis* are left out of the reckoning. 'The State of Clunie McPherson's Intromissions,' in short, is a fraudulent document. It bears traces of confused manipulation in various interests.

[89] *Lyon in Mourning*, i. 310. *Antiquarian Notes*, by C. Fraser Mackintosh, p. 225.

[90] *Lyon in Mourning*, i. 147.

[91] *Lyon*, i. 309-10.

[92] *Nether Lochaber*, pp. 188, 189.

[93] Now Fort William.

[94] This Mr. Douglas gets a very bad character from John Macdonnell, of the Scotus family, in his Memoirs.

[95] Dungallon had only been released from Edinburgh Castle in October 1749.

[96] This includes the money got by Glengarry in Edinburgh, out of Murray's original 5,000 *louis*, entrusted to his brother-in-law, Mr. Macdougall. Compare Murray's *Memorials*, p. 304, where he denies that Mrs. Murray brought any large sum from the Highlands. The reverse is stated by Ramsay of Ochtertyre, and it is plain that, by Mrs. Murray's means, or otherwise, a large sum was conveyed by Murray to Edinburgh.

[97] See Mr. Stevenson's *Kidnapped* and *Catriona* and the printed Trial for the Appin Murder.

[98] Add. MSS. 32,995, 6, 33.

[99] December 1752. *Pickle*, p. 176.

[100] State Papers, MS., April 15, 1751.

[101] Cumberland Papers.

[102] *Scots Magazine*, July 1753, p. 362.

[103] June 18, 1754, State Papers.

[104] *Scots Magazine*, June 1754. The details of Fassifern's imprisonment and condemnation are taken from the *Scots Magazine* of 1753-1754.

[105] No. 48 S. P. S. From Churchill to Newcastle, Nov. 19, 1751. The story of the ghostly evidence in Sergeant Davies's case will be found in the author's *Book of Dreams and Ghosts*.

[106] Written before 1810, the Memoirs are published in the *Canadian Magazine* of 1828. Mr. McLennan has founded on these papers his excellent romance, *Spanish John*.

[107] *Hunts-foot* (*sic*), *i.e.* leg of a dog, a term of reproach with the Germans.

[108] Lally's adventures were romantic, and are only touched on by M. Humont in his *Lally Tollendal*, pp. 32-5.

[109] Mackenzie's *History of the Camerons*; see documents on pp. 233-44.

[110] Murray of Broughton in Chambers's *Rebellion of 1745*; edition of 1869, p. 515.

[111] Letter-Book of Alastair Ruadh, MS.

[112] William, fourth son of Donald the fifth of Kilcoy. He married Jean, daughter of Mackenzie of Davochmaluag, and died without issue. *History of the Mackenzies*, p. 585.

[113] *Antiquarian Notes*, by C. Fraser Mackintosh, p. 156.

[114] Laing MSS., Edinburgh University Library.

[115] *Pickle*, p. 282.

[116] February 19, 1760, *Pickle*, p. 312; also p. 266, April 8, 1754: 'Since the loss of my worthy great friend [Henry Pelham] on whose word I wholly relay'd, everything comes far short of my expectations.'

[117] *Antiquarian Notes*, p. 123.

[118] *Pickle*, pp. 312-314.

[119] *Antiquarian Notes*, pp. 120, 121.

[120] The tradition of Glengarry's treachery has reached me both from Scotland and America, under dread secrecy!

[121] In 1749 a Mr. Bruce was appointed to survey the forfeited and unforfeited estates of the Highlands, including Glengarry's. *Pickle* speaks of employing 'Cromwell' (Bruce) to draw up for him a judicial rent roll. The two Bruces, the surveyor and the Court Trusty, are obviously the same man, and he is probably the writer of the tract, *The Highlands in 1750*. (MS. 104. King's Library.)

[122] It is needless to consider the theory that *Pickle* was James Mohr Macgregor, who died in 1754.

[123] *Burt*, i. 265-267.

[124] Murray of Broughton's *Memorials*, p. 107. James's letter to Louis XV., p. 508.

[125] Charles knew of Murray's 'rascality' by April 10, 1747. Letter of the Prince to James. Stuart Papers, *Memorials*, p. 398.

[126] *Lyon in Mourning*, iii. 119. The anecdote is also given by Robert Chambers in *Jacobite Memorials*.

[127] This letter was published, from my transcript, by Mr. A. H. Millar, in the *Scottish Review* for April 1897.

[128] Stuart Papers. Browne, iv. 100, iv. 22, 23, 51.

[129] Browne, iv. 98-102.

[130] *Ibid.* iv. 118.

[131] *Ibid.* iv. 64.

[132] Newton to Waters, March 18, 1750, *Pickle*, p. 93; Lord Elcho's Diary; Glengarry to Prince Charles, admitting the fact, 1751; Browne, iv. 79; '[Cluny's Treasure](#),' *supra*.

[133] Browne, iv. 66.

[134] *Pickle*, p. 161.

[135] Stuart Papers, Windsor Castle.

[136] *Pickle*, p. 162.

[137] *Pickle*, p. 180.

[138] Jesse's *Pretenders*, Appendix.

[139] *Pickle*, pp. 170-175.

[140] *Pickle*, pp. 191-194.

- [141] *Ibid.* p. 190.
- [142] MSS. 33,050; f. A25.
- [143] *Pickle*, p. 210.
- [144] *Pickle*, p. 219.
- [145] State Papers, Scotland, Bundle 44, No. 67.
- [146] Glengarry's Letter Book, MS., [p. 207](#), *supra*.
- [147] Add MSS. 32,955, f. 38.
- [148] *Highlanders*, ii. xvi. Appendix.
- [149] *Scottish Review*, April, 1897, p. 223.
- [150] *Pickle*, p. 283.
- [151] *Ibid.* p. 284.
- [152] See [Appendix](#).
- [153] December 13, 1754. *Pickle*, p. 285.
- [154] This letter, with a draft of Glengarry's reply, written on the back, is in the possession of General Macdonald, the owner of Glengarry's Letter Book.
- [155] *Pickle*, pp. 288-289.
- [156] Add. MSS. 32,804, f. 137.
- [157] *Pickle*, pp. 290-291.
- [158] *Ibid.* pp. 312-314.
- [159] *Letters from the Highlands*, ii. 70 (1818).
- [160] Glengarry's Letter Book, MS. (1758-9).
- [161] *A Journey through part of England and Scotland, Along with the Army, &c.* By a Volunteer. Osborne, London: 1747, p. 176.
- [162] Lord Selkirk, *State of the Highlands*, p. 42 (1805).
- [163] Glengarry's Letter Book, MS.
- [164] November-December, 1754. *Pickle*, p. 285.
- [165] *Antiquarian Notes*, pp. 120-134.
- [166] *Pickle*, p. 217.
- [167] *Northern Memoirs*. This author does not speak of drinking the blood of the *living* cow. See *op. cit.* p. 209, and note, p. 372. This correction applies to p. 283.
- [168] Burt, ii. p. 31.
- [169] *Ibid.* p. 26.
- [170] Glengarry's Letter Book, MS.
- [171] *Scotland as it was and as it is*, p. 245.
- [172] Burt, ii. 51.

[173] The Gartmore MS. is denounced as full of ignorant Lowland prejudice, by General Stewart of Garth.

[174] Burt, Appendix, ii. 357.

[175] We have another statement by Culloden: 'From Perth to Inverness, and thence to the Western Sea, including the Western Islands, ... no part is in any degree cultivated, except some spots here and there in straths or glens, by the sides of rivers, brooks, or lakes, and on the sea-coast. The grounds that are cultivated yield small quantities of mean corns not sufficient to feed the inhabitants, who depend for their nourishment on milk, butter, cheese, &c., the product of their cattle.... Their habitations are the most miserable huts that ever were seen.' *Culloden Papers*, p. 298.

[176] This is the house near Musselburgh, which the wicked Colonel Charteris lent to Culloden, who had defended him from a charge of rape. In one room (when I was a boy) you saw in the centre a great black blotch, and black marks as of footsteps tiptoeing out to the door. A gruesome room!

[177] Cumberland Papers, 1753.

[178] *Antiquarian Notes*, p. 207.

[179] *Antiquarian Notes*; compare pp. 126 and 207.

[180] Here is a formal rent from Burt (ii. 56):—

Donald Mac Oil vic ille Challum.

Money £8. 10. 4. Scots £0. 5. 10½.
Butter 3 lb. 2 oz.
Oatmeal 2 bushels 1 Peck 3 Lip.
Sheep ⅛ and ⅓₁₆.

Other tenants paid in shares the rest of the sheep. Then there would be 'services,' engaging Donald's time and labour.

[181] 'Cluny, May 10, 1724.' *Stuart Papers*, p. 113, Appendix, pp. 100-105.

[182] James to the Duke of Gordon, August 27, 1724.

[183] British Museum. The King's Library, 104.

[184] *Scots Magazine*, 1753, p. 498.

[185] Burt, ii. 5, 6.

[186] MS. 104.

[187] *Sketches*, 1822.

[188] *Ibid.* i. 40.

[189] *Op. cit.* i. 84, 85.

[190] Burt, ii. 107.

[191] *Sketches*, i. 185, *note*.

[192] *Antiquarian Notes*, p. 284.

[193] *Sketches*, i. 150.

- [194] *Ibid.* ii. Appendix, xlv.
- [195] *Sketches*, i. 139.
- [196] See also the Introduction to *The Legend of Montrose*.
- [197] Cumberland Papers, 1753.
- [198] January 16, 1747.
- [199] Browne, iii. p. 477.
- [200] March 26, 1740. *Gleanings from Cluny Charter Chest*, p. 4.
- [201] Henry Pelham's.
- [202] One Bruce did survey the Forfeited Estates and others.
- [203] At Edinburgh, Sept. 1, died Old Glengarry.
- [204] On account of Old Glengarry's death.
- [205] Dunvegan, August 3, 1745. *Culloden Papers*, p. 204.
- [206] *History of the Macleods*. By Alexander Mackenzie, F.S.A., p. 129. Inverness, 1889.
- [207] *Ibid.* p. 133.
- [208] *Ibid.* p. 149.
- [209] Mackenzie, pp. 150, 151.

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